

## 8 Child arrangements orders and other orders with respect to children

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Part II

Orders with Respect to Children in Family Proceedings

### GENERAL

[2.244]

8 Child arrangements orders and other orders with respect to children

(1) In this Act –

'child arrangements order' means an order regulating arrangements relating to any of the following –

- (a) with whom a child is to live, spend time or otherwise have contact, and
- (b) when a child is to live, spend time or otherwise have contact with any person;

. . .

'a prohibited steps order' means an order that no step which could be taken by a parent in meeting his parental responsibility for a child, and which is of a kind specified in the order, shall be taken by any person without the consent of the court;

. . . and

'a specific issue order' means an order giving directions for the purpose of determining a specific question which has arisen, or which may arise, in connection with any aspect of parental responsibility for a child.

(2) In this Act 'a section 8 order' means any of the orders mentioned in subsection (1) and any order varying or discharging such an order.

(3) For the purposes of this Act 'family proceedings' means any proceedings –

- (a) under the inherent jurisdiction of the High Court in relation to children; and
- (b) under the enactments mentioned in subsection (4),

but does not include proceedings on an application for leave under section 100(3).

(4) The enactments are –

- (a) Parts I, II and IV of this Act;
- (b) the [Matrimonial Causes Act 1973](#);
- (ba) Schedule 5 to the Civil Partnership Act 2004;
- (c) *(Repealed)*
- (d) the Adoption Act and Children Act 2002;
- (e) the [Domestic Proceedings and Magistrates' Courts Act 1978](#);

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- (ea) Schedule 6 to the Civil Partnership Act 2004;
- (f) *(Repealed)*
- (g) Part III of the Matrimonial and Family Proceedings Act 1984;
- (h) the [Family Law Act 1996](#);
- (i) [sections 11](#) and [12](#) of the Crime and Disorder Act 1998;
- (j) Part 1 of Schedule 2 to the Female Genital Mutilation Act 2003 (other than paragraph 3 of that Schedule);
- (k) Part 3 of the Domestic Abuse Act 2021, where the proceedings are in the family court or the Family Division of the High Court.

**[2.244[1]]**

**Amendments**—[FLA 1996, s 66\(1\), \(3\)](#), Sch 8, para 60(1), Sch 10; [Crime and Disorder Act 1998, s 119, Sch 8](#), para 68; [ACA 2002, Sch 3](#), para 55; [CPA 2004, s 261\(1\), Sch 27](#), para 129(1)–(3); [CFA 2014, ss 9, 12](#), Sch 2; [Children Act 1989 \(Amendment\) \(Female Genital Mutilation\) Act 2019, s 1](#); para (k) inserted by [DAA 2021, s 52\(1\)](#) and comes into force (for certain purposes) for the specified period beginning on 5 March 2025 and ending on 26 November 2025 (see [SI 2025/261](#)), and 11 March 2025 to 26 November 2025 (see SI 2024/319), for savings see reg 4.

**Essentials 26: [Children Act 1989](#) – section 8 orders****[2.245]**

*All references to [ChA 1989](#) unless stated otherwise*

**Essential legal framework**

A wide choice of orders is contained within s 8 to enable the court to resolve issues arising with regard to the welfare of a child.

**Definition of 'child':** a person under the age of 18 (s 105(1)). The court cannot make any s 8 order which is to have effect after the child reaches the age of 16, or in respect of a child who has reached the age of 16 (although it can vary or discharge such an order), except in exceptional circumstances (ss 9(6) and (7)).

**Directions and conditions on s 8 orders:** a s 8 order may contain directions about how it is to be carried into effect (s 11(7)(a)). The court may also impose conditions which must be complied with by any person named in the order (s 11(7)(b)). Such conditions can be made to have effect for a specified period (s 11(7)(c)). With child arrangements orders the court also has powers to impose 'activity directions' and 'activity conditions' (ss 11A–11H) and may request a Cafcass officer to monitor, and report to the court about compliance for up to 12 months (ss 11G–11H)).

**'Interim' s 8 orders:** the court has power to make a s 8 order at any time during proceedings, even at an interim stage (s 11(3)). The object of such an order should normally be to hold the balance so as to cause the least possible harm to the child, and it should not be treated as an irreversible decision.

**Range of s 8 orders:** there are three types of s 8 orders (s 8(1)):

- (1) Child arrangements orders (CAO);
- (2) Prohibited steps orders (PSO);
- (3) Specific issue orders (SIO).

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**Child arrangements orders:** a CAO means an order regulating the arrangements relating to (a) with whom a child is to live, spend time or otherwise have contact; and (b) when a child is to live, spend time or otherwise have contact with any person. The terms 'live with order' and 'spend time with order' are commonly used. A 'spend time with order' cannot be made without first determining with whom a child lives.

**CAOs and PR:** where the court makes a 'live with order' in favour of the child's father or second female parent, but they would not otherwise have PR for the child, the court must also make an order giving that person PR (s 12(1) and s 4). Where the court makes a 'live with order' in favour of a person who is not a parent or guardian, that person shall have PR while the order remains in force (s 12(2)). Where a 'spend time with order' is made, the court must consider whether it is appropriate to grant PR to a parent (s 12(1A)) or non-parent (s 12(2A)).

**Limits on PR while a 'lives with order' is in force:** where a 'lives with order' is in force, no person may (a) change the child's surname; or (b) remove the child from the UK, without either the written consent of every person who has PR or the leave of the court (s 13), save that temporary removal is permitted for up to a month by a person named in the 'lives with' order.

**CAOs ceasing to have effect:** any CAO shall cease to have effect if the child's two parents live together for a continuous period of more than six months (s 11(5) and (6)).

**Prohibited steps orders:** an order preventing any step which could be taken by a parent in exercising their PR being taken without the court's consent. A PSO can be made against any person, but the prohibition may only relate to steps that could be taken by a parent in meeting their PR. A PSO cannot be used to forbid a child's parents from having contact with each other, nor can it be used to regulate contact. A PSO can only be relaxed by the court and not by any agreement between the parents.

**Specific issue orders:** an order giving directions for the purpose of determining a specific question which arises in connection with any aspect of PR for a child. A SIO is appropriate where there is a particular specific issue between the parties (eg education, medical treatment, child's name). A SIO cannot be made to determine the issue of where the child should live.

**The child's welfare** is the court's paramount consideration (s 1(1)) and the court must apply the welfare checklist (s 1(3)) when considering whether to make, vary or discharge a s 8 order. The principles in ss 1(2), 1(2A), 1(5) and 1(6) apply: see Essentials 24 at [2.234](#).

**Restrictions on making s 8 orders:** no court shall make any s 8 order with respect to a child who is in the care of a local authority (s 9(1)) other than a 'live with order' (s 9(6B)). A local authority cannot apply for a CAO, and the court cannot make a CAO in favour of a local authority (s 9(2)).

### Common issues in practice

**Who may apply for a s 8 order?** The court may make a s 8 order on application or of its own motion: s 10(1)(a) and (b).

A parent (which includes a father without PR), guardian, special guardian, step-parent with PR or person named in a 'lives with order' is entitled to apply for any s 8 order (s 10(4)).

S 10(5) (and note s 10(10)) lists those additionally entitled to apply only for a CAO.

Others require the permission of the court to apply. The test for permission is at s 10(9). The child's welfare is relevant but not paramount.

### Procedural guides and standard orders

PROCEDURAL GUIDE D7: Child Arrangements Order (or Discharge or Variation of the Same).

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## Standard order 7.6

**Other key notes**

**The Child Arrangements Programme:** the framework for private law cases is contained in the CAP at FPR 2010, PD12B.

**[2.245[1]]**

**Defined terms**—'child': s 105(1); 'parental responsibility': s 3.

**Scope**—The Act seeks to set up a flexible system which enables the court to have as wide a choice of orders as possible so that any question which arises with regard to the welfare of a child can be resolved, whatever the nature of the proceedings before the court. The wide definition of 'family proceedings' in s 8(4), which includes proceedings for a forced marriage protection order and for a female genital mutilation protection order, facilitates this. However, the family court has no power to grant a child arrangements order (CAO) pursuant to s 8 against a public body; see *Z v Z* [2021] EWFC 47, [\[2022\] 1 FLR 1111](#) where, despite endorsing a CAO for indirect contact between a father imprisoned for sexual offences against children and his own teenage children, the court could not compel a prison governor to supervise or otherwise facilitate the contact.

**Jurisdiction**—See FLA 1986, Pt I. The court has jurisdiction to make a CAO regulating contact in respect of a child who is habitually resident in the UK, notwithstanding any plan for the child to move abroad to live with one of their parents; see *Re L (A Child: Jurisdiction: Contact)* [2016] EWCA Civ 1297, [\[2017\] 2 FLR 361](#).

**Funding issues**—Now that public funding is in general no longer available for private law children cases, it might be appropriate in certain circumstances for the court to direct that the cost of certain activities, such as the instruction of an expert, should be borne by HMCTS. Such an order is an order of last resort (the provision of interpreters and translators apart) and no such order should be made except by a High Court judge or a designated family judge (*Q v Q (Funding of Representation and Expert Attendance)* [2014] EWFC 7, [\[2015\] 1 FLR 318](#)). However, see *Re K and H (Private Law: Public Funding)* [2015] EWCA Civ 543, [\[2016\] 1 FLR 754](#) where the court held that the family court did not have the power to order HMCTS to provide funding for legal representation outside the legal aid scheme (note: the particular issue in that case, the cross-examination of a child by an unrepresented party, is now addressed by the use of QLRs under MFPA 1984, Part 4B).

From May 2023, legal aid funding was extended to enable funding for applicants for special guardianship orders (SGOs), and for parents opposing applications for SGOs.

See also *R (Teresa Gudaviciene) (Claimants/ Respondents) v (1) Director of Legal Aid Casework (2) Lord Chancellor (Defendants/ Appellants) & British Red Cross Society (Intervener)* [2014] EWCA Civ 1622, [\[2015\] 3 All ER 827](#) where the Lord Chancellor's guidance on exceptional funding in civil legal aid was held to be incompatible with ECHR, Art 6(1) and Charter of Fundamental Rights of the European Union, Art 47 in that it had impermissibly signalled that the refusal of legal aid would amount to a breach of such rights only in rare and extreme cases. In *R (Rights of Women) v Secretary of State for Justice* [2016] EWCA Civ 91, [\[2017\] 1 FLR 615](#) the Civil Legal Aid (Procedure) Regulations 2012, reg 33, which specified the supporting evidence to be provided by a legal aid applicant who claimed to be the victim of domestic violence, was not ultra vires [LASPOA 2012](#). However, the Regulations frustrated the purposes of the Act and were invalid insofar as they required that the verification of domestic violence had to be dated within a period of 24 months before a legal aid application and insofar as they made no provision for victims of financial abuse. The Court of Appeal held that once it was accepted that part of the statutory purpose of [LASPOA 2012](#) was to ensure that legal aid was available to the great majority of domestic violence victims, it was necessary to ask why so many of them were excluded by the 24-month rule; it was held that the rule operated in a completely arbitrary manner and there was no safety valve that enabled the victims of domestic violence to explain why they were unable to obtain verification of that violence less than 24 months before proceedings began. See also *Director of Legal Aid Casework and Another v IS* [2016] EWCA Civ 464, [\[2016\] 2 FLR](#)

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[392](#), where the court held that the exceptional case-funding scheme for the administration of legal aid under [LASPOA 2012, s 10](#) was lawful (albeit Briggs LJ dissenting and noting that the fact that many solicitors worked pro bono to assist people in obtaining the funding did not rescue the scheme from inherent unlawfulness); there had clearly been difficulties with the scheme and there was room for improvement, particularly concerning lay applicants and those with disabilities, but its operation was a learning curve and there had been improvements since its inception.

Other cases dealing with funding difficulties include *JG v The Lord Chancellor and Others* [2014] EWCA Civ 656, [\[2014\] 2 FLR 1218](#) where the claimant father successfully obtained a declaration in judicial review proceedings that the LSC's decision not to meet the cost of an expert psychotherapist's report in private law proceedings had been unlawful. In *BC v DE (Proceedings under Children Act 1989: Legal Costs Funding)* [2016] EWHC 1806 (Fam), [\[2017\] 1 FLR 1521](#) Cobb J took the unusual step of ordering the father to fund the mother's legal costs in pursuit of the private law aspects of her case where she had no resources or income of her own, could not reasonably obtain legal costs funding elsewhere and where the father was extraordinarily wealthy. The court was concerned to ensure that the parties had equality of arms and equal access to justice, and strove to exercise its discretionary power with a view to promoting fairness between them. In *P v A Local Authority* [2016] EWHC 2779 (Fam), [\[2017\] 1 FLR 1589](#) the court had to determine whether the Legal Aid Agency's statutory charge applied in respect of a sum of damages paid to the applicant by the respondent local authority. Keehan J held that the LAA's discretion to waive the statutory charge under Civil Legal Aid (Statutory Charge) Regulations 2013, reg 9 was fettered; the two preconditions for waiver set out in reg 9 had to be satisfied at the time when the determination of funding was made, and a decision to waive the statutory charge had to be made at the same time. Keehan J also held that damages for breach of an applicant's human rights are not ringfenced or protected from the clawback of the statutory charge (following *R (Faulkner) v Director of Legal Aid Casework* [2016] EWHC 717 (Admin), [\[2016\] 4 WLR 178](#)). In *HB v A Local Authority and Another (Wardship: Costs Funding Order)* [2017] EWHC 524 (Fam), [\[2018\] 1 FLR 538](#) MacDonald J ruled that the High Court does not have power, under its inherent jurisdiction, to make a costs-funding order against a local authority requiring it to fund legal advice and representation for a parent in wardship proceedings brought by the local authority where that parent had lawfully been refused legal aid in accordance with the statutory legal aid scheme put in place by Parliament (see also further commentary by MacDonald J in *Raqeeb v Barts Health NHS Trust (Costs)* [2019] EWHC 3320 (Admin), [\[2020\] 1 FLR 1376](#)).

See commentary under FPR 2010 rule 37.1 **Unrepresented defendants** for legal representation in committal cases.

**[2.245[2]]**

**Legal costs orders in children cases**—FPR 2010 disapply that part of CPR 1998 that provides a starting point that the unsuccessful party pays the costs of the successful party so that in family cases the court has a broad discretion to make such order as it thinks just.

There is a general practice of not awarding costs against a party in family proceedings concerning children, but the court retains a discretion to do so in exceptional circumstances; these include cases in which a party has been guilty of reprehensible or unreasonable behaviour in relation to the proceedings; this practice applies equally in public law and private law proceedings, and irrespective of whether a party is legally aided; nor is there any difference in principle between fact-finding hearings and other hearings; the court can make costs orders at any time: FPR 2010, r 28.1 (*Re E (Children: Costs)* [2025] EWCA Civ 183, [\[2025\] 2 FLR 141](#) at [23]). In *Re E-R (Child Arrangements)* [2016] EWHC 805, [\[2017\] 2 FLR 501](#) at [74]–[77], Cobb J summarised the statutory framework and distilled the core principles: (i) the court has a wide discretion; (ii) costs do not ordinarily follow the event in family proceedings, as they do in other forms of civil proceedings; (iii) the court does not wish the spectre of an order for costs to discourage those with a proper interest in the child from participating in the debate, nor does it wish to reduce the chance of their cooperation around the future life of the child by casting one as the successful party entitled to his costs and another as the unsuccessful party obliged to pay them; (iv) it can generally be assumed that all parties to the case are motivated by concern for the child's welfare; (v) an award of costs in family proceedings may be justified if it is demonstrated that the conduct of the party (before as well as during the proceedings and/or in the manner in which a case has been pursued or defended) has been 'reprehensible or



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unreasonable'; (vi) orders for costs between the parties may diminish the funds available to meet the family's needs (see *Gojkovic v Gojkovic (No 2)* [1991] 2 FLR 233, CA), but not making an order for costs may have the same effect.

In *Griffiths v Kniveton* [2024] EWHC 199 (Fam), [2024] 2 FLR 160 Lieven J confirmed that it is not in the best interests of children for their parents to be discouraged from seeking a CAO because they are worried that a costs order might be made against them save where they do so in a frivolous or vexatious manner.

In *Re O (appeal: costs)* [2024] EWHC 1163 (Fam), [2024] 2 FLR 1041 Henke J reiterated that there would be no order for costs in children proceedings unless one or more parties had behaved unreasonably or in a reprehensible manner, and the welfare of the children would not be materially adversely affected. Key factors included: (a) whether the order for costs would reduce the money available to meet the family's needs; (b) whether making an order for costs would make the relationship worse for the parties and children; (c) whether a party had acted unreasonably to incur their costs; (d) whether a party had acted reprehensibly; and (e) other circumstances which the court might take into account. Both parties had modest financial resources, there was no evidence of deliberate delay, and the lack of pre-appeal communication was not deemed to be unreasonable given the threats made: no order for costs was made. For examples where the conduct of a party had been reprehensible or their stance had been unreasonable, see *Re W (A Child)* [2020] EWCA Civ 77 and *Re A and B (Children: 'Parental Alienation')* (No 5) [2023] EWHC 1864 (Fam), [2024] 1 FLR 447.

For examples of partial costs being awarded, see *S v S (Relocation)* [2017] EWHC 2345 (Fam), [2018] 1 FLR 82, and *Mother v Father* [2023] EWHC 2078 (Fam) where partial costs orders were made against the mother in favour of the father and an expert whose professional standing was at issue and who had intervened in an appeal. Unusually in that case, the conduct of a professional body which had also intervened was found to have been wholly exceptional, and it was ordered to contribute to the father's and the expert's costs. See also *Re Z (Disclosure to Social Work England: Costs)* [2023] EWHC 982 (Fam), [2024] 1 FLR 766 where the court made a partial costs order against Social Work England (SWE). It was held, on the facts in that case, that SWE, which had sought the disclosure of a fact-finding judgment on the basis that it would be relevant to its inquiry into the father's fitness to practise as a social worker, should have brought the appeal, not the mother. Further examples where conduct merited costs orders: *C v S* [2025] EWFC 254 (Fam); *Father v Mother* [2025] EWHC 2135 (Fam); *Mahmoud v Glanville* [2025] EWHC 2395 (Fam).

For examples of costs orders being wrongly made, see: (1) *Re A (A Child) (Enforcement of a Foreign Order)* [2022] EWCA Civ 904, [2023] 1 FLR 691: held that a judge had erred in ordering a litigant in person to pay a legally-represented party's costs following the latter's successful appeal in family proceedings it being contrary to the default position that, in the absence of reprehensible behaviour, there should be no order for costs in children cases, and was also unfair, given the failure to serve a statement of costs on the litigant in person or to notify her of the costs application, particularly when the issue of costs could have been dealt with at a subsequent hearing; (2) *Raqeeb v Barts Health NHS Trust (Costs)* [2019] EWHC 3320 (Admin), [2020] 1 FLR 1376 MacDonald J stated that arguments concerning equality of arms of matters of 'conduct' were not sufficient reasons to justify the making, exceptionally, of a costs order in the associated *ChA 1989* proceedings; (3) *Peterborough City Council v K* [2022] EWFC 61, [2023] 1 FLR 148 applying *HB v A Local Authority (Wardship: Costs Funding Order)* [2017] EWHC 524 (Fam), [2018] 1 FLR 538; in a private law application, the judge had been wrong to make a non-party costs order against a local authority which, having investigated the children's situation pursuant to a direction made under the *ChA 1989, s 37*, had decided not to issue proceedings under s 31. The costs order was an impermissible device designed to provide a public source of funding for the parties' legal costs.

On an application for permission to appeal, the court may take the view that although the appeal has a real prospect of success, it must be refused because it lacks any proportionality to the amount at stake (*HH v BLW (Appeal: Costs: Proportionality)* [2012] EWHC 2199 (Fam), [2013] 1 FLR 420). See further under FPR 2010, Pt 28 and r 30.11.

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**Costs of contact arrangements**—[ChA 1989 s 11\(7\)\(d\)](#) gives a wide-ranging power to the court to make 'such incidental, supplemental or consequential provisions' as it thinks fit and an order for a party to pay the costs of contact falls within this.

In *Griffiths v Griffiths (Guidance on Contact Costs)* [2022] EWHC 113 (Fam), [\[2022\] 2 FLR 855](#) the court gave guidance as to the issues to be considered in the exceptional situation where a victim of rape or domestic abuse was being asked to pay for the costs of the abuser's contact with their child. Held: in cases where abuse has been found or admitted (1) there is a very strong presumption against a victim paying for their child's contact with the abuser; but (2) if, wholly exceptionally, the court does have to consider the issue, the matters it might want to consider could include: (a) the welfare checklist, including the age of the child; (b) the factors in PD12J; (c) the nature of the abuse proved or admitted and the parties' conduct that the court considers relevant; (d) the impact of the abuse on the caregiver with consideration as to whether any payment would give rise to financial control; (e) the extent of the relationship between the child and the abusive party; (f) the nature of the s 8 order made; (g) the parties' financial resources; (h) the cost of the contact; and (i) whether, if the contact was in the child's best interests, it would take place without a sharing of the costs.

In *Re D (Children)* [2016] EWCA Civ 89, [\[2016\] 1 FCR 545](#) the court had ordered that the father should bear the costs of contact with his children being supervised by a social worker but had failed to give precise and comprehensive terms about the payment of costs which were now disputed: held that the family court did not have jurisdiction to resolve the dispute about those costs as the social worker had been acting on a contractual basis rather than as a court-appointed expert.

**Funding in disputed paternity cases**—Cafcass is able, in defined circumstances, to facilitate and fund the provision of DNA tests directed under [FLRA 1969, s 20](#). The service is limited to the following circumstances: (a) an application has been made for a CAO under [ChA 1989, s 8](#); (b) the application cannot be determined unless a dispute about the child's paternity is resolved; and (c) the parents or persons with care of the child are prepared to cooperate with the direction made by the court. The court's order must contain a reference to Cafcass meeting the costs of the DNA test facilitated by them and that the direction is made of the court's own volition. Guidance is available via [DNAsupport@cafcass.gsi.gov.uk](mailto:DNAsupport@cafcass.gsi.gov.uk) or [CAFCASSCymruDNASupport@wales.gsi.gov.uk](mailto:CAFCASSCymruDNASupport@wales.gsi.gov.uk) and at [www.cafcass.gov.uk/parent-carer-or-family-member/applications-child-arrangements-order/other-support-services-cafcass-delivers-behalf-ministry-justice/dna-testing](http://www.cafcass.gov.uk/parent-carer-or-family-member/applications-child-arrangements-order/other-support-services-cafcass-delivers-behalf-ministry-justice/dna-testing).

**Funding of intermediaries**—There is a distinction between the cost of obtaining a report for an expert as to capacity and competence (the cost of which falls to the party either paying privately or under their LAA public funding certificate), and the cost of providing services from an intermediary. Where it appears to the court that funding by HMCTS is the only way a party or witness can properly participate in proceedings or be questioned in court, a judge may order that there should be an assessment to determine whether and if so what, support needs to be provided through an intermediary in the courtroom, and, if necessary, funding for that intermediary. HMCTS can also, if necessary, fund the cost of an intermediary to assist with preparation work outside the court, but only if this is directly relevant to matters to be dealt with in the court and there is a judicial order to this effect. See further the guidance issued on 21 February 2018 by the Ministry of Justice, at: [www.gov.uk/government/uploads/system/uploads/attachment\\_data/file/681275/guidance-courts-on-payment-certain-mmeasures-family-proceedings.pdf](http://www.gov.uk/government/uploads/system/uploads/attachment_data/file/681275/guidance-courts-on-payment-certain-mmeasures-family-proceedings.pdf).

See further **Intermediaries and cognitive function assessments** at para [1.248](#) and **Intermediaries** under [ChA 1989, s 96](#) at para [2.362\[3\]](#).

**Funding of interpreters**—Since April 2019 the LAA Guidance on the Remuneration of Expert Witnesses has been amended to reflect the HMCTS guidance on interpreters – see [assets.publishing.service.gov.uk/media/6602d08865ca2f8e6b7da79a/Guidance\\_on\\_the\\_Remuneration\\_of\\_Expert\\_Witnessesv8.pdf](https://assets.publishing.service.gov.uk/media/6602d08865ca2f8e6b7da79a/Guidance_on_the_Remuneration_of_Expert_Witnessesv8.pdf).

Where a client is eligible for legal aid and requires an interpreter, then their solicitor will secure an interpreter on their behalf. The interpreter will be available at court to translate what the solicitor and client say to each other. This

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will usually involve discussions outside of the court room. It may be appropriate for the legally aided interpreter to be in court during the hearing, eg a solicitor may want to give instructions to their client in court or to discuss issues that have been raised in court at any point during the hearing. Attendance and waiting at a hearing can be claimed at the codified rate for interpreters.

**Funding of Qualified Legal Representatives**—The Prohibition of Cross-Examination in Person (Fees of Court-Appointed Qualified Legal Representatives) Regulations 2022 provide for the payment of fees and costs incurred by a court-appointed QLR. Where a QLR attends a preliminary hearing in a case, the rate of remuneration is, in part, determined by the length of hearing and, in part, by the level of judiciary conducting the hearing. Different rates apply to private law children proceedings, domestic abuse, financial remedy and public law children cases. Since 2 January 2024, travel and overnight expenses are payable, and it is hoped that this will lead to a greater willingness to take up QLR appointments by the court.

**Funding of lay advocates**—The term 'lay advocate' means a person who is qualified and/or has experience of assisting and supporting a party in proceedings who has an intellectual impairment or learning difficulties which compromises their ability to process and comprehend information given to them. The function of the lay advocate is to ensure that the party understands the information provided and is able to respond to it and thereby be enabled to participate effectively in the proceedings. In *Re C (Lay Advocates) (No 2) sub nom Secretary of State for Justice v Local Authority & Ors* [2020] EWHC 1762 (Fam) the court clarified the position on the funding of a lay advocate in child care proceedings where a party suffered from an intellectual impairment. HMCTS would fund the provision of a lay advocate, in appropriate circumstances, for a party at court hearings while the LAA would fund the provision of a lay advocate, if satisfied that it was a justifiable and reasonable disbursement, to support and assist a party in communicating with their solicitor and/or counsel out of court.

**Mediation**—FPR PD36V was initially introduced in March 2021 providing for a Family Mediation Voucher Scheme designed to support parties who may be able to resolve family law disputes involving children issues out of court, but has since been extended until March 2029. See also the modifications to FPR PD12B. The Scheme was set up in response to the COVID-19 crisis to support recovery in the family court and to encourage more people to consider mediation as a means of dispute resolution, where appropriate. Vouchers are available to people who are eligible for legal aid, and are allocated per case. The mediation voucher scheme is a one-off financial contribution of up to £500 towards the costs of mediation, if eligible. See [www.gov.uk/guidance/family-mediation-voucher-scheme#eligibility](https://www.gov.uk/guidance/family-mediation-voucher-scheme#eligibility). Practitioners should note, however, that only mediators authorised by the Family Mediation Council (FMC) are taking part in the voucher scheme and that the mediation voucher cannot be used to pay for a MIAM.

**Arbitration**—In July 2016, the Institute of Family Law Arbitrators (IFLA) launched the Family Law Arbitration Scheme, which aims to increase the use of arbitration relating to family disputes. The scheme, originally dealing with financial matters, offers the opportunity to resolve disputes concerning the exercise of parental responsibility and the welfare of children by arbitration. It provides a choice of arbitrator, continuity of tribunal, confidentiality and speed of decision-making for children disputes. In March 2018, *Practice Guidance on Case Management and Mediation of International Child Abduction Proceedings* was issued (updated March 2023, see Part V, paras [5.194–5.230\[1\]](#)). In July 2018, the President's Guidance was issued in relation to private law children cases ([www.judiciary.uk/wp-content/uploads/2018/07/pfd-practice-guidance-children-arbitration.pdf](https://www.judiciary.uk/wp-content/uploads/2018/07/pfd-practice-guidance-children-arbitration.pdf)). Practitioners should note that since March 2020 the Institute of Family Law Arbitrators (IFLA) has expanded the scope of its children scheme to include both temporary and permanent relocation to certain foreign jurisdictions. In *G v G* [2022] EWFC 151, [\[2023\] 2 FLR 491](#) Peel J gave practice guidance for parties challenging an arbitration determination in a children's welfare dispute, together with a draft order for the gatekeeping judge. The procedure to be followed should, in principle, be as close as possible to that in respect of a challenge to an arbitral award in financial remedies proceedings. In both categories of case, there should be a triage stage to determine whether the challenge had a real prospect of success. If that gateway test was passed, the application would proceed to a full *inter partes* hearing; if not, an order would be made incorporating the award.

**Digital applications**—Since 19 February 2020 it has been possible to make applications for s 8 orders started in the family court via an online process (see FPR PD36G (Pilot Scheme, Procedure for Using an Online System to



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Generate Applications in Certain Private Law Proceedings Relating To Children) and also PROCEDURAL GUIDE D7). The purpose of the digital scheme is to enable parents and their legal representatives to apply to the court digitally to make child arrangements. As well as helping to reduce delays and error, the digital system also directs parents to alternatives other than applying to court (see [apply-to-court-about-child-arrangements.service.justice.gov.uk/](https://apply-to-court-about-child-arrangements.service.justice.gov.uk/) and [helpwithchildarrangements.service.justice.gov.uk/](https://helpwithchildarrangements.service.justice.gov.uk/)).

### [2.245[3]]

**Child Arrangements Programme (CAP)**—The CAP came into force on 22 April 2014. FPR PD12B sets out the process that applies where a dispute arises between separated parents and/or families about the arrangements concerning children.

**The Private Law Pathfinder Pilot**—In February 2023, the Families First for Children (FFC) pathfinder programme and Family Networks Pilot (FNP) were announced as part of a wider social care implementation strategy. In February 2024, the Nuffield Family Justice Observatory published new research suggesting that almost half the children involved in court decisions about their upbringing when their parents are separated are not formally asked about how they feel about the arrangements being made: [www.nuffieldfjo.org.uk/resource/uncovering-private-family-law-how-often-do-we-hear-the-voice-of-the-child](https://www.nuffieldfjo.org.uk/resource/uncovering-private-family-law-how-often-do-we-hear-the-voice-of-the-child).

In the Private Law Pathfinder Pilot (currently operating in Birmingham, Cardiff, Dorset and North Wales), the emphasis is quite different to CAP: it is on problem-solving by obtaining information as early as possible to enable the court to make informed decisions. Cafcass or Cafcass Cymru (or Children's Services in situations where they are already involved with the family) will undertake a Child Impact Assessment which is a much more in-depth information-gathering exercise and includes engaging with the parents and other agencies where appropriate. There is also an important presumption that children will have the opportunity to be seen and heard at this stage. All this information is gathered within a six-week period after which the court conducts a further Intervention/Decision hearing in Week 7. A final decision will be made at this first hearing wherever possible. The court will then review the order between 3–12 months after it is made, not to determine whether the order has been adhered to but to assess whether the welfare needs of the child are being met in practice.

Where appropriate, families are supported to engage in non-court dispute resolutions which can avoid the need for families to come to court by reaching an agreement which can be reflected in a court order. Where families cannot reach agreement or where the Child Impact Report identifies safety issues which require further input from the court, a hearing date will be identified and further information needed can also be ordered.

In situations where there are concerns about domestic abuse, families are referred to specialist domestic abuse agencies for a risk assessment and ongoing support. For MOJ update (as at March 2025) see: <https://assets.publishing.service.gov.uk/media/67e277f770323a45fe6a7067/pathfinder-programme-update.pdf>.

**Duty on parents to work to put aside differences**—It is an integral aspect of PR that parents should work to put aside differences and ensure their children have relationships with both parents: *Re W (Direct Contact)* [2012] EWCA Civ 999, [2013] 1 FLR 494; *Re W (Contact: Permission to Appeal)* [2012] EWCA Civ 1214, [2013] 1 FLR 609; *Re J and K (Children: Private Law)* [2014] EWHC 330, [2015] 1 FLR 86; *Re H-B (Contact)* [2015] EWCA Civ 389, [2015] 2 FCR 581.

**Same-sex parenting and modern families**—In same-sex cases where PR does not automatically exist in law or where it cannot be agreed (for example, the mother does not agree that the child's other female parent should acquire PR (see s 4ZA)), the court may consider making a PR order (see s 4) or a CAO in favour of both same-sex parents after the breakdown of the relationship in order to confer PR on the child's other parent. In *Re G (Children)* [2006] UKHL 43, [2006] 2 FLR 629 the UKHL confirmed that the issues and legal principles arising in the dispute about the child's living arrangements were just the same as those arising between heterosexual couples. In particular, the court considered the weight to be attached to the fact that one party is both the natural and legal parent of the child and the other is not. The court also identified three different aspects of 'natural parenthood' and its significance both for the adults and for the child: genetic parenthood (provision of the gametes), gestational

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motherhood (conceiving and bearing of the child) and social and psychological parenthood (the relationship that develops through the child demanding and the parent providing for the child's needs).

In *Re B (A Child)* [2009] UKSC 5, [\[2010\] 1 FLR 551](#) the court held that: (1) the importance of parenthood is only as a contributor to the child's welfare and that to talk in terms of a child's rights – as opposed to his or her best interests – diverts from the child's welfare as the focus when making decisions as to where the child should live; (2) there is no place for the question whether the proposed placement would be 'good enough' or a supposedly adequate alternative; and (3) there is no assumption in favour of a natural parent or a natural family member; matters must be determined with regard to the paramountcy of the welfare best interests of the child or children concerned. See also *Re E-R (Child Arrangements Order)* [2015] EWCA Civ 405, [\[2016\] 1 FLR 521](#), where the court confirmed there is no presumption of a parental right or 'broad natural parent presumption' that might override the welfare of the child as the court's paramount consideration; the fact that a person was a natural parent was a factor of significance to be given appropriate weight when determining the child's best interests, but whether any such factor was determinative would depend on the unique facts of each case.

In *Re G (Shared Residence Order: Biological Mother of Donor Egg)* [2014] EWCA Civ 336, [\[2014\] 2 FLR 897](#) Black LJ cautioned against devoting too much time to trying to work out whether a parent could properly be called a 'psychological parent', when what matters is the parent's involvement in fact – both past and future. However, see *Re E-R (Child Arrangements) (No 2)* [2017] EWHC 2382 (Fam) for a clear recognition of the bond between a child and psychological parents (in that case, friends of the child's late mother).

**[2.245[4]]**

**Known sperm donors**—Where a father donates his sperm to a lesbian couple so that they can have a child but then wishes to have a relationship with the child, it is wrong to class him as a 'secondary' parent because it has the danger of demeaning him and his potential future role in the child's life; his application to spend time with the child must be considered in terms of the paramountcy of the child's welfare (*A v B and C (Lesbian Co-Parents: Role of Father)* [2012] EWCA Civ 285, [\[2012\] 2 FLR 607](#)). In both *T v T* [2010] EWCA Civ 1366, [\[2011\] 1 FCR 267](#) and *A v B and C* (above) the court emphasised that whatever the original intentions of the parties when children are conceived, the court's focus should be on dealing with the position as it actually is, rather than the position that the adults had wanted or originally planned.

See also *Re X (No 2) (Application for contact by the biological father)* [2015] EWFC 84 and the subsequent decision in *Re X (A Child: child arrangements order)* [\[2020\] EWFC 49](#) involving the same parties: the CAO sought by the biological father of a child conceived via artificial insemination was refused because it was held that the child's emotional needs regarding her background and identity were being met appropriately and her welfare needs required a period of stability with minimal risk of disruption; and although it was important for the child to have information about her background and identity, including her genetic identity, it is not a right that exists irrespective of her welfare. It is an important part of any welfare evaluation.

**CAOs for shared living arrangements**—Cases where the court has made a shared 'lives with' order do not, as was once thought, require parents to be co-parenting amicably. However, shared orders are generally made with a view to encouraging parents to co-operate with each other (*Re T-D (Children: Specific Issue Order)* [2024] EWCA Civ 793, [\[2025\] 1 FLR 365](#)). In *AZ v BX (Child Arrangements Order: Appeal)* [2024] EWHC 1528, [\[2025\] 1 FLR 1135](#) at [77], after reviewing the statutory framework and case law, Poole J identified the following principles as being applicable to a decision whether or not to make a shared lives with order:

- 'i) The choice of whether to make a shared lives with order or a lives with/spend time with order is not merely a question of labelling – it is likely to be relevant to the welfare of the subject children and must be made by applying the principles of [ChA 1989 s1](#) ... In every case the appropriate choice of order depends on a full evaluation of all the circumstances with the child's welfare being the court's paramount consideration.

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- ii) The choice of the form of any lives with order should be considered alongside the division of time and any other parts of the proposed child arrangements order.
- iii) A shared lives with order may be suitable not only when there is to be an equal division of time with each parent but also when there is to be an unequal division of time.
- iv) It does not necessarily follow from the fact that the parents are antagonistic or unsupportive of each other that a shared lives with order will be unsuitable.'

**Shared living arrangements – nesting**—In *Re A, B and C (Children: Nesting Arrangement)* [2022] EWCA Civ 68, [2022] 2 FLR 607, the court considered whether the judge's decision to vary a nesting arrangement under which the children remained living in the former family home while their parents moved in and out depending on when it was their turn to provide care, was unfair or wrong.

**Shared living arrangements – housing needs**—In *Holmes-Moorhouse v Richmond-upon-Thames LBC* [2009] UKHL 7, [2009] 1 FLR 904 guidance was given on the approach to be followed by local authorities in determining whether an applicant for council housing who has been granted an order for shared residence was a person with whom dependent children 'might reasonably be expected to reside', pursuant to [Housing Act 1996, s 189\(1\)\(b\)](#). Family courts should not use residence orders to try to exert pressure on housing authorities to allocate their resources in a particular way. Only in exceptional circumstances would it be reasonable to expect children who had a home with one parent to be provided by the housing authority with another so that they could also reside with the other parent. Housing is a scarce resource and the procedures for deciding how it is to be allocated should not be entangled with the procedures for deciding children's welfare.

### [2.245[5]]

**Domestic relocation**—In *Re C (Internal Relocation)* [2015] EWCA Civ 1305, [2017] 1 FLR 103, after an extensive review of authorities, Black LJ clarified (at [50]–[54]) that it is the welfare principle in [ChA 1989, s 1\(1\)](#) which dictates the result in internal relocation cases, just as it does in external relocation cases, and there is no supplementary requirement of 'exceptionality' in domestic relocation cases. Vos LJ summarised the position (at [82]):

'in cases concerning either external or internal relocation the only test that the court applies is the paramount principle as to the welfare of the child. The application of that test involves a holistic balancing exercise undertaken with the assistance, by analogy, of the welfare checklist, even where it is not statutorily applicable. The exercise is not a linear one. It involves balancing all the relevant factors, which may vary hugely from case to case, weighing one against the other, with the objective of determining which of the available options best meets the requirement to afford paramount consideration to the welfare of the child. It is no part of this exercise to regard a decision in favour or against any particular available option as exceptional.'

Furthermore, in observations recently endorsed by Cobb LJ in *Re O (Domestic Abuse: International Relocation)* [2025] EWCA 888, [2025] 2 FLR 1168 at [97], Black LJ clarified (at [55]–[61]) that the court will consider the impact of its decision on the parents as part of its welfare evaluation, and there is no need for a separate proportionality cross-check. The Hague Convention on the Civil Aspects of International Child Abduction 1980 has no application in domestic abduction cases and should not be applied by analogy (*Re R (Internal Relocation: Appeal)* [2016] EWCA Civ 1016, [2017] 2 FLR 921 at [27], per Black LJ).

**Relocation abroad**—See **Removal from jurisdiction** under s 13 at para [2.267\[2\]](#).

**CAOs for contact cannot be made without first determining with whom a child lives**—[ChA 1989](#) does not require that in every case there should be an order specifying where the child should live as a prerequisite for a contact application; all that is necessary is that there should be a person defined or capable of definition with whom the child lives. If one parent is the primary carer but does not trouble to obtain an order enshrining her role, an order

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for contact can still be made against her as the person with whom the child lives (*Re H (Contact: Adverse Findings of Fact)* [2011] EWCA Civ 585, [\[2011\] 2 FLR 1201](#)).

**Directions and conditions attached to CAOs**—The court has specific powers to impose directions and conditions on CAOs and to 'make such incidental, supplemental or consequential provision as [it] thinks fit': see s 11(7) and ss 11A – 11H.

**Enforcement of CAOs**—Courts have additional tools for enforcement where such orders are breached, including curfews, tagging and unpaid work: ss 11J–11N and Sch A1.

Financial compensation may be ordered for losses sustained by failure, without reasonable excuse, to comply with an order (ss 11O–11P).

Note also FPR PD12N *Enforcement of [Children Act 1989](#) Child Arrangements Orders: Disclosure of Information to Officers of the National Probation Service*.

**[2.245[6]]**

**Warning notices on CAOs**—All CAOs must have a warning notice on them, setting out the consequences of not complying with the order: [ChA 1989](#), 11I, and see s 11J Enforcement orders at [2.259](#) and PG D8 at [1.142](#).

**Order or recital: warning notice**—A CAO must be made in terms that comply with s 8(1) and must have a warning notice attached, whereas a recital in declaratory terms does not have to comply with s 8(1) and no warning notice is attached. Thus, it may be more appropriate for consent orders to set out the agreed regime as a recital or schedule to the order on the basis of which the court then applies the 'no order' principle. See further under s 11I. See also Orders generally under FPR 2010, r 12.21.

**Contempt of court**—See review of case law in *Re B (A Child) (Sentencing In Contempt Proceedings)* [2025] EWCA Civ 1048, [\[2025\] 2 FLR 1035](#) where the mother had repeatedly breached orders made in private law children proceedings.

**Revised protocol for referrals of families to Supported Child Contact Centres by Judges and Magistrates**—See Protocol (November 2023) on the NACCC website at [www.naccc.org.uk](http://www.naccc.org.uk) (tel 0115 948 4557).

**Procedure for application for s 8 order after the imposition of a s 91(14) order**—See FPR 2010, PD12Q and guidance from case law under s 91(14) at para [2.357\[4\]](#).

**Contact – ECHR 1950**—In *Re C (Direct Contact: Suspension)* [\[2011\] 2 FLR 912](#), CA, at [37]–[47], after reviewing the Strasbourg jurisprudence and domestic jurisprudence, Munby LJ noted that they were 'to the same effect' if 'somewhat differently expressed' (at [43]), and derived the following propositions:

- (1) Contact between parent and child is a fundamental element of family life and is almost always in the interests of the child.
- (2) Contact between parent and child is to be terminated only in exceptional circumstances, where there are cogent reasons for doing so and when there is no alternative. Contact is to be terminated only if it will be detrimental to the child's welfare.
- (3) There is a positive obligation on the State, and therefore on the judge, to take measures to maintain and to reconstitute the relationship between parent and child, in short, to maintain or restore contact. The judge has a positive duty to attempt to promote contact. The judge must grapple with all the available alternatives before abandoning hope of achieving some contact. He must be careful not to come to a premature decision, for contact is to be stopped only as a last resort and only once it has become clear that the child will not benefit from continuing the attempt.

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- (4) The court should take a medium-term and long-term view and not accord excessive weight to what appear likely to be short-term or transient problems.
- (5) The key question, which requires “stricter scrutiny”, is whether the judge has taken all necessary steps to facilitate contact as can reasonably be demanded in the circumstances of the particular case.
- (6) All that said, at the end of the day the welfare of the child is paramount; “the child's interest must have precedence over any other consideration.”

The positive obligation under ECHR 1950, Art 8 on authorities, including the court, is not absolute – whilst authorities must do their utmost to facilitate the co-operation and understanding of all concerned, any obligation to apply coercion in this area must be limited since the interests, as well as the rights and freedoms, of all concerned must be taken into account, and more particularly so must the best interests of the child (*Re W (Direct Contact)* [2012] EWCA Civ 999, [\[2013\] 1 FLR 494](#), per McFarlane LJ at [41]).

In *Re A (Intractable Contact Dispute: Human Rights Violations)* [2013] EWCA Civ 1104, [\[2014\] 1 FLR 1185](#) (at [48]), McFarlane LJ confirmed that the SC decision in *Re B (Care Proceedings: Appeal)* [2013] UKSC 33, [\[2013\] 2 FLR 1075](#) had clarified the appellate court's task as being that of conducting a review of the discharge by the lower court of its duty under HRA 1998, s 6 not to act in a manner which is incompatible with an ECHR right. In *Re A*, it was held (at [51]) that there had been systemic failure sufficient to violate the Art 8 rights of the child and her father to have an effective relationship with one another. For further consideration of the obligation on the court, see *Re M (Children) (Ultra-Orthodox Judaism: Transgender Parent)* [2017] EWCA Civ 2164, [\[2018\] 2 FLR 800](#) (at [61]), and *Re G (Children: Intractable Dispute)* [2019] EWCA Civ 548, [\[2019\] 2 FLR 366](#) (at [65]).

For the procedure to be followed in making a claim under HRA 1998, see annotation thereto and FPR 2010, r 29.5.

**[2.245[7]]**

**Alienating behaviours allegations (formerly 'parental alienation')**—In *Re Y (Experts and Alienating Behaviour: The Modern Approach)* [2026] EWFC 38 (*Re Y (2026)*), McFarlane P reviewed key developments including: (1) his decision in *Re C (Parental Alienation: Instruction of Expert)* [2023] EWHC 345 (Fam), [\[2023\] 2 FLR 1171](#) (*Re C (2023)*); (2) the Family Justice Council 'Guidance on responding to a child's unexplained reluctance, resistance or refusal to spend time with a parent and allegations of alienating behaviour' (December 2024) (*FJC Guidance (2024)*) (at [www.judiciary.uk/related-offices-and-bodies/advisory-bodies/family-justice-council/resources-and-guidance/parental-alienation/](http://www.judiciary.uk/related-offices-and-bodies/advisory-bodies/family-justice-council/resources-and-guidance/parental-alienation/)); (3) applications made (as in *O v C* [\[2025\] EWFC 334](#) (Fam) and *Re Y (2026)* itself) to set aside findings of alienating behaviours that had been based not on a factual investigation but on the opinion of a psychologist; (4) prospective rule changes relating to the instruction of experts in such cases. In so doing, McFarlane P consolidated and developed good practice guidance (summarised below).

**Alienating behaviours – meaning**—There is no evidential basis for what had become known as 'parental alienation syndrome'; it is not a diagnosable condition but rather a process of manipulation of children perpetrated by one parent against the other through what are termed as 'alienating behaviours'; whether there have been alienating behaviours is, fundamentally, a question of fact (*Re Y (2026)* at [40]; *Re C (2023)* at [103]). Alienating behaviours may include portraying the other parent in an unduly negative light to the child, suggesting that the other parent does not love the child, providing unnecessary reassurance to the child about time with the other parent, contacting the child excessively when with the other parent, and making unfounded allegations or insinuations, particularly of sexual abuse (*Re S (Parental Alienation: Cult)* [2020] EWCA Civ 568 at [9]; see also *FJC Guidance (2024)* at para 105).

**Alienating behaviours – terminology**—The *FJC Guidance (2024)* glossary (at p 4) identifies the following five terms:

- Attachment, affinity and alignment (AAA) – reasons why children may favour one parent over another, or reject a parent, which are typical emotional responses to parenting experiences and not the result of psychological manipulation by a parent.



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- Appropriate justified rejection (AJR) – a situation where a child's rejection of a parent is an understandable response to that parent's behaviour towards the child and/or the other parent.
- Alienating Behaviours (AB) – psychologically manipulative behaviours, intended or otherwise, by a parent towards a child which have resulted in the child's reluctance, resistance or refusal to spend time with the other parent.
- Protective behaviours (PB) – behaviours by a parent towards a child in order to protect the child from exposure to abuse by the other parent, or from suffering harm (or greater harm) as a consequence of the other parent's abuse.
- Reluctance, resistance or refusal (RRR) – behaviours by a child concerning their relationship with, or spending time with, a parent, which may have a variety of potential causes.

**Alienating behaviours – three elements**—The guidance provides that the court will need to be satisfied that three elements are established before it could conclude that alienating behaviours had occurred:

- (i) the child is reluctant, resistant or refusing to engage in, a relationship with a parent or carer; *and*
- (ii) the reluctance, resistance or refusal is not consequent on the actions of that parent towards the child or the other parent, which may therefore be an appropriate justified rejection by the child (AJR), or is not caused by any other factor such as the child's alignment, affinity or attachment (AAA); *and*
- (iii) the other parent has engaged in behaviours that have directly or indirectly impacted on the child, leading to the child's reluctance, resistance or refusal to engage in a relationship with that parent (*Re Y (2026)* at [41]; *FJC Guidance (2024)* at para 10).

**Alienating behaviours and domestic abuse**—Allegations of domestic abuse and parental alienation cannot be equated; the court's deliberations should begin with domestic abuse and review the alienating behaviours allegations through that prism (*FJC Guidance (2024)* at paras 17, 59–60). There is an obvious difference between a case where a parent and/or child are the victims of domestic abuse and then go on to approach the other parent, being the perpetrator of that abuse, in a negative manner, on the one hand, and a case where the other parent has not been abusive and a child's reluctance, resistance or refusal to relate to that parent has arisen for other reasons (*Re Y (2026)* at [40]). Findings on significant and relevant allegations of domestic abuse might provide an understandable context for a child's appropriate justified rejection (AJR), or in protective behaviours (PB) or a traumatic response on the part of the victim parent (*Re Y (2026)* at [66]).

**Alienating behaviours – case management**—Where allegations of alienating behaviours are made, early (and ongoing) robust case management is required including in respect of fact-finding (see *FJC Guidance (2024)* at paras 28–65).

**Alienating behaviours – the voice of the child**—Particular care should be taken when considering the wishes and feelings expressed by children in cases involving alienating behaviours allegations; professionals should guard against unfairly dismissing the child's voice or making assumptions in response to the style of language used (*FJC Guidance (2024)* at paras 69–72).

**Alienating behaviours and experts**—The factual matrix around allegations of alienating behaviours is a matter for the court alone; it is not a matter for expert psychological evidence; any findings of fact once made will then, but only then, be important material for an expert or Cafcass officer tasked with advising the court on issues of welfare (*Re Y (2026)* at [45]; *FJC Guidance (2024)* at para 76). In future, permission should not be given under [CFA 2014, s 13](#) for the instruction of an expert 'psychologist' who is neither registered by a relevant statutory body, nor chartered by the BPS (British Psychological Society); it would be good practice, before a potential expert is appointed, for them to be asked to state whether they hold a Health and Care Professions Council (HCPC) protected title, and if so what that is, before any order is made appointing them as an expert; the 'registered or chartered' requirement should only be departed from where there are clear reasons for doing so (for example no registered or chartered expert is reasonably available); where that is so, those reasons should be set out in a short judgment; the expectation should be that the degree of rigour that is applied by professionals and the court in

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managing the instruction of an expert in public law proceedings, is similarly applied in private law proceedings of this nature (*Re Y* (2026) at [73]–[74]; and see *FJC Guidance* (2024), chapter 7). The CA has endorsed the guidance given in *Re C* (2023) and *Re Y* (2026) as to good practice in relation to the instruction of psychologists in family proceedings (*Re H (Children: Expertise of Witness)* [2026] EWCA Civ 249 at [24]).

**Alienating behaviours – applications to set aside findings**—For those seeking to challenge findings of alienating behaviours, the better course (rather than to appeal) is likely to be to go back to the first instance court either under FPR 2010, Part 18, or to apply for past findings to be reopened as part of a substantive application to discharge or vary existing orders; the first instance court will then make a decision as to allocation; there is no requirement that the application should be heard at the same level of judiciary, although there may well be benefit in going back before the original judge if he or she is available; in other cases (as in *Re Y* (2026)), it may be appropriate for the application to be transferred to the High Court tier (*Re Y* (2026) at [77]). The FJC will be invited to consider proposals for a more proportionate and less costly alternative to the full FPR 2010, Pt 18 procedure (*Re Y* (2026) at [85]). See also analogous guidance from the CA in *Re H (Children: Expertise of Witness)* [2026] EWCA Civ 249 at [71]–[73]).

**Alienating behaviours – welfare evaluation**—Findings of alienating behaviours are to be weighed in the balance as part of the overall welfare evaluation (see *FJC Guidance* (2024), chapter 5 which addresses practical considerations including 'interim measures', 'assessments' and 'change of placement'). The obligation on the court is to respond with exceptional diligence and take whatever effective measures are available and appropriate in the child's welfare interests (see discussion in *Re S (Parental Alienation: Cult)* [2020] EWCA Civ 568 at [7]–[13]).

**Alienating behaviours – the modern approach**—In *Re Y* (2026) (at [75]), McFarlane P said: 'it is possible to summarise the modern approach in short terms:

- (i) As the full title to the FJC guidance makes plain, the reason for the court's investigation should be "a child's unexplained reluctance, resistance or refusal to spend time with a parent", rather than the allegations that one or other parent may be making against the other;
- (ii) Where a child is reluctant, resisting or refusing to engage in a relationship with a parent or carer (element (i) of the three elements in paragraph 10 of the guidance), then the court's focus will move to element (ii) to consider whether that reluctance, resistance or refusal is a consequence of the action of the estranged parent, where it is alleged that that parent has been abusive to the child and/or caring parent;
- (iii) If it is found that the estranged parent has not behaved in a way in which the child's reaction can be seen as an "appropriate justified reaction" [AJR] to such behaviour, or, for other reasons, it is found that the child's reaction is not caused by any factor such as a child's ordinary alignment, affinity or attachment [AAA] to the parent with care, then the court will move on to element (iii);
- (iv) It is only at the stage of element (iii) that the court will focus on whether the caring parent has engaged in alienating behaviours that have directly or indirectly impacted on the child, leading to the child's reluctance, resistance or refusal to engage with the estranged parent.
- (v) Thus, where domestic abuse is alleged, and there is a cross-allegation of alienating behaviour, if a fact-finding process is required, the focus of the factfinding must be to first determine the issues of domestic abuse and secondly to consider whether the child's refusal to engage with the estranged parent is an 'appropriate justified reaction' to any abusive behaviour, or that what has occurred is the result of protective behaviour or a traumatic response on the part of the victim parent.
- (vi) Courts should not follow the route adopted by the judges in *O v P* [presumably *O v C* [\[2025\] EWFC 334 \(Fam\)](#)] and the present case in determining the issue of alienating behaviour on its own and without determining the underlying facts and, where it is alleged, the primary issue of domestic abuse;
- (vii) Courts should not appoint an expert to advise in cases where a child is reluctant, resistant or refusing to engage with a parent unless and until there is clarity and, if necessary, facts that have been found, as to the parents' past behaviour towards each other and the child and, if domestic abuse is proved, whether the child's reaction to that behaviour is an appropriate one.'

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**Transfer of living arrangements**—The transfer of residence where contact is being frustrated was described as a 'judicial weapon of last resort' (*Re A (Residence Order)* [2010] 1 FLR 1083, CA). However, in *Re L (A Child)* [2019] EWHC 867 (Fam), [2019] All ER (D) 66 McFarlane P distanced himself from such language which risks moving the focus of the decision-making away from the welfare of the child. Most importantly, he warned against the danger in placing too much emphasis on the phrase 'last resort' and reiterated that the court cannot put a gloss on the paramountcy principle in s 1. The test is, and must always be, based on a comprehensive analysis of the child's welfare and a determination of where the welfare balance points in terms of outcome. What is required, therefore, is for the judge to consider all the circumstances in the case that are relevant to the issue of welfare, consider those elements in the welfare checklist in s 1(3) which apply to the facts of the case and then, taking all those matters into account, determine which of the various options best meets the child's welfare needs.

Examples of 'transfer cases' include: (1) *JB v DJ* [2021] EWHC 3524 (Fam), where a judge had erred in transferring a child's residence from her mother to her father because he had concentrated excessively on the issue of compliance with no holistic consideration of the child's needs and had given too little weight to the effect of transfer on the child. He had also erred in failing to make the child a party to the proceedings and appoint a guardian on her behalf; (2) *Re C (Residence Order)* [2008] 1 FLR 211, CA, where making an immediate order for transfer without giving time for a relationship to develop between the child and father had been necessary because of the mother's intractability; (3) *Re Y (a child) (Private Law: Interim Change of Residence)* [2014] EWHC 1068 (Fam), where the court took the highly unusual step of transferring residence at an interim stage due to mounting concerns about the mother's delusional beliefs that the father had sexually abused the child; (4) *TB v DB (Change of Residence)* [2013] EWHC 2275 (Fam), where the court has no confidence that any scheme of prohibitory orders to accompany an order for shared living arrangements will alter the attitude or conduct of the intractable parent then a transfer of living arrangements while the child is relatively young may be the appropriate option; (5) *Re E-R (Child Arrangements)* [2017] 2 FLR 501, FD, where following the death of her mother the court held that moving to live with her father was likely to cause psychological harm to a six-year-old girl and that she should remain living with family friends (also noting that it was fundamental to her psychological well-being that her father should play a full part in her life and therefore making provision for contact with him); (6) *Re H (A Child) (Parental Alienation)* [2020] 1 FLR 401, where the court found that the mother had plainly alienated the child against his father and there was no other cogent explanation for the breakdown in contact, and balancing the potential adverse consequences of trauma and emotional harm as a consequence of a transfer in living arrangements against the short- and long-term benefits of having a loving and beneficial relationship with both parents, found the child should live with the father; (7) *Re MFS (Appeal: Transfer of Primary Care)* [2019] EWHC 768 (Fam), where the court upheld the decision that an eight-year-old boy should cease living with his mother and go and live with his father because the mother's actions in being obstructive about contact and seeking to alienate her son from his father had caused him significant emotional harm; and (8) *F v M* [2021] EWFC 18, where the court applied a comprehensive and holistic approach when considering four possible options for residence in a case where findings had been made that a father had alienated the children from their mother.

**Suspended transfer of living arrangements**—Where a parent persists in disobeying an order for the other parent to have contact with the children, the court may order the transfer of the living arrangements of the children, but suspend the operation of the transfer upon the obdurate parent complying with the order (*Re D (Children)* [2009] EWCA Civ 1467).

**[2.245[8]]**

**Domestic abuse – general definitions**—The [Domestic Abuse Act 2021, s 1](#) (DAA 2021) defines the term 'domestic abuse'. Although it does so 'for the purposes of this Act', it seems likely the definition will be widely used elsewhere. The [DAA 2021](#) defines domestic abuse in two parts: first, the relationship between the abuser and the abused; and second, what constitutes abusive behaviour. It lists five behaviours which are not mutually exclusive. The reference to 'behaviour' covers both a single incident and a course of conduct. 'Economic abuse' is specifically defined as behaviours which must have a substantial and adverse effect on a victim's ability to acquire, use or maintain money or other property, or to obtain goods or services. The new legislation also provides that a person

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may indirectly abuse another person through a third party, such as a child or another member of the same household (s 1(5)).

[Section 3](#) DAA 2021 specifically recognises that domestic abuse can impact on a child who sees or hears, or experiences the effects of the abuse and it treats such children as victims of domestic abuse in their own right where they are related to either the abuser or the abused.

PD12J adopts the definition of domestic abuse from the [DAA 2021](#) and incorporates [ss 1, 2](#) and [3](#) of the DAA 2021. PD12J, para 2B confirms that domestic abuse includes, but is not limited to, 'forced marriage, honour-based abuse, dowry-related abuse and transnational marriage abandonment'. In *Re A (Children)* [2019] EWCA Civ 74 the Court of Appeal found that stranding was a broad concept which could include any action taken by a spouse who put obstacles in the way of the other spouse being able to return to the UK. Even if that attempt was unsuccessful, it could still support a conclusion of controlling or coercive behaviour as referred to in PD12J. In *Re S (Children: Transnational Marriage Abandonment)* [2025] EWCA Civ 1058 at [83], Peter Jackson LJ observed: 'The significance of TMA in a case of child abduction is that it compounds the abduction by severing the child from the left-behind parent, which is often the perpetrator's intention. In an appropriate case, the court should, as a matter of common justice to the left-behind parent, recognise TMA for what it is: an extreme form of domestic abuse and harm towards them and the children'.

**Domestic abuse – coercive and/or controlling behaviour**—[DAA 2021, s 1\(3\)\(c\)](#) defines 'controlling or coercive behaviour': 'controlling behaviour' is a range of acts designed to make a person subordinate and/or dependent by isolating them from sources of support, exploiting their resources and capacities for personal gain, depriving them of the means needed for independence, resistance and escape and regulating their everyday behaviour; 'coercive behaviour' is a continuing act or a pattern of acts of assault, threats, humiliation and intimidation or other abuse that is used to harm, punish or frighten their victim.

In *SD v AHF (Appeal: Coercive and controlling behaviour: Inference or Speculation)* [2019] EWHC 1513 (Fam), the court held that the dividing line between behaviour which can properly be characterised as coercive or controlling and within PD12J and behaviour which does not cross that threshold is not a bright line. In *JH v MF* [2020] EWHC 86 (Fam), Russell J held that the use of language can be part of a pattern of controlling, abusive and coercive behaviour; in that case, she also carried out a detailed analysis of the correct approach to the issue of rape within family proceedings, and held that '... it is clear that the judge's approach towards the issue of consent is manifestly at odds with current jurisprudence, concomitant sexual behaviour, and what is currently acceptable socio-sexual conduct'. In *F v M* [2021] EWFC 4, Hayden J urged greater prominence to be given to coercive and controlling behaviour in family court proceedings. In *Re H-N and ors (Children) (Domestic Abuse: Finding of Fact Hearings)* [2021] EWCA Civ 448, the Court of Appeal confirmed that there are many cases in which the allegations are not of violence, but of a pattern of behaviour which it is now understood is abusive; this has led to an increasing recognition of the need in many cases for the court to focus on a pattern of behaviour which is reflected by FPR PD12J. It is now accepted without reservation that it is possible to be a victim of controlling or coercive behaviour or threatening behaviour without ever sustaining a physical injury. Importantly, it is now also understood that specific incidents, rather than being seen as free-standing matters, may be part of a wider pattern of abuse or controlling or coercive behaviour. In *F v M* [2025] EWHC 621 at [39], Hayden J warned that: 'Allegations, wrongly brought, may serve, for a variety of reasons, to make life more difficult for a genuine victim in the future'.

The proper approach of the court to cases involving allegations of controlling and coercive behaviour was confirmed in *Re H-N* (above), namely: (a) whether there should be a finding of fact hearing; (b) the challenges presented by Scott Schedules as a means of pleading a case; (c) if a fact-finding hearing is necessary and proportionate, how should an allegation of domestic abuse be approached; and (d) the relevance of criminal law concepts. See *Re B (A Child)* [2022] EWCA Civ 1439, [\[2023\] 1 FLR 582](#) where the Court of Appeal confirmed that the decision about whether there should be a fact-finding hearing turns on the question of whether the allegations are relevant to the issue between the parties and capable of having an impact on the final decision. The guidance issued by the PFD in May 2022 indicating that the fundamentals were relevance, purpose, and proportionality, was reiterated. For a review of authorities as to whether a fact-finding hearing should be conducted, see *A v K (Appeal: Fact-Finding: PD12J)* [2024] EWHC 1981 (Fam) at [44]–[47] and *ER v NT (Need for fact finding hearing)* [2025] EWHC 2146 at

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[45]–[54]. In *A v B and C* [2023] EWCA Civ 360, the court confirmed that the family court should refrain from introducing and developing its own free-standing definitions of rape, sexual assault and consent, or to import such definitions from criminal law because Parliament had comprehensively considered the family court's approach to domestic abuse during the passage of the [Domestic Abuse Act 2021](#) into law. There was no need to introduce an additional legal threshold to be satisfied before the court could find that a complainant had been the victim of rape or sexually abusive behaviour.

*Re JK (A Child) (Domestic Abuse: Finding of Fact Hearing)* [2021] EWHC 1367 (Fam) is a case where the court followed the principles in PD12J and applied the guidance in *Re H-N* to make findings of fact that a father's behaviour constituted controlling and coercive behaviour in that he had used intimidation, threat of violence, control of financial and social interaction, and psychological manipulation to subjugate the mother to his will. In particular, the court concluded that slavish adherence to Scott Schedules would not be helpful and therefore also required short narrative summaries of the parties' respective cases about each other's behaviour. In *GK v PR* [2021] EWFC 106 where the appellant's counsel had mounted a case based on allegations contained in a Scott Schedule that did not cover all the allegations raised by the appellant in her written evidence, it was confirmed that a Scott Schedule approach was unsuitable in such cases. It risked the judge approaching the case in a formulaic, incident-by-incident way that detracted from the holistic overview required to determine fluid and nuanced patterns of behaviour and also risked the omission of allegations that were directly relevant to the court's task of surveying the totality of the evidence.

**Domestic abuse: an overview of PD12J and the approach of the court**—FPR PD12J *Child Arrangements and Contact Order: Domestic Abuse and Harm* (see para [3.656](#)):

- '... applies to any family proceedings ... in which an application is made for a child arrangements order, or in which any question arises about where a child should live, or about contact between a child and a parent or other family member, where the court considers that an order should be made' (para 1). [Note: it is suggested that there are two situations: (1) (much more commonly) family proceedings where an application is made for a CAO; and (2) (much rarer) other family proceedings in which any question arises about such issues. Whether the final clause 'where the court considers that an order should be made' strictly applies to both situations or only to the second is probably a moot point];
- 'The purpose is to set out what the ... [court] ... is required to do in any case in which it is alleged or admitted, or there is other reason to believe, that the child or a party has experienced domestic abuse perpetrated by another party or that there is a risk of such abuse' (para 2). Note the word 'required'.

PG 12J is divided by a series of headings:

- Summary (paras 1–2)
- Interpretation (paras 2A–3A, in which key definitions are set out, very largely drawn from the [DAA 2021](#))
- General principles (paras 4–8)
- Before the FHDRA (paras 9–10)
- First hearing/FHDRA (paras 11–14)
- Admissions (para 15)
- Directions for a fact-finding hearing (paras 16–20)
- Reports under Section 7 (paras 2–23, and see para 8)
- Representation of the child (para 24)
- Interim orders before determination of relevant facts (paras 25–27, and see also paras 5 and 12)
- The fact-finding hearing or other hearing of the facts where domestic abuse is alleged (paras 28–31)
- In all cases where domestic abuse has occurred (paras 32–34)



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- Factors to be taken into account when determining whether to make a child arrangements order in all cases where domestic abuse has occurred (paras 35–37)
- Orders under [section 91\(14\)](#) of the Children Act 1989 (para 37A, but see also paras 4A.1–4A.3)
- Directions as to how contact is to proceed (paras 38–39)
- The reasons of the court (para 40).

In *K v K* [2022] EWCA Civ 468, [\[2022\] 2 FLR 1064](#) the court gave further guidance on how to manage domestic abuse allegations, in particular (1) emphasising the need to focus on the over-arching issue of coercive and controlling behaviour and the need for a broad panoramic evaluation of the evidence; and (2) correcting any perception that it was a requirement for a family judge to determine each and every allegation of domestic abuse during a fact-finding exercise: instead a family court should determine only those factual matters which are likely to be relevant to deciding whether to make a child arrangements order and, if so, on what terms.

Following this, McFarlane P issued 'Fact-finding Hearings and Domestic Abuse in Private Law Children Proceedings: Guidance for Judges and Magistrates' (5 May 2022): see para [5.160](#).

See eg *Re O (Appeal: Duty to Consider Fact-Find)* [\[2024\] EWHC 839 \(Fam\)](#), [\[2024\] 2 FLR 1026](#) for a useful summary by Henke J of the process where domestic abuse is alleged, confirming that FPR PD12J is key. In *Re A (Appeal: Findings of Fact)* [2025] EWHC 1279, [\[2025\] 2 FLR 1021](#) Hayden J said (at [13]): 'Efficient and proportional case management, strict adherence to orders, and judicial continuity should not be regarded as merely aspirational, they are essential. This is true generally, but it falls into particularly stark relief when the Court is addressing allegations of domestic abuse. Judicial continuity in this sphere is not only necessary to achieve more effective hearings and, accordingly, better-informed decision-taking, it is, in itself, a facet of child protection'.

**Domestic abuse – contact applications**—*Re L, Re V, Re M and Re H (Contact: Domestic Violence)* [\[2000\] 2 FLR 334](#), CA, remains a seminal decision as to the approach courts should take with contact applications in which allegations of domestic violence are raised, including – unusually but significantly – reference to the joint report of Drs Sturge and Glaser ([\[2000\] Fam Law 615](#)), and led to the development of what is now FPR PD12J. This seminal significance was confirmed in *Re H-N* (above) which confirmed that PD12J is and remains fit for the purpose for which it was designed, namely to provide the courts with a structure enabling the court first to recognise all forms of domestic abuse and thereafter on how to approach such allegations when made in private law proceedings.

See *Re K (Contact)* [\[2017\] 1 FLR 530](#), CA as an example of a case where if the judge who was determining a father's application for direct contact had been referred to FPR PD12J, paras 33 and 34 and had been informed of the available options of direct work with the father and the children, he might not have fallen into the trap of reaching a 'premature decision' that the father was to have no direct contact.

**Domestic abuse – fact-finding hearings**—FPR PD12J provides that the court should determine as soon as possible whether it is necessary to conduct a fact-finding hearing in relation to any disputed allegation of domestic abuse (paras 5 and 16). It is not appropriate for the judge to accept a submission of no case to answer because of the quasi-inquisitorial nature of the enquiry and the objective of identifying and resolving issues of fact relevant to the best interests of the child (*Re R (Fact-Finding Hearing)* [\[2009\] 2 FLR 83](#), CA; *JEG v IS and Another (Sexual Abuse Allegations)* [\[2014\] EWHC 287 \(Fam\)](#)).

In determining whether it is necessary to conduct a fact-finding hearing, the court (para 17) 'should consider: (a) the views of the parties and of Cafcass; (b) whether there are any admissions by a party that provide a sufficient factual basis on which to proceed; (c) if a party is in receipt of legal aid, whether the evidence required to be provided to obtain legal aid provides a sufficient factual basis on which to proceed; (d) whether there is other evidence available to the court that provides a sufficient factual basis on which to proceed; (e) whether the relevant issues in relation to the children's welfare can be determined without a fact-finding hearing; (f) the nature of the evidence required to resolve disputed allegations; (g) whether the nature and extent of the allegations, if proved, would be relevant to the

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issue before the court; and (h) whether a separate fact-finding hearing would be necessary and proportionate in all the circumstances of the case.

In *Re H-N* (above), the Court of Appeal confirmed that PD12J does not establish a free-standing jurisdiction to determine domestic abuse allegations which are not relevant to the determination of the child welfare issues that are before the court. A fact-finding hearing on the issue of domestic abuse should be established when such a hearing is 'necessary' in order to:

- (a) provide a factual basis for any welfare report or other assessment;
- (b) provide a basis for an accurate assessment of risk;
- (c) consider any final welfare-based order(s) in relation to child arrangements; or
- (d) consider the need for a domestic abuse-related activity.

Where a fact-finding hearing is 'necessary', only those allegations which are 'necessary' to support the above processes should be listed for determination. In every case where domestic abuse is alleged, both parents should be asked to describe in short terms (either in a written statement or orally at a preliminary hearing) the overall experience of being in a relationship with each other. Where one or both parents assert that a pattern of coercive and/or controlling behaviour existed, and where a fact-finding hearing is necessary in the context of PD12J, that assertion should be the primary issue for determination at the fact-finding hearing. Any other, more specific, factual allegations should be selected for trial because of their potential probative relevance to the alleged pattern of behaviour, and not otherwise, unless any particular factual allegation is so serious that it justifies determination irrespective of any alleged pattern of coercive and/or controlling behaviour (a likely example being an allegation of rape).

Where the court determines that a fact-finding hearing is not necessary, the order must record the reasons for that decision. However, FPR PD12J also expects a continuing scrutiny by the court of whether domestic abuse is a factor, and dealing with cases expeditiously must not take priority over ensuring the safety of the child and the carer; in *Re L-G* (above), it was held that the fact that a child arrangements order was made by consent did not absolve the court from the ongoing responsibility of considering whether domestic abuse was an issue or, where it was established, from satisfying itself that the order did not expose the child and the mother to the risk of further harm.

In *Re B (A Child)* [2022] EWCA Civ 1439, [\[2023\] 1 FLR 582](#), the court reiterated the framework set out in PD12J, para 17 as to the factors to be considered in determining whether it is necessary to conduct a fact-finding hearing. See also the President's Guidance of May 2022 on Fact-finding Hearings and Domestic Abuse in Private Law Children Proceedings (para [5.160](#)) which confirmed that the fundamentals are relevance, purpose and proportionality. For a review of authorities as to whether a fact-finding hearing should be conducted, see *A v K (Appeal: Fact-Finding: PD12J)* [2024] EWHC 1981 (Fam) at [44]–[47]) and *ER v NT (Need for fact finding hearing)* [2025] EWHC 2146 at [45]–[54]).

**Domestic abuse – legal approach**—The burden of proof lies on the party making the allegations. Even if allegations made are of a very serious nature, that does not alter the standard of proof, which is the balance of probabilities (*Re B (Children) (Care Proceedings: Standard of Proof)* [\[2008\] 2 FLR 141](#), HL, and see also eg *JH v MF* [2020] EWHC 86 (Fam), [\[2020\] 2 FLR 344](#)).

In *Re R (Children) (Care Proceedings: Fact finding Hearings)* [\[2018\] 2 FLR 718](#) the court stated that it was fundamentally wrong for the family court to be drawn into an analysis of what had happened through the prism of criminal principles and concepts as proceedings could easily become over-complicated and side-tracked from the central task of simply deciding what has happened and what is the best future course for a child. See *Re T (Appeal: Findings of Fact)* [2024] EWHC 3327, where Cobb J held that the trial judge had wrongly analysed the evidence of the father's alleged behaviour (including physical chastisement of the child, and rape of the mother) by the direct application of the criminal law.

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In *R v P (Children: Similar Fact Evidence)* [2020] EWCA Civ 1088 the court summarised the principles to be applied when deciding whether to admit similar fact evidence in family proceedings:

- (1) the court has a broad power to control evidence under FPR 2020, r 22.1;
- (2) PD12J applies when it is alleged that there is reason to believe that a child or a party has experienced domestic abuse, including coercive or controlling behaviour, perpetrated by another party. The definition of domestic abuse in PD12J as consisting of acts or a pattern of acts is an acknowledgment that some forms of abuse does not consist of isolated individual incidents, but of harmful patterns of behaviour;
- (3) the analysis in *O'Brien v Chief Constable of South Wales* [2005] UKHL 26 applies to family proceedings. In cases where is a dispute about the admission of evidence of this kind, the judge has to address two questions: first, whether the evidence is relevant as potentially making the matter requiring proof more or less probable. If so, it is admissible. Second, whether it is in the interests of justice for the evidence to be admitted. That requires a balancing of the factors identified in *O'Brien*.
- (4) Where the similar fact evidence comprises an alleged pattern of behaviour, the assertion is whether the core allegation is more likely to be true because of the character of the person accused, as shown by conduct on other occasions. The extent to which the facts relating to the other occasions have to be proved is set out in *R v Mitchell (Angeline)* [2016] UKSC 55. The court must be satisfied on the basis of proven facts that propensity is proven, in each case to the civil standard. The proven facts must form a sufficient basis to sustain a finding of propensity, but each individual item of evidence does not have to be proved.

*F v M* [2021] EWFC 4 was the key initial decision about controlling and coercive behaviour in family proceedings. In particular, it:

- (1) summarises the approach to similar-fact evidence (sometimes important in such cases), the key questions being (1) is the evidence relevant to the issues and therefore admissible [query: whether 'relevance' and 'admissibility' should strictly be treated as distinct issues], and (2) if so, is it in the interests of justice for it to be admitted [6]–[7];
- (2) illustrates what may, in the overall context, amount to controlling and coercive behaviour [60]–[61]; and
- (3) discusses the meaning of controlling and coercive behaviour in family in private law children proceedings [108]–[109].

In *Re A v B* [2022] EWHC 3089 (Fam), [\[2023\] 2 FLR 567](#) Knowles J provided guidance about the approach of the family court to a complainant's sexual history when determining allegations of rape or sexual assault in the absence of guidance on this particular issue in PD12J. This guidance was endorsed in *Re A v B and C* [2023] EWCA 360, [\[2024\] 1 All ER 1047](#) and involves: (a) an assessment of the relevance of the evidence for which permission is sought to be adduced, having regard to the need for the court to consider the wide canvas of evidence; (b) thereafter, where objection is made to such evidence being adduced, a balancing exercise as to the competing interests and ECHR rights involved; (c) at all times, consideration of the breadth of the court's powers to control the manner in which evidence is to be placed before it. Evidence about the issue of sexual history is likely to be found in a witness statement or in contemporaneous material such as text messages or images.

**Domestic abuse – welfare decisions**—In *Re M (Children: Contact in Prison)* [2024] EWCA 1104, [\[2025\] 1 FLR 550](#) at [18], the CA emphasised the importance of adhering to PD12J paras 36 and 37 when a court makes welfare decisions where domestic abuse has occurred: 'Specifically, the court should consider any harm the parent with care has suffered as a consequence of the domestic abuse, and which the child and the parent are at risk of suffering, if an order is made'. In *AA v BB* [2024] EWHC 934 at [39], Judd J held that the trial judge had been wrong to rely on the outcome of the criminal investigation to determine whether the children should have unsupervised contact with the father – 'It must be for the Family Court itself to determine whether it is satisfied that the physical and emotional safety of the child and parent can be secured before, during and after contact, based upon all the available evidence'.

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**Domestic abuse – relocation cases**—In *Re O (Domestic Abuse: International Relocation)* [2025] EWCA Civ 888, [2025] 2 FLR 1168 at [92]–[94] it was confirmed that where domestic abuse is a feature of an application for permanent international relocation of a child, FPR 2010, PD12J must be deployed in just the same way as in a domestic private law case; and when considering what will be the appropriate order in the best interests of the child, the court may well find it appropriate to consider (specifically in relation to 'harm' or 'risk' of harm in [ChA 1989, s 1\(3\)\(e\)](#)):

- (i) whether the abuse is in any respect ongoing, and how the victim(s) can be protected in each jurisdiction;
- (ii) the extent to which, if at all, the abuse has informed or influenced the applicant's decision to issue an application to relocate;
- (iii) what support (family or professional) will be available to the victims of abuse (abused parent and/or child) in this country and in the country to which relocation is sought?
- (iv) how the abused parent and/or child can be protected from further abuse from the perpetrator while living in this country and in the country to which relocation is sought. What, if any, orders would be available from the court in the country to which relocation is sought? What other protective measures are likely to be available in the country to which relocation is sought?
- (v) how ongoing risk to the abused parent and/or child from the perpetrator of the abuse can be assessed, and/or managed, if the abused parent and/or child is living in this country or abroad ('the court should ensure that any order for contact will not expose the child to an unmanageable risk of harm': PD12J, para 35); this is likely to be relevant to child arrangements ('time spent with') orders;
- (vi) what professional (or other) supervision of contact is available both in this country and in the country to which relocation is sought? How can indirect contact be managed and/or (if relevant) supervised?

**[2.245[9]]**

**Honour-based violence**—In *Re S (Findings of Fact: Honour Based Violence)* [2013] EWHC 15 (Fam), the court heard evidence from a specialist witness experienced in honour-based family systems that emphasised the lengths to which some traditional families will go when a member is considered to have brought dishonour upon them.

**Risk assessments**—The [ChA 1989, s 16A](#) requires a Cafcass officer carrying out any function in private law [ChA 1989](#) proceedings to carry out a risk assessment if he has cause to suspect that the child concerned is at risk of harm, and to provide that assessment to the court. See further under s 16A and FPR 2010, rr 16.33 and 12.34, and see PD16A, paras 11.1–11.7 and the amended Form 42. See also FPR PD12L *Risk Assessments under Section 16A*.

**Interim contact**—This is addressed in PD12J paras 5, 12, and 25–27 and eg *Re E, F and G (Interim Child Arrangements)* [2024] EWCA Civ 874, confirming where there are disputed allegations of domestic abuse, the court should not make an interim CAO unless it was satisfied that to do so was in the interests of the child and that the order would not expose the child or the other parent to an unmanageable risk of harm. See also *V v V* [2025] EWHC 945 (Fam) where the trial judge had been wrong to allow interim staying contact to continue after directing that a fact-finding hearing should be held.

Where a fact-finding hearing is adjourned part-heard, it is unusual for the court to order interim contact, not least because it raises the very question likely to be at issue in the proceedings, namely whether there should be any contact at all – see *S v S (Interim Contact)* [2009] 2 FLR 1586, FD.

**[2.245[10]]**

**Refusal of contact**—Complete refusals of direct contact and resultant orders for only very limited indirect contact lie at the extremities of the exercise of the court's powers; there should almost always be some contact between child and parent: see eg *Re Q (Implacable Contact Dispute)* [2016] 2 FLR 287, CA and *Re M* [2017] EWCA Civ 2164, [2018] 2 FLR 800. In the latter, it was held that courts had a duty to promote contact and would not be

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prevented from intervening where the adults involved were intransigent and the approach was no different merely because religious belief was in play. Two key principles were highlighted:

- (1) the function of a judge is to act as the 'judicial reasonable parent' judging the child's welfare by the standards of reasonable men and women today, having regard to the ever-changing nature of the world and always remembering that the reasonable person is receptive to change, broadminded, tolerant, easy-going and slow to condemn; and
- (2) the judge has a positive duty to promote contact, must grapple with all available alternatives before abandoning hope, must be careful not to come to a premature decision, and that contact must be stopped only as a last resort.

In *Re H-W (Child)* [2017] EWCA Civ 154, it was confirmed that the court should take a medium- and long-term view in considering whether to grant direct contact and should not accord excessive weight to what appeared to be short-term or transient problems.

It will only be in a rare and exceptional case that the court should agree there should be no contact: see eg *Re J-M (A Child)* [2015] 1 FLR 838, [2015] 1 FLR 838, *Q v Q (Contact: Undertakings) (No 3)* [2017] 1 FLR 438, *FD* and *Re G (Children) (Intractable Dispute)* [2019] EWCA Civ 548.

For a review of the authorities about refusing parental contact, see *ME v MP & R (Appeal: Termination of Contact)* [2019] EWHC 132 (Fam). These cases are very fact-specific but see by way of illustration

- *Re S (A Child) (Child Arrangements Order: Effect of Long-Term Supervised Contact on Welfare)* [2015] EWCA Civ 689, [2016] 2 FLR 217, where the fact that there would have to be long-term supervision of contact was not in itself a reason to refuse direct contact. Before the reintroduction of direct contact could be refused on grounds of disturbance to the child or caring parent, it would have to be shown that the disturbance went well beyond mere inconvenience;
- In *Re M (Children)* (above): held, wrong to refuse direct contact between children and their father where the father, who lived as a transgender person, had been shunned by their ultra-orthodox Jewish community and the children faced ostracism if there was direct contact;
- *PM v CF* [2018] EWHC 2658 (Fam), [2019] 1 FLR 670: the domestic abuse by the father was such that to permit him to have even indirect written contact risked destabilising the mother and adversely affecting the children (all of whom had been placed by the police in the UK Protected Persons Scheme);
- *JD & LD v VB* [2020] EWFC 16: an order for only indirect contact between an eight-year-old girl and her mother and half-sister was continued where the risk of destabilising her placement with her father and step-mother outweighed the harm which would inevitably be caused to her by refusing direct contact with her mother and half-sister;
- *D v E* [2021] EWFC 37, [2022] 1 FLR 582: it was in an eight-year-old child's best interests to make a CAO for no contact with her father. His criminal offending demonstrated a significant risk of harm to her, he had failed to acknowledge or mitigate that risk, and there was no alternative order that would adequately protect the child;
- *F v M* [2023] EWFC 5, [2023] 2 FLR 156: a father's coercive and controlling behaviour and the danger he posed to the physical and emotional safety of women and children was so serious that the court was justified in taking the rare step of making an order for no contact, including no indirect contact;
- *Griffiths v Kniveton* [2024] EWHC 199 (Fam), [2024] 2 FLR 160: findings including rape of the mother and where she was traumatised both by what happened and also by nearly five years of litigation: held that the trauma and distress to the mother, and in turn the impact of that on the child, if direct contact continued, was such that only letterbox contact should be allowed;
- *H (A Child: Contact: Domestic Abuse)* [2024] EWCA Civ 326: any decision to bring apparently successful contact to an indefinite end required strong justification. The court had to approach the fundamental welfare assessment underlying every decision with full alertness to the inherent value of the parent-child



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relationship and to the significance of any harm that a contact order might entail for the child or for the parent with care. Where those considerations conflicted, the court had to identify the best solution for the child or, where there was no good solution, the least harmful one.

**Contact disputes – separate representation of children**—As a matter of principle where the court is faced with difficult contact issues, consideration may be given to the children being separately represented (eg *Re H (Contact Order) (No 2)* [2002] 1 FLR 22, FD; *Re W (Contact: Joining Child as Party)* [2003] 1 FLR 681, CA; *Re M (Intractable Contact Dispute: Interim Care Order)* [2003] 2 FLR 636, FD). This case law and the principles underlying it were distilled into what is now PD16A, paras 7.1–7.4.

In *Re W (Representation of Child)* [2016] EWCA Civ 1051, [2017] 2 FLR 199 at [21], the court confirmed that although FPR 2010, r 16.29 is directed to the position of the child's solicitor, it also established the test for whether the child should be allowed to instruct his or her own solicitor. In *Re CS (A Child) (Appeal FPR 16.5: Sufficiency of Child's Understanding)* [2019] EWHC 634, [2019] 2 FLR 580, FD the court considered the correct approach when considering whether a child had sufficient understanding to conduct appeal proceedings without a guardian in accordance with FPR 2010, r 16.6(5). The court noted that in considering whether a child had 'sufficient understanding to conduct the proceedings' there had been a shift away from a paternalistic approach in favour of an approach which gave significantly more weight to the autonomy of the child. Thus, the earlier authorities had to be approached with a degree of caution. In determining whether the child had sufficient understanding, the court had to consider:

- (a) the child's level of intelligence;
- (b) emotional maturity;
- (c) factors undermining their understanding such as issues arising from their psychological, psychiatric or emotional state;
- (d) their reasons for wishing to instruct a solicitor directly or to act without a guardian and the strength of feeling accompanying those wishes;
- (e) their understanding of the issues in the case, their desired outcome, and whether those views were their own;
- (f) their understanding of the litigation process; and
- (g) the court's assessment of the risk of harm to the child and the child's appreciation of those risks.

Ideally, the assessment would be swift and pragmatic. In some cases, an expert assessment might be required where the solicitors' assessments were relatively evenly balanced or the court was otherwise unable to reach a clear view. See also *Re C (Child: Ability to Instruct Solicitor)* [2023] EWCA Civ 889, [2024] 1 FLR 363, at [43]–[58] in which Peter Jackson LJ placed emphasis on the guidance given by Black LJ in *Re W (above)*; and *Re A (Children)* [2025] EWCA Civ 1521 at [17]–[18], [20], where the children aged 16 and 15 ought to have been allowed separate representation to oppose their children's guardian's applications for passport orders and FMPOs.

**Electronic tagging in family proceedings**—The availability of electronic tagging arrangements in family proceedings was established in *Re C (Abduction: Interim Directions: Accommodation by Local Authority)* [2003] EWHC 3065 (Fam), [2004] 1 FLR 653. *Re A (Family Proceedings: Electronic Tagging)* [2009] 2 FLR 891, FD sets out the procedure to be adopted, including a Specimen Electronic Tagging Order.

## [2.245[11]]

**Prohibited steps orders (PSO): '... any person ...'**—In the definition of a PSO, 'any person' includes someone who is not a party to the proceedings: *Re H (Prohibited Steps Order)* [1995] 1 FLR 638, CA in which there was a PSO requiring the mother's former cohabitee, who was not a party, not to have or to seek contact with the children (liberty being given to him to apply on notice to vary or discharge the order under s 11(7)(d) as he was not present at the hearing).

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**PSO: 'no step which could be taken by a parent in meeting his parental responsibility'**—The prohibition may only relate to steps that could be taken by 'a parent in meeting his parental responsibility'. The order does not prohibit the child from taking steps for themselves. Thus, while an order may prohibit any person allowing a particular individual to have contact with the child, the child will not breach the order if they contact that individual themselves.

**PSOs: examples**—Examples of possible PSOs are orders prohibiting:

- (a) the removal of the child from the UK (when there is no CAO and consequently no automatic ban on removal under [ChA 1989, s 13\(1\)](#): *Croydon London Borough Council v A (No 1)* [1992] 2 FLR 341, FD; *Re D (A Minor) (Child: Removal from Jurisdiction)* [1992] 1 FLR 637, CA; *Y v H and C (Jurisdiction)* [2018] 2 FLR 966, [2018] 2 FLR 966, FD);
- (b) the child undergoing certain surgery or receiving a blood transfusion: *Re S (A Minor) (Medical Treatment)* [1993] 1 FLR 376, FD;
- (c) the changing of a child's religion: *M v H (Education Welfare)* [2008] EWHC 324 (Fam), [2008] 1 FLR 1400;
- (d) a change in the child's schooling: *Re N (A Child: Religion: Jehovah's Witness)* [2011] EWHC 3737 (Fam), [2012] 2 FLR 917, at [31];
- (e) the child's name being changed: *Re PC (Change of Surname)* [1997] 2 FLR 730, FD; *Re C (Change of Surname)* [1998] 1 FLR 549, CA; and *Re T (Change of Surname)* [1998] 2 FLR 620, CA;
- (f) a parent from accessing a child's health and education information: *Re A and B (Children: Restrictions on Parental Responsibility: Radicalisation and Extremism)* [2016] EWFC 40, [2016] 2 FLR 977;
- (g) a parent from exercising his right to see the child's school record under the Education (School Records) Regulations 1989 (*R v Leicestershire Education Authority ex parte C* [1991] Fam Law 302, QBD);
- (h) a party with PR from involving the social services or police in investigating the child's circumstances (if the court is satisfied that such an involvement would be detrimental to the child): *D v D (County Court: Jurisdiction: Injunctions)* [1993] 2 FLR 802, CA;
- (i) the extent to which a parent could exercise PR where there was a risk that if he were to trace the children he would remove them from their mother and from the jurisdiction: *Re B and Another (Change of Names: Parental Responsibility: Evidence)* [2017] EWHC 3250 (Fam), [2018] 1 FLR 1471.

## [2.245[12]]

**Limits on the use of PSOs**—See generally the statutory restrictions imposed by [ChA 1989, s 9](#) (see para 2.246). In particular:

- (a) no court can make a PSO or SIO with respect to a child who is in care under a care order: [ChA 1989, s 9\(1\)](#);
- (b) no court may make a PSO or SIO with a view to achieving a result that could be achieved by making a CAO or an order under [ACA 2002, s 51A](#) (post-adoption contact): [ChA 1989, s 9\(5\)\(a\)](#) and see *Re B (A Minor) (Residence Order: Ex Parte)* [1992] 2 FLR 1, CA;
- (c) no court may make a PSO or SIO in any way that is denied to the High Court (by [ChA 1989, s 100\(2\)](#)) in the exercise of its inherent jurisdiction with respect to children: [ChA 1989, s 9\(5\)\(b\)](#).

In *Re C (Due Process)* [2013] EWCA Civ 1412, [2014] 1 FLR 1239, CA, Ryder LJ emphasised that a PSO is a statutory restriction on a parent's exercise of their PR and can have profound consequences. It is not a reflection of any power in one parent to restrict the other (which power does not exist), it is a court order that must be based on objective evidence. It can only be relaxed by the court and not by agreement between the parties. Accordingly, there is a high responsibility on the court not to impose such a restriction without good cause and the reason must be given.

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In *AS (the Child's Mother) v Waltham Forest London Borough Council* [2024] EWHC 2808 (Fam), [\[2024\] 4 WLR 92](#) it was confirmed that: (a) care should be taken that orders were focused, targeted and proportionate to the specific risks established; (b) indefinite orders were highly draconian and should only be made in the most exceptional of cases; and (c) orders should ordinarily be time limited or subject to a process of in-built review.

In *Salford City Council v W* [2021] EWHC 61 (Fam), [\[2022\] 1 FLR 617](#) the court refused a mother's application for a PSO preventing an aunt, who was the special guardian for five siblings, from allowing the children to take the Roman Catholic sacraments, where Catholicism was a central part of their family life and the children identified as Catholic. Such a PSO would fundamentally undermine the purpose of the SGO.

A PSO cannot be granted to forbid a child's parents from having any contact with each other (*Croydon London Borough Council v A (No 1)* [\[1992\] 2 FLR 341](#), FD).

A PSO may not be used to restrain assault or molestation (*M v M (Residence Order: Ancillary Injunction)* [1994] Fam Law 440, FD), instead the court should, if necessary, exercise its powers under [FLA 1996, s 42\(2\)\(b\)](#). Nor can a PSO be granted to exclude a parent from the family home (*Nottinghamshire County Council v P* [\[1993\] 2 FLR 134](#), CA; *Re D (Residence: Imposition of Conditions)* [\[1996\] 2 FLR 281](#), CA; *Re K (Contact Order: Condition Ousting Parent from Family Home)* [2011] EWCA Civ 1075, [\[2012\] 2 FLR 635](#)). Similarly, in *AS (the Child's Mother) v Waltham Forest London Borough Council* [2024] EWHC 2808 (Fam), Harris J confirmed that PSOs should not be used to protect against the risks of female genital mutilation and that such applications should be made under the [FGMA 2003](#).

**[2.245[13]]**

**Specific Issue Orders (SIO)** (s 8(1))—An SIO is appropriate where there is only one specific issue between the parties, eg:

- (a) to determine where the child should be educated: eg *R v Leicestershire Education Authority ex parte C* [1991] Fam Law 302, QBD; *Re A (Specific Issue Order: Parental Dispute)* [\[2001\] 1 FLR 121](#), CA; *Re W (Children) (Education: Choice of School)* [2002] EWCA Civ 1411;
- (b) to determine issues of religion: eg *Re J (Specific Issue Orders: Child's Religious Upbringing and Circumcision)* [\[2000\] 1 FLR 571](#), CA and *Re L and B (Children: Specific Issues: Temporary Leave to Remove from the Jurisdiction: Circumcision)* [\[2017\] 1 FLR 1316](#), FD;
- (c) to determine issues of medical treatment: eg use of blood products against the wishes of the parents (*Re R (A Minor) (Blood Transfusion)* [\[1993\] 2 FLR 757](#), FD and *A Hospital NHS Trust v LP* [2019] EWHC 2989 (Fam)); immunisations (*BC v EF* [\[2017\] EWFC 49](#) and *M v H, P & T* [2020] EWFC 93, [\[2021\] 2 FLR 899](#)); brain surgery (*Z v Y* [2019] EWHC 2255 (Fam)); sterilisation (*Re HG (Specific Issue Order: Sterilisation)* [\[1993\] 1 FLR 587](#), FD). In such cases, there will often be a need for the child to be granted party status and to be legally represented, probably through Cafcass Legal;
- (d) to determine whether or not a child should be told the truth about his or her origins (*Re F (Paternity: Jurisdiction)* [\[2008\] 1 FLR 225](#), CA);
- (e) to order that a child be returned to the jurisdiction (*Re D (A Minor) (Child: Removal from Jurisdiction)* [\[1992\] 1 FLR 637](#), CA);
- (f) to determine a child's surname (*Dawson v Wearmouth* [\[1997\] 2 FLR 629](#), CA; *Re PC (Change of Surname)* [\[1997\] 2 FLR 730](#), FD; *Re W* [1997] Fam Law 766, CA; *Re C (Change of Surname)* [\[1998\] 2 FLR 656](#), CA; *Re T (Change of Surname)* [\[1998\] 2 FLR 620](#), CA);
- (g) to determine whether permission should be given for the police to interview a child: *Chief Constable of Greater Manchester v KI and KW (by their guardian) and PN* [\[2008\] 1 FLR 504](#), FD). [Note the decision is not straightforward not least because of the conclusion that the child's welfare is not the paramount consideration, but is one factor in the balance of rights and interests that must be struck];

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- (h) to determine the right for a parent to make arrangements for her child's body to be cryo-preserved in the hope that a cure might be found in the future (*Re JS (Disposal of Body)* [2016] EWHC 2859 (Fam), [2017] 4 WLR 1).

**Limits on the use of SIOs**—[ChA 1989, s 9](#) makes statutory restrictions on the use of SIOs and PSOs: see above, **Limits on the use of PSOs** at para 2.245[11] and s 9 at para 2.246 below.

The court must not abdicate its primary obligation to decide issues relating to parental responsibility by directing that one or other parent should determine issues of a particular type (for example education) (*Re P (Parental Dispute: Judicial Determination)* [2003] 1 FLR 286, CA).

Although fact-specific, *Re T (Children: Specific Issue Order)* [2024] EWCA Civ 793, [2025] 1 FLR 365 cautions against SIOs that are too sweeping (grant to a father of overriding PR in issues about his children's schooling, therapy and interactions with professionals was unnecessary and disproportionate. Instead, it was held that attendance at school events, therapy and access to professionals could easily be achieved by a combination of ordinary SIOs and PSOs, which might also enhance the uncertain chances of shared care working).

**'the inherent jurisdiction of the High Court'** (s 8(3)(a))—The inherent jurisdiction of the High Court was, before [ChA 1989](#), most commonly exercised in wardship proceedings. The Act has put an end to the majority of wardship applications, but applications are still made under the inherent jurisdiction of the court; see, in particular, under s 100.

**'application for leave under section 100(3)'** (s 8(3))—This is a reference to an application by a local authority for permission to apply for the exercise of the court's inherent jurisdiction with respect to children.

**'Parts I, II and IV of this Act'** (s 8(4))—Broadly speaking, this means that most proceedings under [ChA 1989](#) are classed as family proceedings for the purposes of the Act but applications for secure accommodation (Part III, s 25) and those relating to the protection of children under Pt V, including applications for child assessment orders (s 43) and emergency protection orders (s 44), are not so classified.

**Implementation and enforcement of s 8 orders**—For the implementation of orders, see s 11(7) directions and conditions. For enforcement of orders for contact, see ss 11A–11P and PROCEDURAL GUIDE D8. For orders for recovery of a child, see [FLA 1986, s 34](#) at para 2.602.

**Hague Convention 1996**—The HC 1996 lays down rules in respect of measures directed to the protection of the person or property of the child in cases to which the Convention applies (Art 1). 'Measures of protection' include the attribution, exercise, termination, restriction and delegation of parental responsibility, and of custody and access (Art 3). 'Rights of custody' essentially include all measures relating to the care and upbringing of, and access, contact or visitation rights concerning the child (Art 3(b)). See also the commentary to the Convention in Part VI.

## [2.245[14]]

**Registration at birth/original name**—At birth, a child must be registered in accordance with the [Births and Deaths Registration Act 1953](#). Where the parents are married, the duty to register lies on both the mother and father; where they are not married at the time of the birth, the duty is the mother's alone. The surname entered is to be the one by which at the date of the registration it is intended that the child shall be known. Where the parents subsequently marry, and the child is therefore legitimated, the parents must re-register the child's birth within three months of the marriage ([Legitimacy Act 1976, s 9](#)).

The choosing of a name for a child and the parents' compliance with their duty under [BDRA 1953, s 2](#) to give the registrar the information required are acts in the exercise of PR: *Re D, L and LA (Care: Change of Forename)* [2003] 1 FLR 339, FD.

It is possible either for the parents jointly or for the mother alone to apply for the name of the father to be entered into the Register of Births, on the production of statutory declarations (see [BDRA 1953, s 10A](#) and commentary to s

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**4 – Where natural unmarried father has not signed Birth Register but wishes to be acknowledged as the parent).**

Once the surname has been registered, there is nothing in [BDRA 1953](#) to permit it to be changed in the register (see the consideration of [BDRA 1953](#) in *Dawson v Wearmouth* [1999] 1 FLR 1167, HL; *Re C (Change of Surname)* [1998] 2 FLR 656, CA and *Re W, Re A, Re B (Change of Name)* [1999] 2 FLR 930, CA). Accordingly, the courts' powers are limited to regulating the name by which a child should be known.

**Change of name by consent**—Provided it is agreed, a change of the name by which a child is known can be evidenced by deed poll or, in practice, can be achieved more informally, by a parent simply arranging for a child to be known on a day-to-day basis by a new surname (for example at school).

It is prudent to record consent to a change of name in writing in any case, but written consent of every person with parental responsibility is a statutory requirement by virtue of s 13(1) where a CAO is made specifying with whom the child should live. Written consent will also generally be required if a deed poll is to be enrolled. A deed poll evidences a change of name in a formal way. It is first executed then enrolled with the Central Office of the High Court. Enrolment will not be permitted unless certain conditions are complied with. Reference should be made to the Enrolment of Deeds (Change of Name) Regulations 1994 and CPR 1998, PD5A, para 6.1 and its Appendix. In *Re W, F, C & D (Children) (Name Changes Disclosing Gender Reassignment & Other Matters)* [2020] EWHC 279 (QB) the court gave guidance concerning applications for the enrolment of deeds of change of name in respect of children who had changed gender. The publication of the child's old and new names in full is a disproportionate interference with their rights under ECHR, Art 8 and [GRA 2004, s 22](#). Accordingly, only surnames should be published, the court record should be marked private and the deeds should be retained in court and not released to the national archive. The court also indicated that where the application was based on welfare issues (unrelated to gender change), those issues should be first dealt with by applying to the family court for a specific issue order: see [GRA 2004, s 22](#).

**Change of name that is disputed**—Any dispute on a change of the child's name must be referred to the court for determination.

*Dawson v Wearmouth* [1999] 1 FLR 1167, HL remains the leading authority. The general principles applicable in all cases in which a change of name is contemplated can be summarised as follows:

- (1) The registration of change of a child's surname is a profound and not a merely formal issue whatever the age of the child.
- (2) A surname given to a child at birth is not simply a name plucked out of the air. To suggest that a surname is unimportant because it may be changed at any time by deed poll when the child is older ignores the importance of initially applying an appropriate label to that child.
- (3) Any dispute on such an issue must be referred to the court for determination whether or not there is a child arrangements order in force, and whoever has or has not parental responsibility.
- (4) No disputed registration or change should be made unilaterally.
- (5) In order to justify an order requiring a change of name, considerations relative to the child's welfare will have to be advanced for that purpose.
- (6) Each case depends on its own facts. In any given case all the facts and circumstances relevant to the welfare of the child need to be taken into account and weighed up against each other.
- (7) The right course must be to apply the criteria in s 1, including s 1(5) and not make an order for the change of name unless there is some evidence that this would lead to an improvement from the point of view of the welfare of the child.
- (8) A lack of biological connection does not of itself determine whether the child's surname should be changed.



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- (9) The attitudes and views of the individual parents are only relevant insofar as they may affect the conduct of those persons and therefore indirectly affect the welfare of the child. Just as the fact that the mother happens to bear a different surname from the child is not a sufficient reason for changing the child's surname, so the fact that mother and child bear the same name should not necessarily be sufficient reason for refusing a change if there are valid countervailing reasons.
- (10) The weight to be attached to the fact of registration must always depend upon the surrounding circumstances as they affect the welfare of the child. The registration of birth is a factor to be taken into account in the exercise of the court's discretion, but it is not necessarily the major or overriding factor in every case. For example, where a child has been known by the registered name for several years, where the child is aware of that name and where the child has been registered at school or with a GP by that name, the fact of such registration will be an important factor in the exercise of discretion. However, in cases where the child is such a young age as to be incapable of understanding the significance of his or her registered surname, then the registration as a factor must assume very much less importance.
- (11) There is an increased argument in favour of not disturbing the status quo. The name appearing upon a child's birth certificate is not without importance. It has practical implications and, other things being equal, it is in the long-term interests of the child that the name by which they are known should also be the name which appears on their birth certificate. This is not a feature that should be disregarded.

In *Re W (A Child) (Illegitimate Child: Change of Surname)* [2001] Fam 1, the Court of Appeal, applying these principles, stated that the law must not lag behind the times: 'There is no opprobrium upon a child who carried a different surname from that of her father any more than there is ignominy for a child who is known by a surname which is different to that of her mother.'

Strictly speaking, the procedure in disputed cases differs according to whether or not a CAO is in force. If so, an application under s 8 is not appropriate and a freestanding application should be made under s 13 instead. In cases where there is no CAO, the application should be made under s 8 (although whether the application will be for a SIO or a PSO will depend on the specific facts and circumstances).

Although technically there is a difference in the law between s 8 and s 13 applications (s 1(1) applies in both cases but the welfare checklist in s 1(3) applies to a s 8 application but not to a s 13 application because of s 1(4)), there is no reason to suppose the principles confirmed by the House of Lords in *Dawson v Wearmouth* do not apply to both. As the Court of Appeal pointed out in *Dawson v Wearmouth*, the distinction is more theoretical than real because the judge entertaining an application under s 13 will invariably have regard to the considerations identified in s 1(3) even if under no specific statutory duty so to do.

A practical solution in certain cases is that it may be in a child's best interests for a child to use the surnames of both their mother and father – see eg *Re R (Surname: Using Both Parents)* [2001] EWCA Civ 1344, [2001] 2 FLR 1358.

A change of surname should not be permitted without evidence that it would improve the child's welfare, but a broad approach is taken to that welfare. The cases are very fact-specific but by way of illustration see:

- *Re F (Contact)* [2007] EWHC 2543 (Fam), [2008] 1 FLR 1163 where a change of surname gave the children some extra protection against the possibility of abduction by their father;
- *AA v BB and Children (Through their Children's Guardian)* [2013] EWHC 227 (Fam), [2014] 1 FLR 178 where it would have been very detrimental to the children if their father tracked them down;
- *Re A and B (Children: Restrictions on Parental Responsibility: Radicalisation and Extremism)* [2016] EWFC 40, [2016] 2 FLR 977 where changing the children's names was a proportionate response to the risks posed by the father;
- *PM v CF* [2018] EWHC 2658 (Fam), [2019] 1 FLR 670, where the father had violently abused the mother to such an extent that she and their two children had been placed in the UK Protected Persons Scheme;

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- *Re B and Another (Change of Names: Parental Responsibility: Evidence)* [2017] EWHC 3250 (Fam), [\[2018\] 1 FLR 1471](#), where it was necessary and proportionate to achieve the objective of ensuring the children's safety and emotional and physical well-being;
- *D v E* [2021] EWFC 37, [\[2022\] 1 FLR 582](#) where the eight-year-old child's circumstances had changed significantly since registration, the father had demonstrated a lack of commitment and had had no contact with her for six years, the notoriety of some of the father's crimes had been the subject of publicity, and the child lived in a rural community where the father's surname was not a common one: retaining his surname placed the child at an appreciable risk of being stigmatised.

See eg *R v P (No 2)* [\[2019\] EWHC 2175 \(Fam\)](#), [\[2020\] 1 FLR 70](#) for an application to change a child's surname was refused on the basis it would not meet her wider welfare interests.

**Change of name of child subject to a care order**—See commentary under **New surname s 33(7)** at para [2.329\[1\]](#).

**Change of forename**—The forename(s) given to a child at the registration of birth are less concrete than the surname, since it is commonplace for a child to receive a statutory registered name and also to receive different given names during the course of family life (see *Re H (Child's Name: First Name)* [2002] EWCA Civ 190, [\[2002\] 1 FLR 973](#)).

The High Court can invoke its inherent jurisdiction to prevent a parent with PR from registering their child with the forename of their choice, but such power is to be exercised only in the most extreme cases where the parent's choice of forename gives rise to reasonable cause to believe that the child would suffer significant harm: see *Re C (Children: Power to Choose Forenames)* [2016] EWCA Civ 374, [\[2017\] 1 FLR 487](#). See also *Re C (Change of Forename: Child in Care)* [2023] EWHC 2813, [\[2024\] 1 FLR 973](#) at [27], where Cobb J distilled the applicable principles; and *Re C (A Child) (Change of Given Name)* [2024] EWCA Civ 1582.

**Application by child for change of name**—In *Re S (change of surname)* [\[1999\] 1 FLR 672](#) the child applied to change their name. In that case, where the child (aged 15) applied to change her name, the CA placed significant importance on the 15-year-old's wishes and feelings and the relevant principles were identified as follows:

- (a) the child's best interests are the paramount consideration;
- (b) in assessing best interests, the wishes, feelings, needs and objectives of a competent applicant should be given careful consideration;
- (c) the motives and objectives of any objecting family member would require careful scrutiny;
- (d) advice from the child's guardian would be valuable;
- (e) the principles were the same for forename and surname;
- (f) regard should be had to the fact that at 18 the child would be free to change their name(s) without hindrance and that at 16 a child not in care or subject to any care order was free to change their name by deed poll without the consent of anyone with parental responsibility;
- (g) the views of others and proposed carers were relevant only as they might affect their conduct and, therefore, indirectly the child's welfare;
- (h) names chosen by the parents might link them to particular religious or cultural backgrounds significant to the child's identity;
- (i) the Art 8 rights of both the child and their parents/family members were engaged; however, the balance of those rights should be considered in the context that a 16-year-old not subject to relevant care orders was free to change their name by unenrolled deed poll without the knowledge or consent of their parents/family members;
- (j) the views of a local authority with parental responsibility should also be taken into account.

## 8 Child arrangements orders and other orders with respect to children

In *BC v A Local Authority* [2024] EWHC 1639 (Fam), [\[2025\] 1 FLR 434](#) Poole J applied the principles in *Re S* where a child in local authority long-term foster care wished to change her forename and surname to names that had no connection with her birth parents in circumstances where she had formed and expressed a settled intention to break the traumatic link with her birth father who had sexually abused her. He confirmed that a double name change required particular consideration, and concluded that a 16 or 17-year-old child could change their name by making an unenrolled deed poll without the consent of any person with PR for them or the court's permission (so long as the child is not subject of a care order).

**Statutory declaration of parentage**—See para [2.238\[5\]](#).

**Revealing the identity of the child's father; revealing the fact of the existence of the child**—There have been a number of cases concerning the circumstances in which it may be in the child's interests to be informed of the identity of their father, and whether the child's wider family have a right to know of their existence. It is difficult to draw any consistent principles from these cases as each appears to turn upon its own facts (*Re L (Adoption: Contacting Natural Father)* [2007] EWHC 1771 (Fam), [\[2008\] 1 FLR 1079](#); *Re C v X Y Z County Council* [2007] EWCA Civ 1206, [\[2008\] 1 FLR 1294](#); *Birmingham City Council v S, R and A* [2006] EWHC 3065 (Fam), [\[2007\] 1 FLR 1223](#); *Re F (Paternity Jurisdiction)* [\[2007\] EWCA Civ 873](#), [\[2008\] 1 FLR 225](#); *Re J (Paternity: Welfare of Child)* [2006] EWHC 2837 (Fam), [\[2007\] 1 FLR 1064](#); *Re D (Paternity)* [\[2006\] EWHC 3545 \(Fam\)](#), [\[2007\] 2 FLR 26](#)). However, what is clear is that the courts will not sanction the withholding of information about the existence of a child from his parent, or dispense with service on that parent of proceedings relating to the child, in anything other than exceptional circumstances (*Re A (Father: Knowledge of Child's Birth)* [2011] EWCA Civ 273, [\[2011\] 2 FLR 123](#)). In *Re AB v CD & C (A Child) (No 2)* [2019] EWHC 2244 Cohen J considered the approach to informing a child about his paternity where it had come to light, several years after the child's birth, that his biological father was not the man who had raised him in the belief that he was the child's father. It was ordered that an independent social worker would help and advise the mother and the non-biological father through the process of breaking the truth to the child; however, the time when that would be appropriate would depend on the child's reactions and needs, and could not be predicted.

Where there is an unduly long delay in proceedings relating to the establishment of a child's paternity this may amount to a violation of ECHR 1950, Arts 6, 8, 10 and 13 because of the resulting uncertainty for the child as to his or her personal identity (*Jevremovic v Serbia (Application No 3150/05)* [\[2008\] 1 FLR 550](#)).

## Forms

Click here to view Form online

**[2.246]**

## 9 Restrictions on making section 8 orders

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) No court shall make any section 8 order, other than a child arrangements order to which subsection (6B) applies, with respect to a child who is in the care of a local authority.
- (2) No application may be made by a local authority for a child arrangements order and no court shall make such an order in favour of a local authority.
- (3) A person who is, or was at any time within the last six months, a local authority foster parent of a child may not apply for leave to apply for a section 8 order with respect to the child unless –
  - (a) he has the consent of the authority;
  - (b) he is a relative of the child; or
  - (c) the child has lived with him for at least one year preceding the application.
- (4) *(Repealed)*
- (5) No court shall exercise its powers to make a specific issue order or prohibited steps order –
  - (a) with a view to achieving a result which could be achieved by making a child arrangements order or an order under [section 51A](#) of the Adoption and Children Act 2002 (post-adoption contact); or
  - (b) in any way which is denied to the High Court (by section 100(2)) in the exercise of its inherent jurisdiction with respect to children.
- (6) No court shall make a section 8 order which is to have effect for a period which will end after the child has reached the age of sixteen unless it is satisfied that the circumstances of the case are exceptional.
- (6A) Subsection (6) does not apply to a child arrangements order to which subsection (6B) applies.
- (6B) This subsection applies to a child arrangements order if the arrangements regulated by the order relate only to either or both of the following –
  - (a) with whom the child concerned is to live, and
  - (b) when the child is to live with any person.
- (7) No court shall make any section 8 order, other than one varying or discharging such an order, with respect to a child who has reached the age of sixteen unless it is satisfied that the circumstances of the case are exceptional.

[2.246[1]]

**Amendments**—[ACA 2002, ss 113, 114\(2\)](#); [CYP A 2008, s 37\(1\)](#); [CFA 2014, ss 9, 12](#), Sch 2.

**Defined terms**—'child': s 105(1); 'child arrangements order': s 8(1); 'local authority': s 105(1); 'local authority foster parent': s 23(3); 'relative': s 105(1); 'section 8 order': s 8(2).

**Jurisdiction**—See **Jurisdiction** under s 8, above.

## 9 Restrictions on making section 8 orders

**'child who is in the care of a local authority'** (s 9(1))—A child who is the subject of a care order as defined in ss 31(11) and 105(1). There is power to make an order under s 34 (parental contact with child in care) as this is not a child arrangements order within the meaning of s 8(1). An order made under s 8 on the application of a child in care for him to have contact with his siblings would be an order in respect of the siblings rather than in respect of the child in care and would not therefore fall foul of s 9(1) (*Re F (Contact: Child in Care)* [\[1995\] 1 FLR 510](#), FD).

**No application by a local authority for a child arrangements order** (s 9(2))—See, for example, *Re C (Contact: Jurisdiction)* [\[1995\] 1 FLR 777](#), CA (local authority could not apply for contact or variation of contact in relation to children who had been freed for adoption).

**'local authority foster parent of a child'** (s 9(3))—The mere fact that a person is a local authority foster parent does not bring him within the section. His right to seek permission will be restricted only if he is or has been the foster parent of the particular child who would be the subject of the s 8 application. A person with whom a local authority places a child for adoption is a 'local authority foster parent' and therefore precluded by s 9(3) from applying for permission (*Re C (Adoption: Notice)* [\[1999\] 1 FLR 384](#), FD). For applications by local authority foster parents, see *JR v Merton London Borough* [\[1992\] 2 FCR 174](#), FD & CA reversed on appeal as *Re A and W (Minors) (Residence Order: Leave to Apply)* [\[1992\] 2 FLR 154](#), CA and *C v Salford City Council and Others* [\[1994\] 2 FLR 926](#), FD. The court cannot make a s 8 order in favour of a local authority foster parent of its own initiative if s 9(3) would debar that foster parent from applying for permission to apply for such an order. The power to make orders of the court's own initiative is subject to the restrictions in s 9 (see [ChA 1989, s 10\(3\)](#)), but note the exception in *Gloucestershire County Council v P* [\[1999\] 2 FLR 61](#), CA, which is referred to in **When the court may make a s 8 order** under s 10).

**Leave to apply** (s 9(3))—Certain people may apply as of right for a s 8 order (see s 10(4), (5), (7)) and a foster parent is not prevented by s 9(3) from making such an application should he fall into any of these categories. For example, he may apply for a child arrangements order for the child to live with him where the child is in care and the local authority for whom he fosters gives its consent (s 10(5)(c)(ii)) or where the child has been living with him for at least 1 year (s 10(5A), (5B)). In all other situations, permission must be obtained before an application is launched (see s 10(1)–(3)) and s 9(3) restricts the foster parents who may seek permission, as s 10 is expressed to be subject to the restrictions imposed by s 9.

**'consent of the authority'** (s 9(3)(a))—It is the consent of the social services authority accommodating the child that is required where the child is simply accommodated rather than being the subject of a care order (*C v Salford City Council and Others* [\[1994\] 2 FLR 926](#), FD), just as it appears that it will be the authority that is responsible for the placement of the child with the foster parents that will have to consent where a care order is in force. It is ambiguous whether it is enough for the authority to consent to the foster parent making a permission application or whether the consent must be to the making of the full s 8 application or indeed to the granting of the s 8 order that the foster parent wishes to seek. There is no requirement as to the form of the consent but it would be prudent for it to be given in writing.

**Restrictions on specific issue and prohibited steps orders** (s 9(5))—*Nottinghamshire County Council v P* [\[1993\] 2 FLR 134](#), CA, is an example of an attempt by a local authority to obtain a prohibited steps order (instead of proceeding by way of the public law provisions of ChA 1989, Pt IV) which failed because it contravened s 9(5). Supervision orders with an order restraining the mother from removing the children from their foster homes are also contrary to ss 9(5) and 100(2)(b) (*Re S and D (Children: Powers of Court)* [\[1995\] 2 FLR 456](#), CA). For further examples of contravention of s 9(5), see *M v C (Children Orders: Reasons)* [\[1993\] 2 FLR 584](#), FD (without notice specific issue order for the return of children to their mother from their father) and *Re H (Prohibited Steps Order)* [\[1995\] 1 FLR 638](#), CA (prohibited steps order requiring mother to prevent contact between children and former cohabitee contravened s 9(5), but prohibited steps order against former cohabitee requiring him not to have contact was acceptable). *Re M (Care: Leave to Interview Child)* [\[1995\] 1 FLR 825](#), FD, also illustrates the limitations imposed by s 9(5) (not possible to use specific issue order to deal with question of whether father's solicitor could interview his two sons who were in care for purposes of preparing his defence to criminal charges; inherent jurisdiction of court used instead).



9 Restrictions on making section 8 orders

[2.247]

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## 10 Power of court to make section 8 orders

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) In any family proceedings in which a question arises with respect to the welfare of any child, the court may make a section 8 order with respect to the child if –
  - (a) an application for the order has been made by a person who –
    - (i) is entitled to apply for a section 8 order with respect to the child; or
    - (ii) has obtained the leave of the court to make the application; or
  - (b) the court considers that the order should be made even though no such application has been made.
- (2) The court may also make a section 8 order with respect to any child on the application of a person who –
  - (a) is entitled to apply for a section 8 order with respect to the child; or
  - (b) has obtained the leave of the court to make the application.
- (3) This section is subject to the restrictions imposed by section 9.
- (4) The following persons are entitled to apply to the court for any section 8 order with respect to a child –
  - (a) any parent, guardian or special guardian of the child;
  - (aa) any person who by virtue of section 4A has parental responsibility for the child;
  - (b) any person who is named, in a child arrangements order that is in force with respect to the child, as a person with whom the child is to live.
- (5) The following persons are entitled to apply for a child arrangements order with respect to a child –
  - (a) any party to a marriage (whether or not subsisting) in relation to whom the child is a child of the family;
  - (aa) any civil partner in a civil partnership (whether or not subsisting) in relation to whom the child is a child of the family;
  - (b) any person with whom the child has lived for a period of at least three years;
  - (c) any person who –
    - (i) in any case where a child arrangements order in force with respect to the child regulates arrangements relating to with whom the child is to live or when the child is to live with any person, has the consent of each of the persons named in the order as a person with whom the child is to live;
    - (ii) in any case where the child is in the care of a local authority, has the consent of that authority; or
    - (iii) in any other case, has the consent of each of those (if any) who have parental responsibility for the child.

## 10 Power of court to make section 8 orders

- (d) any person who has parental responsibility for the child by virtue of provision made under section 12(2A).
- (5A) A local authority foster parent is entitled to apply for a child arrangements order to which subsection (5C) applies with respect to a child if the child has lived with him for a period of at least one year immediately preceding the application.
- (5B) A relative of a child is entitled to apply for a child arrangements order to which subsection (5C) applies with respect to the child if the child has lived with the relative for a period of at least one year immediately preceding the application.
- (5C) This subsection applies to a child arrangements order if the arrangements regulated by the order relate only to either or both of the following –
  - (a) with whom the child concerned is to live, and
  - (b) when the child is to live with any person.
- (6) A person who would not otherwise be entitled (under the previous provisions of this section) to apply for the variation or discharge of a section 8 order shall be entitled to do so if –
  - (a) the order was made on his application; or
  - (b) in the case of a child arrangements order, he is named in provisions of the order regulating arrangements relating to –
    - (i) with whom the child concerned is to spend time or otherwise have contact, or
    - (ii) when the child is to spend time or otherwise have contact with any person.
- (7) Any person who falls within a category of person prescribed by rules of court is entitled to apply for any such section 8 order as may be prescribed in relation to that category of person.
- (7A) If a special guardianship order is in force with respect to a child, an application for a child arrangements order to which subsection (7B) applies may only be made with respect to him, if apart from this subsection the leave of the court is not required, with such leave.
- (7B) This subsection applies to a child arrangements order if the arrangements regulated by the order consist of, or include, arrangements which relate to either or both of the following –
  - (a) with whom the child concerned is to live, and
  - (b) when the child is to live with any person.
- (8) Where the person applying for leave to make an application for a section 8 order is the child concerned, the court may only grant leave if it is satisfied that he has sufficient understanding to make the proposed application for the section 8 order.
- (9) Where the person applying for leave to make an application for a section 8 order is not the child concerned, the court shall, in deciding whether or not to grant leave, have particular regard to –
  - (a) the nature of the proposed application for the section 8 order;
  - (b) the applicant's connection with the child;
  - (c) any risk there might be of that proposed application disrupting the child's life to such an extent that he would be harmed by it; and

## 10 Power of court to make section 8 orders

- (d) where the child is being looked after by a local authority –
  - (i) the authority's plans for the child's future; and
  - (ii) the wishes and feelings of the child's parents.
- (10) The period of three years mentioned in subsection (5)(b) need not be continuous but must not have begun more than five years before, or ended more than three months before, the making of the application.

**[2.247[1]]**

**Amendments**—[ACA 2002, s 139\(1\)](#), [Sch 3](#), paras 54, 56; [CPA 2004, s 77](#); [CYP A 2008, s 36](#); [CFA 2014, s 12](#), Sch 2.

**Defined terms**—'child', 'child of the family': s 105(1); 'child arrangements order': s 8(1); 'family proceedings': s 8(3); 'guardian', 'local authority': s 105(1); 'parental responsibility': s 3; 'section 8 order': s 8(2).

**When the court may make a s 8 order**—The net effect of s 10(1)–(4) is that (subject to the restrictions set out in s 9) the court may make a s 8 order either:

- (a) on the application of a person who is entitled to apply as of right, or on the application of a person who can apply with permission and has obtained permission; any such application may be an independent application (s 10(2)) or may be made in the course of existing family proceedings in which a question arises with respect to the welfare of the child (s 10(1)(a)); or
- (b) in any family proceedings in which a question arises with respect to the welfare of a child, where it considers that a s 8 order should be made in respect of the child despite the fact that no application has actually been made (s 10(1)(b)).

The court will normally be prompted to make an order under s 10(1)(b) at the suggestion of one of the parties to the proceedings or of an interested friend or relative who has been allowed to address the court, or even at the suggestion of the child himself, but there is nothing to prevent the court itself taking the lead in appropriate circumstances (see eg *Re H (A Minor) (Contact)* [1994] 2 FLR 969, CA, and *MGB and GT* [2020] EWHC 2968 (Fam)). The power to make orders of the court's own initiative is subject to the restrictions in s 9 (see s 10(3)). In *Re G (Child Arrangements Order)* [2018] 2 FLR 601, CA, the Court of Appeal confirmed the general principle that the power under s 10(1)(b) should not be read narrowly; it was held that it would introduce a needless layer of complexity for the court to be required to carry out a preliminary mental exercise when it is considering whether to make an order where no application has been made. Any court considering making an order on its own initiative will procedurally ensure that the parties have had an opportunity to be heard on the matter and will substantively need to decide whether such an order is in the child's interests. The court's ability to make orders of its own motion and at an interlocutory hearing has to be seen in the context of the stage of the proceedings reached, the nature of the order concerned and the evidence then before the court. In order to ensure that the hearing is fair to the parties and to ensure that the order is in the best interests of the children, some process needs to be followed to enable the parties to put evidence before the court and to put their case (see *MGB and GT* [2020] EWHC 2968 (Fam)).

As to the court's power to make a s 8 order even though it is not in a position to dispose finally of the proceedings before it, see s 11(3).

**Application for a s 8 order**—For the procedure on an application for a s 8 order, see FPR 2010, r 5.1, PD5A, PD12B and PROCEDURAL GUIDE D7. Where an application for permission has already been made, there is no need for an application form to be filed because the court will already have received a draft with the appropriate number of copies as part of the permission application (FPR 2010, rr 18.1–18.13), but the procedure is otherwise the same as for applications without permission.

**Jurisdiction and international issues**—In *R v R (Jurisdiction and Acquiescence)* [2017] 1 FLR 1750, FD, the court highlighted the need for legal practitioners to pay proper regard to the question of jurisdiction when issuing

## 10 Power of court to make section 8 orders

private law proceedings under [ChA 1989](#) in any case that has, or appears to have, an international element, particularly where a parent has recently arrived in the jurisdiction with the children.

**'In any family proceedings'** (s 10(1))—Where orders of a 'final' nature have already been made, care must be taken to ensure that there are extant family proceedings for the purposes of s 10(1); see, for example, *Re C (Contact: Jurisdiction)* [\[1995\] 1 FLR 777](#), CA.

**'a person who ... is entitled to apply for a section 8 order'** (s 10(1)(a))—Those persons who are entitled to apply for a s 8 order without permission are specified in s 10(4) (those entitled to apply for any s 8 order), s 10(5) (those entitled to apply for a child arrangements order) and s 10(7) (those entitled to apply by virtue of rules of court). Where the child is in care or the proposed applicant is a local authority or a local authority foster parent, the restrictions imposed by s 9 apply (s 10(3)).

**[2.247[2]]**

**Meaning of 'parent'** (s 10(4))—This term is not defined in the Act. A child's natural mother and father (including, by virtue of [FLRA 1987, s 1](#), an unmarried father whether or not he has parental responsibility) are his parents unless he has been adopted, in which case his adoptive mother and father are his parents ([ACA 2002, s 67](#)). A child's natural parents are not parents within the meaning of s 10 once an adoption order has been made in respect of the child (*Re C (A Minor) (Adopted Child: Contact)* [\[1993\] 2 FLR 431](#), FD). A step parent is not a parent but may nevertheless be entitled to apply as of right for a s 8 order by virtue of s 10(5)(a). Where a child's mother cohabits with but does not marry a man who is not the child's natural father, that man cannot be classed as a parent of the child (*J v J (A Minor: Property Transfer)* [\[1993\] 2 FLR 56](#), FD). As to the parents of children born of in vitro fertilisation, artificial insemination etc, see [HFEA 2008, ss 33–48](#). See also **Same-sex parenting** under s 8.

**Guardians** (s 10(4)(a))—There may be a delay between a guardian being named (for example, in a will or in a court order) and the time when he actually acquires parental responsibility for the child concerned (see **Date from which the appointment is effective** under s 5). See also s 6 as to the circumstances in which an appointment can be disclaimed or revoked.

**'a child arrangements order is in force with respect to the child, as a person with whom the child is to live'** (s 10(4)(b))—Although most child arrangements orders specifying with whom the child is to live are open-ended, such an order can be made for a specified period of time (s 11(7)), in which case it will cease to be in force at the end of that period. Such an order will also cease to have effect where the court makes a further order to that effect, in certain circumstances where the parents resume cohabitation (see s 11(5)).

**'person with whom the child has lived'** (s 10(5)(b))—It is usually obvious where a child has been living, but it is less clear to whom the provision applies in cases where he has had more than one base, for example where he has spent weekdays with his aunt and stayed with his grandmother from Friday teatime to Monday morning. In such circumstances, it is submitted that both parties may qualify under s 10(5)(b).

**'child is in the care of a local authority'** (s 10(5)(c)(ii))—This refers to a child who is the subject of a care order as defined in ss 31(11) and 105(1).

**Form of consent** (s 10(5)(c)(iii))—Although neither the Act nor any rules stipulate the form in which consent must be expressed, it would be prudent for written consent to be obtained wherever possible and for this to be filed with the application. This will prevent difficulties arising if consent is subsequently withdrawn or the person concerned denies that it was ever given.

**Persons not otherwise entitled to apply for variation or discharge** (s 10(6))—An order varying or discharging a s 8 order is itself a s 8 order (s 8(2)). Consequently, anyone who may apply for a s 8 order may apply for a variation or discharge as well, with permission where appropriate. Section 10(6) adds two extra categories of person who can apply for variation or discharge, namely the original applicant for the order and, where the application concerns an order for contact, any person named in that order. A person who has obtained an order for indirect contact with a



## 10 Power of court to make section 8 orders

child is entitled, by virtue of s 10(6), subsequently to apply for face-to-face contact without permission (*Re W (Application for Leave)* [1996] Fam Law 665, FD).

**[2.247[3]]**

**Procedure on application for variation or discharge**—The procedure for variation or discharge of a s 8 order is the same as for the original application. See FPR 2010, Pt 12 and PROCEDURAL GUIDES D7 AND D9.

**Rules of court entitling persons to apply for a s 8 order** (s 10(7))—No rules specifically list additional persons who may apply for a s 8 order; however, *Re HG (Specific Issue Order: Sterilisation)* [1993] 1 FLR 587, FD held that FPR 1991, r 9.2 (see FPR 2010, r 16.14 and PD16A, para 2.1) does make such a prescription in relation to a child's next friend.

**Application by a person requiring leave**—If a proposed applicant is not one of those specifically listed in s 10, he will require permission of the court before he can apply. Such applicants could include the child himself, a local authority wishing to apply for a specific issue or prohibited steps order (though note the restrictions on local authority applications imposed by s 9), past carers and relatives other than parents who cannot establish the requisite period of residence. See also **Changes to an agreed plan and timetable** under s 14A for the position in relation to prospective special guardians.

**Application for leave by child** (s 10(8))—Where the child is seeking permission, the only factor to which the court is specifically directed is that in s 10(8). However, the fact that the child has sufficient understanding does not mean that the court is bound to grant permission; it has a discretion, and his welfare is not paramount (*M v Warwickshire County Council* [2008] 1 FLR 1093, CA). Nor is it paramount where the permission application is by anyone other than the child concerned (*Re A and W (Minors) (Residence Order: Leave to Apply)* [1992] 2 FLR 154, CA). Such applications should be approached cautiously; once a child is a party to proceedings between warring parents, he will be exposed to hearing evidence of the parents which it might be better for him not to hear and may have to be cross-examined (*Re N (Contact: Minor Seeking Leave to Defend and Removal of Guardian)* [2003] 1 FLR 652, FD – where the 11-year-old child did not have sufficient understanding to participate as a party in contact proceedings or give instructions that would be fully considered in their implications). For guidance as to the role that a child applicant is likely to play in the proceedings, see the notes to FPR 2010, r 12.12.

The court should also have regard to the likelihood of success of the proposed application (*Re C (Residence: Child's Application for Leave)* [1995] 1 FLR 927, FD and *Re SC (A Minor) (Leave to Seek Residence Order)* [1994] 1 FLR 96, FD). *Re M (Care: Contact: Grandmother's Application for Leave)* [1995] 2 FLR 86, CA, although a case where permission was sought under [ChA 1989, s 34](#), has been taken to provide the most authoritative guidance as to the appropriate test with regard to the prospects of success, see further under **Application for leave by person other than child concerned**, below. *Re M (Care: Contact: Grandmother's Application)* is fully annotated at [ChA 1989, s 34](#) and is helpful also in demonstrating the correct approach to permission applications.

While the checklist in s 1(3) probably does not strictly apply, the matters listed there may be relevant to the court's consideration of whether to grant permission. The court will also consider why the child is seeking to apply for an order to be made in favour of someone else rather than the application being made by that person directly (*Re SC (A Minor) (Leave to Seek Residence Order)* (above) – girl of 14 sought permission to apply for residence order in favour of family friend). As to assessing the understanding of a child, see the annotation '**able ... to give such instructions on his own behalf**' to FPR 2010, r 16.29. As to the possibility of a s 8 application by a child through his next friend when the child does not have sufficient understanding to satisfy s 10(8), see *Re HG (Specific Issue Order: Sterilisation)* [1993] 1 FLR 587, FD and the comment thereon at [1993] Fam Law 403.

Applications for permission by children should be made in the High Court using the procedure in FPR 2010, rr 18.1–18.13.

Section 10(8) does not make provision for children to be joined as additional respondents to applications; application for that purpose is properly made under FPR 2010, rr 12.3 and 16.2 (*Re N (A Minor)* (unreported) 25 September 1997, CA).

## 10 Power of court to make section 8 orders

See also **Changes to an agreed plan and timetable** under s 14A for the position in relation to prospective special guardians.

**[2.247[4]]**

**Application for leave by person other than child concerned** (s 10(9))—Section 10(9) applies to any case in which the applicant for permission is not the child who would be the subject of the substantive application, notwithstanding that the permission applicant is himself a child (*Re S (Contact: Application by Sibling)* [1998] 2 FLR 897, FD. An order granting leave to apply for orders under s 8 of the Children Act is a case management order. It is not a 'final' order in the sense of an order that determines the substantive outcome of the proceedings. The court is obliged under the rules to exercise its case management powers in accordance with the overriding objective (*Re G; Re Z (Children: Sperm Donors: Leave to Apply for Children Act Orders)* [2013] 1 FLR 1334, FD, at [58]).

Section 10(9) lists the factors to which the court should have particular regard in deciding an application for permission by someone other than the child himself, but other factors may also be relevant. The case law relating to these factors was re-examined thoroughly by Black LJ in *Re B (Paternal Grandmother: Joinder as Party)* [2012] 2 FLR 1358, CA, at [63]–[65]. The s 1(3) checklist does not apply here, nor does s 1(1) (*Re S (Contact: Application by Sibling)* (above)). The same test should be applied to applications for party status in public and private law proceedings; the test is also the same where an applicant seeks party status without making, or intending to make, any application for a specific order (*Re W (Care Proceedings: Leave to Apply)* [2005] 2 FLR 468, FD).

It is well accepted that the court must have regard to the merits of the proposed application (see *Re S (Contact: Application by Sibling)* and the *Warwickshire* case (above)). *Re M (Care: Contact: Grandmother's Application)* [1995] 2 FLR 86, CA, although a case where permission was sought under *ChA 1989, s 34*, has been taken to provide the most authoritative guidance as to the appropriate test with regard to the prospects of success. It is essential, however, that the court gives proper weight to the statutory criterion and does not place too great an emphasis on the factors in *Re M* (above) (*Re J (Leave to Issue Application for Residence Order)* [2003] 1 FLR 114, CA – where the judge erred in dismissing an application by the maternal grandmother to join contested care proceedings and apply for a residence order in relation to her granddaughter). See *KS v Neath Port Talbot Borough Council* [2014] EWCA Civ 941, where the paternal grandmother successfully appealed refusal of her application for joinder to care proceedings; the Court of Appeal held that her case was arguable, the assessment of her having contained both positive and negative judgments about her and went to the critical proportionality evaluation of whether 'nothing else would do' than adoption. The grandmother's application accordingly demanded rigorous scrutiny of the factors in s 10(9). See also *Re N (Children)* [2016] EWCA Civ 656, where an adult brother was granted leave on appeal to apply for contact with his sister where he was her only relative, was likely to be the most important person in her life and had a view on what was best for her. The Court of Appeal held that the issue of contact was of the utmost importance and that no judge could properly have dismissed his application.

In considering the risk of disruption (s 10(9)(c)), it is not only the risk of disruption from the making of the substantive application that is relevant but also the disruption that there may be to the child's life if the application succeeds (*Re M (Care: Contact: Grandmother's Application)* (above), at [95H]). In *Re M* it was emphasised that the risk of disruption which is primarily contemplated in the subsection is the risk of disruption to the extent that the child would be harmed. By virtue of s 105(1), harm is defined in s 31(9). Ward LJ identified disruption as a factor of crucial significance, a fortiori for a child in care. *Re M (Prohibited Steps Order: Application for Leave)* [1993] 1 FLR 275, FD exemplifies the application of s 10(9)(d)(ii) which specifically requires the court to have regard to the local authority's plans for the child's future (former guardian ad litem of child in emergency protection order proceedings sought permission to apply for a s 8 order). *Re S (Contact: Application by Sibling)* (above) deals with disruption in the context of an adopted child.

The difficulty that natural parents will experience in obtaining permission to seek a s 8 order where their child has been adopted or freed for adoption is illustrated by *Re E (Adopted Child: Contact: Leave)* [1995] 1 FLR 57, FD. See also the *Warwickshire* case (above), which concerned an application under *ACA 2002, s 24(3)* for permission to apply to revoke a placement order and in which the Court of Appeal suggested that when deciding whether or not to grant permission the court might usefully borrow the language of the test set out in CPR 1998, r 52.3(6) and ask

## 10 Power of court to make section 8 orders

whether the applicant would have a real prospect of success. Applications in relation to siblings who have been adopted will also be subject to special considerations (*Re S (Contact: Application by Sibling)*, above).

The fact that permission has been granted does not create a presumption in favour of a substantive order (*Re A (Section 8 Order: Grandparent Application)* [1995] 2 FLR 153, CA; *G v F (Contact and Shared Residence: Applications for Leave)* (above)) or elevate a person who is not a natural parent to the position of a natural parent (*Re W (Contact: Application by Grandparent)* [1997] 1 FLR 793, FD). Decisions in disputes between two female parents and a biological father are so fact-specific that 'this is an area of law in which generalised guidance is not possible' (per Black LJ in *A v B and C (Lesbian Co-Parents: Role of Father)* [2012] 2 FLR 607, CA. As part of the analysis, the court will consider the rights of legal parents to family life, including the right to make decisions about their children. Those rights are widely recognised both as a long-standing principle of English law and under ECHR 1950, Art 8. In this regard, the position of a lesbian couple who have been granted the status of legal parents by the [HFEA 2008](#) is exactly the same as any other legal parent. Having taken those rights into account, however, it is still open to the court, after considering all relevant factors, to grant leave to other persons to apply for s 8 orders. In this regard, the position of biological fathers who have been deprived of the status of legal parent by the 2008 Act is the same as any other person (*Re G; Re Z (Children: Sperm Donors: Leave to Apply for Children Act Orders)* (above), at [115]). However, where the lesbian couple, who are vested with legal parenthood, encourage and enable the biological father to become a psychological parent by involving him in the child's life and where the facts establish that the relationship that has developed between him and the child amounts to, or is capable of amounting to, 'family life' within Art 8, those are also important facts to be taken into consideration. (See further under [HFEA 2008, ss 42, 45 and 48.](#))

See also **Changes to an agreed plan and timetable** under s 14A for the position in relation to prospective special guardians.

**'the applicant's connection with the child'** (s 10(9)(b))—In *ABC v Principal Reporter and another* [2020] UKSC 26 the Supreme Court (in dealing with appeals by the siblings of young children) confirmed that siblings can be as important as parents and are a potentially powerful influence on development. Half-siblings should be brought up together wherever possible. In *Re H (Leave to Apply for Residence Order)* [2008] 2 FLR 848, CA the applicants applied for permission to apply for a residence order. Their connection with the child was an 'indirect' one as they were the adopters of his older half-brother. However, the court considered their connection to be of crucial importance in this case since the applicants were the older child's legal parents and the two boys were half-brothers and aware of each other's existence.

**'child ... being looked after by a local authority'** (s 10(9)(d))—See s 22(1), (2).

**Procedure on application for leave**—Permission must be sought in accordance with FPR 2010, rr 18.1–18.13.

[2.248]

## 11 General principles and supplementary provisions

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) In proceedings in which any question of making a section 8 order, or any other question with respect to such an order, arises, the court shall (in the light of any provision in rules of court that is of the kind mentioned in subsection (2)(a) or (b)) –
  - (a) draw up a timetable with a view to determining the question without delay; and
  - (b) give such directions as it considers appropriate for the purpose of ensuring, so far as is reasonably practicable, that that timetable is adhered to.
- (2) Rules of court may –
  - (a) specify periods within which specified steps must be taken in relation to proceedings in which such questions arise; and
  - (b) make other provision with respect to such proceedings for the purpose of ensuring, so far as is reasonably practicable, that such questions are determined without delay.
- (3) Where a court has power to make a section 8 order, it may do so at any time during the course of the proceedings in question even though it is not in a position to dispose finally of those proceedings.
- (4) *(Repealed)*
- (5) Where –
  - (a) a child arrangements order has been made with respect to a child; and
  - (b) the child has two parents who each have parental responsibility for him,the order, so far as it has the result that there are times when the child lives or is to live with one of the parents, shall cease to have effect if the parents live together for a continuous period of more than six months.
- (6) A child arrangements order made with respect to a child, so far as it provides for the child to spend time or otherwise have contact with one of the child's parents at times when the child is living with the child's other parent, shall cease to have effect if the parents live together for a continuous period of more than six months.
- (7) A section 8 order may –
  - (a) contain directions about how it is to be carried into effect;
  - (b) impose conditions which must be complied with by any person –
    - (i) who is named in the order as a person with whom the child concerned is to live, spend time or otherwise have contact;
    - (ii) who is a parent of the child;
    - (iii) who is not a parent of his but who has parental responsibility for him; or

## 11 General principles and supplementary provisions

(iv) with whom the child is living,

and to whom the conditions are expressed to apply;

(c) be made to have effect for a specified period, or contain provisions which are to have effect for a specified period;

(d) make such incidental, supplemental or consequential provision as the court thinks fit.

## [2.248[1]]

**Amendments**—[CFA 2014, ss 12, 13](#), Sch 2.

**Defined terms**—'section 8 order': s 8(2).

**Scope**—This section contains provisions designed to ensure that any question that arises with regard to a s 8 order is determined without delay (s 11(1) and (2)) and enabling the court to make a s 8 order at any stage during proceedings even where it is not yet ready finally to dispose of the proceedings (s 11(3)). It also contains miscellaneous provisions as to the content and duration of s 8 orders.

**Avoidance of delay**—Section 11(1) forces the court to take a firm hold of the reins and to lay down a procedural timetable and give appropriate directions (under FPR 2010, rr 12.12 and 12.13) to ensure that any material question is determined without delay. Both practitioners and courts have a duty to avoid delay in children cases. The PLO in PD12A applies to all applications issued by local authorities under ChA 1989, Pt IV in any court (see annotations **Public Law Outline (PLO)** under FPR 2010, r 12.22 and **First hearing, Case management conference and Issues resolution hearing** under FPR 2010, r 12.25). In private law cases, the CAP (which replaces the Private Law Programme) in PD12B applies to any application issued under ChA 1989, Pt II. See [2.234\[2\]](#) in relation to **Delay** ([ChA 1989, s 1\(2\)](#)).

See **Delay generally** under s 1.

**'proceedings in which any question of making a section 8 order ... arises'** (s 11(1))—The court's duty with regard to time-tabling and the giving of directions applies whenever any question of making a s 8 order or any other question with respect to such an order arises. It is not therefore confined to applications specifically for a s 8 order.

## [2.248[2]]

**Making a s 8 order before final disposal of proceedings** (s 11(3))—Section 11(3) is equivalent to the power to make interim orders. It applies whenever the court has power to make a s 8 order (see s 10 and, as to the restrictions on that power, s 9). It can, of course, be used in the traditional way, for example to grant one parent a temporary child arrangements order pending the final determination of an issue as to where the child lives or to regulate with whom the child spends time or otherwise has contact pending determination of such an issue. However, given that the court has power to make a s 8 order of its own initiative in any family proceedings in which a question arises as to the welfare of a child (see FPR 2010, r 4.3), and given the wide definition of family proceedings in s 8(3), it could be used in a much wider variety of circumstances as well, for example where an issue arises over the children in the course of pending proceedings under [FLA 1996](#) or financial proceedings under [MCA 1973](#).

The object of an interim order should normally be to hold the balance so as to cause the least possible harm to the child; see eg *B v B (Interim Contact with Grandparents)* [1993] Fam Law 393, FD. By analogy with *Re L (Interim Care Order: Power of Court)* [1996] 2 FLR 742, CA, it should not be treated as an indication of how the matter will finally be disposed of; it is not an irreversible decision. Some useful guidance as to the approach to be taken to interim hearings can be found in *RE v North Yorkshire County Council, LO and A (A Child)* [2015] EWCA Civ 1169, albeit a public law case (see further under FPR 2010, r 12.21: interim hearings). In domestic abuse cases, the court must adhere to FPR 2010, PD12J, paras 25–27 (and see also paras 5 and 12). As to the difficulties that may be



## 11 General principles and supplementary provisions

encountered in persuading the court to make without notice interim orders, particularly in cases concerned with children's living arrangements, see **Power to make without notice orders** under FPR 2010, r 12.16 and PD12E (*Urgent Business*). As to the situation in which it may be appropriate to make a child arrangements order on an interim application in pending care proceedings, see *Re RJ (Fostering: Person Disqualified)* [1999] 1 FLR 605, CA (noted under s 38).

**When events develop following the making of an interim child arrangements order concerning living arrangements**—The appropriate course is to seek a variation from the judge, rather than apply to the Court of Appeal (*Re H (A Child)* [2011] EWCA Civ 762).

**Section 11(7)**—Section 11(7)(d) can be used to afford liberty to a non-party to apply to vary or discharge a s 8 order (*Re H (Prohibited Steps Order)* [1995] 1 FLR 638, CA – prohibited steps order against mother's former cohabitee, J, requiring him not to have or to seek contact with the children, with liberty to J to apply on notice to vary or discharge the order). However, the section must not be used to regulate occupation of the former family home for the purpose of facilitating contact (*Re K (Contact Order: Condition Ousting Parent from Family Home)* [2012] 2 FLR 635, CA).

The court has jurisdiction under s 11(7) to impose any condition that secures the paramountcy of the welfare of the child. For example, in *Re M (Contact)* [2013] 1 FLR 1403, FD, the court made a conditional residence order, ordering that staying contact take place and that if it did not there would be a transfer of residence from the mother to the father. In *L v L and Another (Anticipatory Child Arrangements Order)* [2018] 1 FLR 108, FD, the court ordered that a child with an eating disorder should live with her father upon discharge from hospital and spend time with her mother subject to directions under s 11(7) ensuring that the nature and extent of the contact was the subject of consultation between the parents and relevant professionals to ensure that the mother was mentally and physically well enough to meet the child's needs and had the requisite psycho-education to address the child's dietary needs.

The court has no power in private law proceedings concerning the residence of a child to use s 11(7) to order a residential assessment of one parent with the child against the wishes of the other parent (*R v R (Private Law Proceedings: Residential Assessment)* [2002] 2 FLR 953, FD; *Birmingham City Council v H* [1992] 2 FLR 323, FD).

The court also has no power to use s 11(7) to impose on the Secretary of State for Justice binding conditions with respect to the implementation of a child arrangements order permitting indirect contact between an imprisoned father and his children because a public body (in this case, the prison governor) does not fall within the category of people listed in s 11(7)(b); see *Z v Z* [2021] EWFC 47.

**Enforcement of s 11(7) directions and conditions**—For enforcement under [MCA 1980, s 63\(3\)](#), see s 14; for penal notices, see FPR 2010, r 33.7; and for orders for recovery of a child, see [FLA 1986, s 34](#).

**Enforcement of child arrangements orders**—[ChA 1989, ss 11A–11P](#) give the court specific powers to impose directions and conditions on child arrangements orders and to improve enforcement. See further annotation **Enforcement of child arrangements orders** under s 8, and ss 11A–11P below, and see PROCEDURAL GUIDE D8.

### Essentials 27: [Children Act 1989](#) – enforcement of child arrangements orders

#### [2.249]

All references to [ChA 1989](#) unless stated otherwise (including Sch A1)

#### Essential legal framework

**Overview:** the court has a range of tools to make child arrangements orders (CAO) effective, including:

- when making a CAO, also making activity directions / conditions and monitoring provisions (ss 11A–11H);

## 11 General principles and supplementary provisions

- changing those child arrangements including, if necessary, changing the 'live with' arrangements for the child;
- on application, making an enforcement order (EO), requiring a party in breach of a CAO to carry out unpaid work, or an order for financial compensation (ss 11I–11P);
- making an order in proceedings for committal for contempt.

The focus of this document is the powers under ss 11I–11P.

**Warning notices (and penal notices) on CAOs:** all CAOs must have a warning notice on them, setting out the consequences of not complying with the order (s 11I), ie the possibility of being ordered to do unpaid work or pay compensation. The court may not make an EO unless the person concerned has received a 'warning notice' or has been otherwise informed of its terms (s 11K)).

It is vital to distinguish this mandatory statutory warning notice from the discretionary attachment to a CAO of a penal notice with the threat of committal to prison etc for contempt: see *CH v CT* [2018] EWHC 1310 (Fam), [\[2019\] 1 FLR 700](#). A penal notice, which must comply with FPR 2010, r 37, should not be routinely attached to a CAO, particularly with a first order.

**Stage 1 – failure to comply with a CAO without reasonable excuse:** initially the court must determine:

- (1) is it satisfied beyond reasonable doubt that a person has failed to comply with a provision of the CAO (s 11J(2)? This is often not in dispute;
- (2) if so, is it satisfied on a balance of probabilities that the person had a reasonable excuse for failing to comply with the provision (s 11J(3)–(4))?

If satisfied of (1) and not of (2) the court 'may' make an EO requiring the person in breach to perform unpaid work for between 40 and 200 hours.

**Stage 2 – before making an EO:** the court must:

- be satisfied that (a) the proposed order is necessary to secure the person's compliance with the CAO; and (b) the likely effect on the person of the enforcement order is proportionate to the seriousness of the breach (s 11L(1));
- be satisfied that provision for the person to do an unpaid work requirement can be made in the local justice area in which the person in breach resides or will reside (s 11L(2));
- obtain and consider information about the person and the likely effect of the EO upon them (including any conflict with their religious beliefs or any interference with their normal work or education times) (s 11L(3)–(4));
- take into account the child's welfare (s 11L(7)).

If the court is proposing to make an EO, it may ask for a Cafcass report (and Cafcass must comply) (s 11L(5)–(6)).

**Warning notices on EOs:** a notice warning of the consequences of failing to comply with the EO must be attached to the order (s 11N)).

**Monitoring of an EO:** the court must ask Cafcass to monitor and report to court in relation to the person's compliance with the unpaid work requirement imposed by the enforcement order (s 11M)).

**Suspension of an EO:** the court may suspend an enforcement order for such period as it thinks fit (s 11J(9)).

**Breach of an EO:** where the court is satisfied beyond reasonable doubt that the person has failed to comply with the unpaid work requirement imposed by an EO, the court may amend the first order so as to make the requirement more onerous, or make a second EO (but only if there is no reasonable excuse for lack of compliance). The burden

## 11 General principles and supplementary provisions

of proof lies on the person claiming to have had a reasonable excuse, and the civil standard of proof applies. See Sch A1, para 9.

**Revocation of an enforcement order:** the court may revoke an enforcement order upon application or of its own motion. See further Sch A1, para 4.

**Financial compensation:** may be ordered for losses sustained by failure, without reasonable excuse, to comply with an order (ss 11O–11P)).

### Common issues in practice

**Can more than one enforcement order be made?** More than one enforcement order can be made in relation to the same person on the same occasion (s 11J(10)).

### Procedural guides and standard orders

PROCEDURAL GUIDE D8: Enforcement of Child Arrangements Orders

Standard order 7.7

**Miscellaneous:** see FPR PD12N *Enforcement of [ChA 1989](#) Contact orders: Disclosure of Information to Officers of the National Probation Service.*

**[2.250]**

## 11A Activity directions

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) Subsection (2) applies in proceedings in which the court is considering whether to make provision about one or more of the matters mentioned in subsection (1A) by making –
  - (a) a child arrangements order with respect to the child concerned, or
  - (b) an order varying or discharging a child arrangements order with respect to the child concerned.
- (1A) The matters mentioned in this subsection are –
  - (a) with whom a child is to live,
  - (b) when a child is to live with any person,
  - (c) with whom a child is to spend time or otherwise have contact, and
  - (d) when a child is to spend time or otherwise have contact with any person.
- (2) The court may make an activity direction in connection with the provision that the court is considering whether to make.
- (2A) Subsection (2B) applies in proceedings in which subsection (2) does not apply and in which the court is considering –
  - (a) whether a person has failed to comply with a provision of a child arrangements order, or
  - (b) what steps to take in consequence of a person's failure to comply with a provision of a child arrangements order.
- (2B) The court may make an activity direction in connection with that provision of the child arrangements order.
- (3) An activity direction is a direction requiring an individual who is a party to the proceedings concerned to take part in an activity that would, in the court's opinion, help to establish, maintain or improve the involvement in the life of the child concerned of –
  - (a) that individual, or
  - (b) another individual who is a party to the proceedings.
- (4) The direction is to specify the activity and the person providing the activity.
- (5) The activities that may be so required include, in particular –
  - (a) programmes, classes and counselling or guidance sessions of a kind that –
    - (i) may assist a person as regards establishing, maintaining or improving contact with a child;
    - (ii) may, by addressing a person's violent behaviour, enable or facilitate involvement in a child's life;

## 11A Activity directions

- (b) sessions in which information or advice is given as regards making or operating arrangements for involvement in a child's life, including making arrangements by means of mediation.
- (6) No individual may be required by an activity direction –
  - (a) to undergo medical or psychiatric examination, assessment or treatment;
  - (b) to take part in mediation.
- (7) A court may not on the same occasion –
  - (a) make an activity direction under subsection (2), and
  - (b) dispose finally of the proceedings as they relate to the matters mentioned in subsection (1A) in connection with which the activity direction is made.
- (7A) A court may not on the same occasion –
  - (a) make an activity direction under subsection (2B), and
  - (b) dispose finally of the proceedings as they relate to failure to comply with the provision in connection with which the activity direction is made.
- (8) Each of subsections (2) and (2B) has effect subject to the restrictions in sections 11B and 11E.
- (9) In considering whether to make an activity direction, the welfare of the child concerned is to be the court's paramount consideration.

**[2.250[1]]**

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Activity directions**—[ChA 1989, ss 11A–11E](#) have been amended by [CFA 2014](#) so that when there is some dispute (s 11B(1)) about child arrangements and the court is considering whether or not to make, vary or discharge a child arrangements order (CAO) it may make an 'activity direction': s 11A. This allows the court to direct a *party* to undertake activities designed to help them understand the importance of complying with the order and making it work. The activities directed or imposed can relate to more than just promoting the contact provided for in the CAO. Instead, the activities will be about helping to establish, maintain or improve the involvement of a person in a child's life (s 11A(3), (5)).

**[2.251]**



## 11B Activity directions: further provision

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) A court may not make an activity direction under section 11A(2) in connection with any matter mentioned in section 11A(1A) unless there is a dispute as regards the provision about that matter that the court is considering whether to make in the proceedings.
- (2) A court may not make an activity direction requiring an individual who is a child to take part in an activity unless the individual is a parent of the child in relation to whom the court is considering provision about a matter mentioned in section 11A(1A).
- (3) A court may not make an activity direction in connection with the making, variation or discharge of a child arrangements order, if the child arrangements order is, or would if made be, an excepted order.
- (4) A child arrangements order with respect to a child is an excepted order if –
  - (a) it is made in proceedings that include proceedings on an application for a relevant adoption order in respect of the child; or
  - (b) it makes provision as regards contact between the child and a person who would be a parent or relative of the child but for the child's adoption by an order falling within subsection (5).
- (5) An order falls within this subsection if it is –
  - (a) a relevant adoption order;
  - (b) an adoption order, within the meaning of [section 72\(1\)](#) of the Adoption Act 1976, other than an order made by virtue of section 14 of that Act on the application of a married couple one of whom is the mother or the father of the child;
  - (c) a Scottish adoption order, within the meaning of the [Adoption and Children Act 2002](#), other than an order made –
    - (i) by virtue of section 14 of the Adoption (Scotland) Act 1978 on the application of a married couple one of whom is the mother or the father of the child, or
    - (ii) by virtue of section 15(1)(aa) of that Act; or
    - (iii) by virtue of an application under [section 30](#) of the Adoption and Children (Scotland) Act 2007 where subsection (3) of that section applies; or
  - (d) a Northern Irish adoption order, within the meaning of the [Adoption and Children Act 2002](#), other than an order made by virtue of Article 14 of the Adoption (Northern Ireland) Order 1987 on the application of a married couple one of whom is the mother or the father of the child.
- (6) A relevant adoption order is an adoption order, within the meaning of [section 46\(1\)](#) of the Adoption and Children Act 2002, other than an order made –
  - (a) on an application under section 50 of that Act by a couple (within the meaning of that Act) one of whom is the mother or the father of the person to be adopted, or
  - (b) on an application under section 51(2) of that Act.

11B Activity directions: further provision

- (7) A court may not make an activity direction in relation to an individual unless the individual is habitually resident in England and Wales; and a direction ceases to have effect if the individual subject to the direction ceases to be habitually resident in England and Wales.

[2.251[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [SI 2011/1740](#); [CFA 2014, s 12](#), Sch 2.

[2.252]

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## 11C Activity conditions

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) This section applies if in any family proceedings the court makes –
  - (a) a child arrangements order containing –
    - (i) provision for a child to live with different persons at different times,
    - (ii) provision regulating arrangements relating to with whom a child is to spend time or otherwise have contact, or
    - (iii) provision regulating arrangements relating to when a child is to spend time or otherwise have contact with any person; or
  - (b) an order varying a child arrangements order so as to add, vary or omit provision of a kind mentioned in paragraph (a)(i), (ii) or (iii).
- (2) The child arrangements order, may impose, or the child arrangements order may be varied so as to impose, a condition (an 'activity condition') requiring an individual falling within subsection (3) to take part in an activity that would, in the court's opinion, help to establish, maintain or improve the involvement in the life of the child concerned of –
  - (a) that individual, or
  - (b) another individual who is a party to the proceedings.
- (3) An individual falls within this subsection if he is –
  - (a) for the purposes of the child arrangements order so made or varied, a person with whom the child concerned lives or is to live;
  - (b) a person whose contact with the child concerned is provided for in that order; or
  - (c) a person upon whom that order imposes a condition under section 11(7)(b).
- (4) The condition is to specify the activity and the person providing the activity.
- (5) Subsections (5) and (6) of section 11A have effect as regards the activities that may be required by an activity condition as they have effect as regards the activities that may be required by an activity direction.
- (6) Subsection (2) has effect subject to the restrictions in sections 11D and 11E.

[2.252[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Activity condition**—Whenever the court makes or varies a child arrangements order it may make an 'activity condition' requiring the person named to take part in an activity; the activities are the same as those for an 'activity direction'.

[2.253]

11C Activity conditions

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## 11D Activity conditions: further provision

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) A child arrangements order may not impose an activity condition on an individual who is a child unless the individual is a parent of the child concerned.
- (2) If a child arrangements order is an excepted order (within the meaning given by section 11B(4)), it may not impose (and it may not be varied so as to impose) an activity condition.
- (3) A child arrangements order may not impose an activity condition on an individual unless the individual is habitually resident in England and Wales; and a condition ceases to have effect if the individual subject to the condition ceases to be habitually resident in England and Wales.

[2.253[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

[2.254]



## 11E Activity directions and conditions: making

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) Before making an activity direction (or imposing an activity condition by means of a child arrangements order), the court must satisfy itself as to the matters falling within subsections (2) to (4).
- (2) The first matter is that the activity proposed to be specified is appropriate in the circumstances of the case.
- (3) The second matter is that the person proposed to be specified as the provider of the activity is suitable to provide the activity.
- (4) The third matter is that the activity proposed to be specified is provided in a place to which the individual who would be subject to the direction (or the condition) can reasonably be expected to travel.
- (5) Before making such a direction (or such an order), the court must obtain and consider information about the individual who would be subject to the direction (or the condition) and the likely effect of the direction (or the condition) on him.
- (6) Information about the likely effect of the direction (or the condition) may, in particular, include information as to –
  - (a) any conflict with the individual's religious beliefs;
  - (b) any interference with the times (if any) at which he normally works or attends an educational establishment.
- (7) The court may ask an officer of the Service or a Welsh family proceedings officer to provide the court with information as to the matters in subsections (2) to (5); and it shall be the duty of the officer of the Service or Welsh family proceedings officer to comply with any such request.
- (8) In this section 'specified' means specified in an activity direction (or in an activity condition).

[2.254[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Factors to be taken into account when making activity directions or activity conditions**—Before the court makes an activity direction or condition, it must first be satisfied that the activity is appropriate in the circumstances of the case, that the provider of the activity is suitable to provide it, and that the activity is available in a place to which it is reasonable to expect the person in question to travel. The court must also consider the likely *effect* of the activity on the person required to undertake it, eg any conflict with the person's religious beliefs, the times when he works, and the times when he attends an educational establishment. The court may ask a Cafcass officer to provide information about these matters (s 11E(7)).

[2.255]

## 11F Activity directions and conditions: financial assistance

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) The Secretary of State may by regulations make provision authorising him to make payments to assist individuals falling within subsection (2) in paying relevant charges or fees.
- (2) An individual falls within this subsection if he is required by an activity direction or condition to take part in an activity that is expected to help to establish, maintain or improve the involvement of that or another individual in the life of a child, not being a child ordinarily resident in Wales.
- (3) The National Assembly for Wales may by regulations make provision authorising it to make payments to assist individuals falling within subsection (4) in paying relevant charges or fees.
- (4) An individual falls within this subsection if he is required by an activity direction or condition to take part in an activity that is expected to help to establish, maintain or improve the involvement of that or another individual in the life of a child who is ordinarily resident in Wales.
- (5) A relevant charge or fee, in relation to an activity required by an activity direction or condition, is a charge or fee in respect of the activity payable to the person providing the activity.
- (6) Regulations under this section may provide that no assistance is available to an individual unless –
  - (a) the individual satisfies such conditions as regards his financial resources as may be set out in the regulations;
  - (b) the activity in which the individual is required by an activity direction or condition to take part is provided to him in England or Wales;
  - (c) where the activity in which the individual is required to take part is provided to him in England, it is provided by a person who is for the time being approved by the Secretary of State as a provider of activities required by a contact activity direction or condition;
  - (d) where the activity in which the individual is required to take part is provided to him in Wales, it is provided by a person who is for the time being approved by the National Assembly for Wales as a provider of activities required by an activity direction or condition.
- (7) Regulations under this section may make provision –
  - (a) as to the maximum amount of assistance that may be paid to or in respect of an individual as regards an activity in which he is required by an activity direction or condition to take part;
  - (b) where the amount may vary according to an individual's financial resources, as to the method by which the amount is to be determined;
  - (c) authorising payments by way of assistance to be made directly to persons providing activities required by an activity direction or condition.

[2.255[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

[2.256]

## 11G Activity directions and conditions: monitoring

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) This section applies if in any family proceedings the court –
  - (a) makes an activity direction in relation to an individual, or
  - (b) makes a child arrangements order that imposes, or varies a contact order so as to impose, an activity condition on an individual.
- (2) The court may on making the direction (or imposing the condition by means of a child arrangements order) ask an officer of the Service or a Welsh family proceedings officer –
  - (a) to monitor, or arrange for the monitoring of, the individual's compliance with the direction (or the condition);
  - (b) to report to the court on any failure by the individual to comply with the direction (or the condition).
- (3) It shall be the duty of the officer of the Service or Welsh family proceedings officer to comply with any request under subsection (2).

[2.256[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Monitoring compliance with a activity direction or activity condition**—A court may ask a Cafcass officer to monitor compliance with an activity direction or condition and to report to the court if there is a failure to comply. The Cafcass Guidance (para 2.6) observes that the court may also ask Cafcass to provide information about the impact, beneficial or otherwise, of attendance, in terms of helping to address the issues in the case. Both elements require there to be liaison with the provider, information from which should be reported to the court, together with any additional Cafcass analysis and recommendations. In some cases, the Cafcass officer will have been asked by the court to have other forms of involvement with the parties and/or child during the period of participation in the activities, the outcome of which should also be reported to the court. Activity providers may also be asked to provide a report to the court, not just to Cafcass, about the attendance, participation etc of parties.

[2.257]

## 11H Monitoring contact and shared residence

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) This section applies if in any family proceedings the court makes –
  - (a) a child arrangements order containing provision of a kind mentioned in section 11C(1)(a)(i), (ii) or (iii), or
  - (b) an order varying a child arrangements order so as to add, vary or omit provision of any of those kinds.
- (2) The court may ask an officer of the Service or a Welsh family proceedings officer –
  - (a) to monitor whether an individual falling within subsection (3) complies with each provision of any of those kinds that is contained in the child arrangements order (or in the child arrangements order as varied);
  - (b) to report to the court on such matters relating to the individual's compliance as the court may specify in the request.
- (3) An individual falls within this subsection if the child arrangements order so made (or the child arrangements order as so varied) –
  - (za) provides for the child concerned to live with different persons at different times and names the individual as one of those persons;
  - (a) imposes requirements on the individual with regard to the child concerned spending time or otherwise having contact with some other person;
  - (b) names the individual as a person with whom the child concerned is to spend time or otherwise have contact; or
  - (c) imposes a condition under section 11(7)(b) on the individual.
- (4) If the child arrangements order (or the child arrangements order as varied) includes an activity condition, a request under subsection (2) is to be treated as relating to the provisions of the order other than the activity condition.
- (5) The court may make a request under subsection (2) –
  - (a) on making the child arrangements order (or the order varying the child arrangements order), or
  - (b) at any time during the subsequent course of the proceedings as they relate to contact with or to the child's living arrangements.
- (6) In making a request under subsection (2), the court is to specify the period for which the officer of the Service or Welsh family proceedings officer is to monitor compliance with the order; and the period specified may not exceed twelve months.
- (7) It shall be the duty of the officer of the Service or Welsh family proceedings officer to comply with any request under subsection (2).

## 11H Monitoring contact and shared residence

- (8) The court may order any individual falling within subsection (3) to take such steps as may be specified in the order with a view to enabling the officer of the Service or Welsh family proceedings officer to comply with the court's request under subsection (2).
- (9) But the court may not make an order under subsection (8) with respect to an individual who is a child unless he is a parent of the child with respect to whom the order falling within subsection (1) was made.
- (10) A court may not make a request under subsection (2) in relation to a child arrangements order that is an excepted order (within the meaning given by section 11B(4)).

**[2.257[1]]**

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Monitoring compliance with child arrangements orders for contact and shared residence**—A court may ask a Cafcass officer to monitor compliance with a child arrangements order, and to report to the court on such matters relating to compliance as the court may specify. The court may ask the Cafcass officer to carry out this role for up to 1 year. The people who can be subject to monitoring are: a person who is required to allow contact with a child; a person whose contact with the child is provided for; and, a person who is subject to a condition under s 11(7)(b). The Cafcass Guidance (paras 3.2, 3.3) observes that with nearly 40,000 contact orders having been made in 2007, this provision has major resource implications for Cafcass. It has been agreed with the President of the Family Division that the general assumption is that the provision should not be used in 'consent order' cases where proceedings have ended. Instead, consideration of its use should be limited to those cases where the issue of contact has remained in dispute during the proceedings and where a trial and judicial determination of the contact issue has taken place. Eg, where there is a strong feeling of dissatisfaction on the part of one or both parties, the court may consider that the imposition of a monitoring requirement is appropriate. The consent of the parties is *not* required (unlike Family Assistance Orders).

The court may end the proceedings, having made a child arrangements order for contact with a monitoring requirement, or it may set a further date for a review hearing (usually before the same judge). In either event, it is essential that timely monitoring takes place in the immediate aftermath of the order being made. This is likely primarily to take the form of telephone contact with both parties and, where the children are of sufficient age and understanding, also with the children.

The court may request that it be notified in writing about the outcome of the monitoring, either at the end of the monitoring period if compliance has been adequate, or at an earlier stage if the Cafcass officer deems it to have been inadequate. Non-compliance can range from outright refusal to allow contact, to a chronic series of more minor failures to observe the terms of the order. Chronic cases should not be allowed to 'drag on' and the Cafcass officer should notify the court and ask for guidance as to how to proceed (para 3.4).

On receipt of such notification from Cafcass, the court may, if a review date has been set, choose to bring forward the hearing. Alternatively, if proceedings have ended, the court will have to await the making of an application for enforcement by a party. Once non-compliance has been notified to the court, the parties and, in the most appropriate way, the children, monitoring should continue while guidance of the court is awaited (para 3.5).

**[2.258]**

## 11I Child arrangements orders: warning notices

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

Where the court makes (or varies) a child arrangements order, it is to attach to the child arrangements order (or the order varying the child arrangements order) a notice warning of the consequences of failing to comply with the child arrangements order.

### [2.258[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Consequences of failing to comply with child arrangements order (CAO)**—It is important to distinguish between different regimes by which a 'spend time or otherwise have contact with' CAO may be enforced:

- (1) by an enforcement order ie an order to do unpaid work (under s 11L) and/or an order for compensation for financial loss (under s 11O);
- (2) by committal for contempt (but see below);
- (3) by an application to change the CAO itself on the basis that if the other party will not comply with the current CAO the welfare balance now tips in favour of an order that the child live with the parent with whom the child is not having the contact that has been ordered ('change of residence')

**Warning notice/penal notice/is a penal notice mandatory?**—Two things are clear: (1) the court must attach a 'warning notice' where it makes or varies any CAO: s 11I; and (2) a CAO cannot be enforced by way of committal '... unless the order allegedly breached ... included a penal notice' (unless, which is difficult to imagine, this requirement is ruled to be 'wholly inapplicable'): FPR 2010, Pt 37.4(2)(e).

What is not clear is whether the mandatory warning notice under s 11I relates only to warning about the possibility of an enforcement application or whether it requires a warning also of the possibility of contempt proceedings. In *Re A* [2013] EWCA Civ 1104, [\[2014\] 1 FLR 1185](#) at [13], McFarlane LJ took the latter view, stating at [61], 'Under the modern law, the discretion is not whether or not to attach a penal notice, it is whether or not to make the contact order itself'. However, for reasons sketched in *The Family Court Practice* (2024 edn) at para 2.258[1], it is respectfully suggested that the former is the better interpretation of s 11I, that the mandatory warning relates only to the sanctions introduced to [ChA 1989](#) as ss 11L and 11O, and that the court can and should only add a penal notice about contempt of court in those cases where committal to prison is a real possibility.

### Forms

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### [2.259]



## 11J Enforcement orders

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) This section applies if a child arrangements order with respect to a child has been made.
- (2) If the court is satisfied beyond reasonable doubt that a person has failed to comply with a provision of the child arrangements order, it may make an order (an 'enforcement order') imposing on the person an unpaid work requirement.
- (3) But the court may not make an enforcement order if it is satisfied that the person had a reasonable excuse for failing to comply with the provision.
- (4) The burden of proof as to the matter mentioned in subsection (3) lies on the person claiming to have had a reasonable excuse, and the standard of proof is the balance of probabilities.
- (5) The court may make an enforcement order in relation to the child arrangements order only on the application of –
  - (a) a person who is, for the purposes of the child arrangements order, a person with whom the child concerned lives or is to live;
  - (b) a person whose contact with the child concerned is provided for in the child arrangements order;
  - (c) any individual subject to a condition under section 11(7)(b) or an activity condition imposed by the child arrangements order; or
  - (d) the child concerned.
- (6) Where the person proposing to apply for an enforcement order in relation to a child arrangements order is the child concerned, the child must obtain the leave of the court before making such an application.
- (7) The court may grant leave to the child concerned only if it is satisfied that he has sufficient understanding to make the proposed application.
- (8) Subsection (2) has effect subject to the restrictions in sections 11K and 11L.
- (9) The court may suspend an enforcement order for such period as it thinks fit.
- (10) Nothing in this section prevents a court from making more than one enforcement order in relation to the same person on the same occasion.
- (11) Proceedings in which any question of making an enforcement order, or any other question with respect to such an order, arises are to be regarded for the purposes of section 11(1) and (2) as proceedings in which a question arises with respect to a section 8 order.
- (12) In Schedule A1 –
  - (a) Part 1 makes provision as regards an unpaid work requirement;
  - (b) Part 2 makes provision in relation to the revocation and amendment of enforcement orders and failure to comply with such orders.
- (13) *(Repealed)*

## 11J Enforcement orders

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CCA 2013, s 17](#), Sch 11; [CFA 2014, s 12](#), Sch 2.

**Enforcement orders**—Where the court is satisfied beyond reasonable doubt that a person has failed to comply with a child arrangements order made under [ChA 1989, s 8](#), it may make an enforcement order, imposing on that person an 'unpaid work requirement' (community service): s 11J(2). The court may not make an enforcement order if satisfied that the person in breach had a 'reasonable excuse' for breaching the order: s 11J(3). The burden of proving a reasonable excuse is on the person in breach and the standard of proof is the balance of probabilities: s 11(4). The court may not make an enforcement order unless the person concerned has received a 'warning notice' or has been otherwise informed of its terms: s 11K. The court has a discretion as to whether to join the child as a party and may ask the Cafcass officer to consider this and report to the court with his opinion (FPR 2010, r 16.39). The factors to be considered by the court before making an enforcement order are set out in s 11L and in Sch A1, Pt I. The maximum number of hours of unpaid work that may be required is 200, and the minimum is 40. The court has power to amend or revoke an enforcement order: Sch A1, Pt II. The court may ask a Cafcass officer to monitor, or arrange for the monitoring of, a person's compliance with an enforcement order, and to report to the court on failure to comply and on any unsuitability to undertake the unpaid work: s 11M. Where an enforcement order is made, the court must attach a warning notice setting out the consequences of breaching the order ie imposition of a further enforcement order; enhancement of the existing enforcement order; use of existing sanctions for contempt. If the terms of an enforcement order are breached, the court may (in certain circumstances) amend the original order to make it more onerous, or impose another enforcement order: Sch A1, Pt II.

**Committal to prison for contempt**—See review of case law in *Re B (A Child) (Sentencing In Contempt Proceedings)* [2025] EWCA Civ 1048, where the mother had repeatedly breached orders made in private law [ChA 1989](#) proceedings. In an application for committal for contempt, the liberty of the person is at stake. Therefore, the criminal standard of proof applies, and the burden is on the applicant (*Mubarak v Mubarak (No 1)* [2000] 12 WLUK 420). The contempt must be a deliberate disobedience to a court order, and the risk of the court appearing to act in vain must be avoided, wherever possible (*Re A (A Child) (Abduction: Contempt)* [2008] EWCA Civ 1138 and *Re DB and CB (Minors)*; *sub nom Southwark London Borough v B* [1993] 2 FLR 559). The dual purpose of committal is to punish for breach and to ensure future compliance. In order to accomplish these goals, injunctive orders must be clear, unambiguous and drafted with care; Injunctive orders must be clear, unambivalent and drafted with care; simplicity should be the guide. Similarly, where breaches are alleged, they must be particularised with care so that the alleged contemnor knows precisely the allegations against him and is able to marshal his defence, and so as to enable the applicant to focus on what evidence is likely to be required to establish the breach – see *Re Whiting* [2013] EWHC B27 (Fam).

In *Re L (A Child) sub nom In the Matter of Gous Oddin* [2016] EWCA Civ 173, [\[2017\] 1 FLR 1135](#) the Court of Appeal provided guidance and a checklist of matters to be considered prior to a committal hearing and emphasised the duty of counsel and solicitors to assist the court, particularly where a person's liberty was at stake. In particular, a person accused of contempt was not a compellable witness, but had an absolute right to remain silent and not to go into the witness box.

Before any court embarks on hearing a committal application, whether for a contempt in the face of the court or for breach of an order, it should ensure that the following matters are at the forefront of its mind:

- (1) There is complete clarity at the start of the proceedings as to precisely what the foundation of the alleged contempt is: contempt in the face of the court, or breach of an order.
- (2) Prior to the hearing the alleged contempt should be set out clearly in a document or application that complies with FPR 2010, r 37 and which the person accused of contempt has been served with.
- (3) If the alleged contempt is founded on breach of a previous court order, the person accused had been served with that order, and that it contained a penal notice in the required form and place in the order.
- (4) Whether the person accused of contempt has been given the opportunity to secure legal representation, as they are entitled to.

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- (5) Whether the judge hearing the committal application should do so, or whether it should be heard by another judge.
- (6) Whether the person accused of contempt has been advised of the right to remain silent.
- (7) If the person accused of contempt chooses to give evidence, whether they have been warned about self-incrimination.
- (8) The need to ensure that in order to find the breach proved the evidence must meet the criminal standard of proof, of being sure that the breach is established.
- (9) Any committal order made needs to set out what the findings are that establish the contempt of court, which are the foundation of the court's decision regarding any committal order. See further [Contempt of Court Act 1981](#) and commentary thereon.

The court will take a robust approach to the question of committal to prison for contempt in family proceedings (*Re W (Family Proceedings: Applications)* [2011] 1 FLR 2163, FD; *Doncaster MBC v Watson and Haigh* [2012] 1 FLR 599, FD). See for example *Borg v El-Zubaidy* [2017] EWFC 58, where a father was committed to prison for contempt for 1 year for failing to procure the return of his children to the UK from Libya, concealing their whereabouts, failing to make them available for telephone contact and failing to instruct members of his family to comply with court orders. In *Gibbs v Gibbs* [2017] EWHC 1700 (Fam), a mother was committed to prison where she had breached a prohibited steps order by continuing a campaign of unfounded allegations that the father of their children had physically, sexually and emotionally abused them. The court held that given the mother's unwillingness to change and her lack of insight into the impact of her behaviour on not only the father, but also the children, the only option was to impose an immediate 9-month custodial sentence to reflect the nature and consequences of the breach of the order. The mother's appeal against the committal order was subsequently dismissed on the basis there were no other means to ensure compliance with the PSO other than to send her to prison. In committal proceedings it is vital to ensure that the evidential and procedural rules are obeyed, and extra vigilance is required when the respondent to such proceedings is a litigant in person (*Hammerton v Hammerton* [2007] 2 FLR 1133, CA). Where the respondent's breach is an active breach that directly strikes at the heart of what the court ordered, it may be appropriate to impose a custodial sentence (*Re X (A Child by His Litigation Friend)* [2011] 2 FLR 793, CA) and an appellate court is unlikely to interfere unless the sentence passed is manifestly disproportionate or excessive (*Slade v Slade* [2010] 1 FLR 160, CA). The length of any sentence for committal for contempt must bear some reasonable relationship to the statutory maximum of 2 years (*Hale v Tanner* [2000] 2 FLR 879, CA). In *Medway Council v Root* [2017] 11 WLUK 514, the Court of Appeal upheld a suspended sentence of 6 months' imprisonment for a mother's breach of an injunction prohibiting any publication of court papers from care proceedings on the basis that the sentence was justified and not excessive; the absence of intention to breach an order was irrelevant. In *CH v CT* [2018] EWHC 1310 (Fam), [2019] 1 FLR 700, the importance of avoiding serious procedural irregularities was emphasised (this case is discussed at para 2.258[1]). Similarly, in *Re Nasrullah Mursalin* [2019] EWCA Civ 1559 the court confirmed that committal proceedings were of the utmost seriousness and it was imperative that the strict procedural rules were complied with.

A sentence for contempt in civil proceedings can be the subject of an application for early discharge (*CJ v Flintshire Borough Council* [2010] 2 FLR 1224, CA; *Doncaster Metropolitan District Council v Watson* [2012] 1 FLR 613, FD). However, where the court allows an application to purge contempt it cannot then suspend the relevant term of imprisonment. The court has three choices when dealing with an application to purge contempt: (1) grant the application and order the immediate release of the contemnor; (2) defer the contemnor's release until a stated future date; or (3) refuse the application (*Doncaster Metropolitan Borough Council v Watson (No 2)* [2012] 1 FLR 619, FD). See further under [CCA 1981, s 14](#).

**Enforcement of child arrangements orders when child does not wish to go**—Where the parent's obligation is to 'allow' contact and to 'make [the child] available' for contact, that wording does not place him in breach of the order if the child refuses to co-operate (*Re L-W (Enforcement and Committal: Contact)*; *CPL v CH-W and Others* [2011] 1 FLR 1095, CA). Neither is the father under a legally enforceable obligation to take such steps in the exercise of his parental discipline, guidance and encouragement as are reasonable in all of the circumstances to ensure that contact takes place. Before deciding that a parent is the author of a child's resistance to contact so that

## 11J Enforcement orders

he can be made the subject of a coercive order, the court must be sure that the parent can still reverse the child's attitude. Even then, a court (despite the affront to its dignity) might have to be prepared, if it comes to the point of committal, to accept that the predictive premise on which it initially acted has turned out to be wrong: for example, where the child has internalised the residential parent's hostility so that punishing that parent could no longer produce the intended outcome and might produce the opposite. See also **Transfer of living arrangements** and **Suspended transfer of living arrangements** under s 8.

**Procedure for applying for an enforcement order**—An application for an enforcement order must be made on Form C79 by a person who falls within the criteria set out in s 11J (5)(a)–(d). See PROCEDURAL GUIDE D8.

**Forms**

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**[2.260]**

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## 11K Enforcement orders: further provision

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) A court may not make an enforcement order against a person in respect of a failure to comply with a provision of a child arrangements order unless it is satisfied that before the failure occurred the person had been given (in accordance with rules of court) a copy of, or otherwise informed of the terms of –
  - (a) in the case of a failure to comply with a provision of a child arrangements order where the order was varied before the failure occurred, a notice under section 11I relating to the order varying the child arrangements order or, where more than one such order has been made, the last order preceding the failure in question;
  - (b) in any other case, a notice under section 11I relating to the child arrangements order.
- (2) A court may not make an enforcement order against a person in respect of any failure to comply with a provision of a child arrangements order occurring before the person attained the age of 18.
- (3) A court may not make an enforcement order against a person in respect of a failure to comply with a provision of a child arrangements order where the child arrangements order is an excepted order (within the meaning given by section 11B(4)).
- (4) A court may not make an enforcement order against a person unless the person is habitually resident in England and Wales; and an enforcement order ceases to have effect if the person subject to the order ceases to be habitually resident in England and Wales.

**[2.260[1]]**

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**[2.261]**

## 11L Enforcement orders: making

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) Before making an enforcement order as regards a person in breach of a provision of a child arrangements order, the court must be satisfied that –
  - (a) making the enforcement order proposed is necessary to secure the person's compliance with the child arrangements order or any child arrangements order that has effect in its place;
  - (b) the likely effect on the person of the enforcement order proposed to be made is proportionate to the seriousness of the breach.
- (2) Before making an enforcement order, the court must satisfy itself that provision for the person to work under an unpaid work requirement imposed by an enforcement order can be made in the local justice area in which the person in breach resides or will reside.
- (3) Before making an enforcement order as regards a person in breach of a provision of a child arrangements order, the court must obtain and consider information about the person and the likely effect of the enforcement order on him.
- (4) Information about the likely effect of the enforcement order may, in particular, include information as to –
  - (a) any conflict with the person's religious beliefs;
  - (b) any interference with the times (if any) at which he normally works or attends an educational establishment.
- (5) A court that proposes to make an enforcement order may ask an officer of the Service or a Welsh family proceedings officer to provide the court with information as to the matters in subsections (2) and (3).
- (6) It shall be the duty of the officer of the Service or Welsh family proceedings officer to comply with any request under this section.
- (7) In making an enforcement order in relation to a child arrangements order, a court must take into account the welfare of the child who is the subject of the child arrangements order.

#### **[2.261[1]]**

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Factors to be considered by the court before making an enforcement order**—In deciding whether to make an enforcement order, the court must be satisfied that doing so is necessary to secure compliance with the child arrangements order, and that the order is proportionate to the seriousness of the breach. Before making an enforcement order the court must obtain and consider information about the person on whom the order would be imposed, and the likely effect of the order on him eg any conflict with the person's religious beliefs, the times when he works, and the times when he attends an educational establishment. The court may ask a Cafcass officer to provide information about these matters. The Cafcass Guidance (para 4.1) observes that where an enforcement order imposing an unpaid work requirement (of between 40 and 200 hours) is made, Cafcass will be sent a copy of each Form C79 enforcement application, to enable it to undertake updating screening checks with the relevant local authority and the police. The outcome of these checks must be promptly notified to the court, together with any other requested information. The court has a discretion to join the child as a party to enforcement proceedings. The child is not automatically a party even where he was a party to the original proceedings. In practice, it will rarely be



## 11L Enforcement orders: making

necessary, and Cafcass Legal will advise in cases of difficulty. The court must also take into account the welfare of the child concerned, but this is *not* its paramount consideration (see Cafcass Guidance, para 4.2). The Cafcass Guidance (para 4.2) observes that in order to inform the court about the local availability of unpaid work, it will be necessary to liaise with the local National Probation Service (NPS), which stands ready to provide unpaid work to those ordered by the court to undertake it. When making the order, the court should give leave to the officer to disclose to NPS such information in relation to the proceedings as necessary (see FPR PD12N *Enforcement of [Children Act 1989](#) Child Arrangements Orders: Disclosure of Information to Officers of the National Probation Service*).

**Forms**

[Click here to view Form online](#)

**[2.262]**

## 11M Enforcement orders: monitoring

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) On making an enforcement order in relation to a person, the court is to ask an officer of the Service or a Welsh family proceedings officer –
  - (a) to monitor, or arrange for the monitoring of, the person's compliance with the unpaid work requirement imposed by the order;
  - (b) to report to the court if a report under paragraph 8 of Schedule A1 is made in relation to the person;
  - (c) to report to the court on such other matters relating to the person's compliance as may be specified in the request;
  - (d) to report to the court if the person is, or becomes, unsuitable to perform work under the requirement.
- (2) It shall be the duty of the officer of the Service or Welsh family proceedings officer to comply with any request under this section.

[2.262[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#).

**Monitoring enforcement orders**—The court may ask a Cafcass officer to monitor, or arrange for the monitoring of, a person's compliance with an enforcement order, and to report to the court on failure to comply and on any unsuitability to undertake the unpaid work. The Cafcass Guidance (para 4.3) observes that the monitoring of individuals' compliance with unpaid work requirements will be undertaken by the National Probation Service (NPS), which in turn will report to Cafcass. When making the order, the court should give leave to the officer to disclose to NPS such information in relation to the proceedings as necessary (see FPR PD12N *Enforcement of [Children Act 1989](#) Child Arrangements Orders: Disclosure of Information to Officers of the National Probation Service*). Where NPS determines there has been non-compliance without reasonable excuse, this will be reported to Cafcass. Similarly, if an individual is or becomes unsuitable to perform unpaid work, NPS will notify Cafcass of this. In both instances, Cafcass must report such matters to the court. There may be other matters that should be reported to the court eg where someone moves from their address without providing a new address.

[2.263]

## 11N Enforcement orders: warning notices

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

Where the court makes an enforcement order, it is to attach to the order a notice warning of the consequences of failing to comply with the order.

[2.263[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#).

**Attaching a warning notice to an enforcement order**—Where an enforcement order is made, the court must attach a warning notice setting out the consequences of breaching the order ie the imposition of a further enforcement order, the enhancement of the existing enforcement order, and the use of existing sanctions for contempt. Schedule A1 makes further provision about enforcement orders: the maximum number of hours of unpaid work that may be required is 200 and the minimum is 40; the court has power to amend or revoke an enforcement order; if terms of an enforcement order are breached, the court may (in certain circumstances) amend the original order to make it more onerous, or impose another enforcement order.

[2.264]

## 11O Compensation for financial loss

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) This section applies if a child arrangements order with respect to a child has been made.
- (2) If the court is satisfied that –
  - (a) an individual has failed to comply with a provision of the child arrangements order, and
  - (b) a person falling within subsection (6) has suffered financial loss by reason of the breach,

it may make an order requiring the individual in breach to pay the person compensation in respect of his financial loss.

- (3) But the court may not make an order under subsection (2) if it is satisfied that the individual in breach had a reasonable excuse for failing to comply with the particular provision of the child arrangements order.
- (4) The burden of proof as to the matter mentioned in subsection (3) lies on the individual claiming to have had a reasonable excuse.
- (5) An order under subsection (2) may be made only on an application by the person who claims to have suffered financial loss.
- (6) A person falls within this subsection if he is –
  - (a) a person who is, for the purposes of the child arrangements order, a person with whom the child concerned lives or is to live;
  - (b) a person whose contact with the child concerned is provided for in the child arrangements order;
  - (c) an individual subject to a condition under section 11(7)(b) or an activity condition imposed by the child arrangements order; or
  - (d) the child concerned.
- (7) Where the person proposing to apply for an order under subsection (2) is the child concerned, the child must obtain the leave of the court before making such an application.
- (8) The court may grant leave to the child concerned only if it is satisfied that he has sufficient understanding to make the proposed application.
- (9) The amount of compensation is to be determined by the court, but may not exceed the amount of the applicant's financial loss.
- (10) In determining the amount of compensation payable by the individual in breach, the court must take into account the individual's financial circumstances.
- (11) An amount ordered to be paid as compensation may be recovered by the applicant as a civil debt due to him.
- (12) Subsection (2) has effect subject to the restrictions in section 11P.
- (13) Proceedings in which any question of making an order under subsection (2) arises are to be regarded for the purposes of section 11(1) and (2) as proceedings in which a question arises with respect to a section 8 order.

## 11O Compensation for financial loss

- (14) In exercising its powers under this section, a court is to take into account the welfare of the child concerned.

**[2.264[1]]**

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Financial compensation orders**—The court may require a person who has caused financial loss to another person as a result of breaching a child arrangements order (including breaching a condition attached to an order for contact), to pay compensation up to the amount of the loss: s 11O. Before making a compensation order the court must take into account the welfare of any child concerned, and the financial circumstances of the person in breach. The applicant must fall within the criteria set down by s 11O(6)(a)–(d). The court may not make an order for financial compensation where the person in breach did not receive a warning notice under s 11I and was not otherwise informed of its terms: s 11P. The Cafcass Guidance (para 5.1) observes that while Cafcass is unlikely to be aware of applications being made for compensation, it is possible that the court may seek information from Cafcass about the welfare of the child. Cafcass should respond in accordance with the specific request made by the court. The court has a discretion as to whether to join the child as a party (see para 4.1) and may ask the Cafcass officer to consider this and report to the court with his opinion (FPR 2010, r 16.39 and PD16A). Section 11P provides for circumstances in which a court may not make an order for financial compensation; these include: where a person did not receive a warning notice under s 11I; where he was not otherwise informed of the terms; or where the order is an excepted order (see s 11B(4) for meaning of 'excepted' orders).

**Procedure for applying for a financial compensation order**—See PROCEDURAL GUIDE D8.

**[2.265]**

## 11P Orders under section 11O(2): further provision

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) A court may not make an order under section 11O(2) requiring an individual to pay compensation in respect of a failure by him to comply with a provision of a child arrangements order unless it is satisfied that before the failure occurred the individual had been given (in accordance with rules of court) a copy of, or otherwise informed of the terms of –
  - (a) in the case of a failure to comply with a provision of a child arrangements order where the order that was varied before the failure occurred, a notice under section 11I relating to the order varying the child arrangements order or, where more than one such order has been made, the last order preceding the failure in question;
  - (b) in any other case, a notice under section 11I relating to the child arrangements order.
- (2) A court may not make an order under section 11O(2) requiring an individual to pay compensation in respect of a failure by him to comply with a provision of a child arrangements order where the failure occurred before the individual attained the age of 18.
- (3) A court may not make an order under section 11O(2) requiring an individual to pay compensation in respect of a failure by him to comply with a provision of a child arrangements order where the child arrangements order is an excepted order (within the meaning given by section 11B(4)).

[2.265[1]]

**Amendments**—Inserted by [CAA 2006, s 1](#). Amended by [CFA 2014, s 12](#), Sch 2.

[2.266]



## 12 Child arrangements orders and parental responsibility

The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

(1) Where –

- (a) the court makes a child arrangements order with respect to a child,
- (b) the father of the child, or a woman who is a parent of the child by virtue of [section 43](#) of the Human Fertilisation and Embryology Act 2008, is named in the order as a person with whom the child is to live, and
- (c) the father, or the woman, would not otherwise have parental responsibility for the child, the court must also make an order under section 4 giving the father, or under section 4ZA giving the woman, that responsibility.

(1A) Where –

- (a) the court makes a child arrangements order with respect to a child,
- (b) the father of the child, or a woman who is a parent of the child by virtue of [section 43](#) of the Human Fertilisation and Embryology Act 2008, is named in the order as a person with whom the child is to spend time or otherwise have contact but is not named in the order as a person with whom the child is to live, and
- (c) the father, or the woman, would not otherwise have parental responsibility for the child, the court must decide whether it would be appropriate, in view of the provision made in the order with respect to the father or the woman, for him or her to have parental responsibility for the child and, if it decides that it would be appropriate for the father or the woman to have that responsibility, must also make an order under section 4 giving him, or under section 4ZA giving her, that responsibility.

(2) Where the court makes a child arrangements order and a person who is not a parent or guardian of the child concerned is named in the order as a person with whom the child is to live, that person shall have parental responsibility for the child while the order remains in force so far as providing for the child to live with that person.

(2A) Where the court makes a child arrangements order and –

- (a) a person who is not the parent or guardian of the child concerned is named in the order as a person with whom the child is to spend time or otherwise have contact, but
- (b) the person is not named in the order as a person with whom the child is to live, the court may provide in the order for the person to have parental responsibility for the child while paragraphs (a) and (b) continue to be met in the person's case.

(3) Where a person has parental responsibility for a child as a result of subsection (2) or (2A), he shall not have the right –

(a) *(Repealed)*

- (b) to agree, or refuse to agree, to the making of an adoption order, or an order under [section 84](#) of the Adoption and Children Act 2002, with respect to the child; or

## 12 Child arrangements orders and parental responsibility

- (c) to appoint a guardian for the child.
- (4) Where subsection (1) requires the court to make an order under section 4 or 4ZA in respect of a parent of a child, the court shall not bring that order to an end at any time while the child arrangements order concerned remains in force so far as providing for the child to live with that parent.
- (5), (6) *(Repealed)*

**[2.266[1]]**

**Amendments**—[ACA 2002, ss 114, 139, Sch 3, paras 54, 57](#); [CYP A 2008, s 37\(2\)](#); [HFEA 2008, s 56, Sch 6, Pt 1](#), para 28(1), (2); [CFA 2014, s 12](#), Sch 2.

**Section 12(1) and (1A)**—The requirement to make a parental responsibility order to the father of the child concerned or to the child's second female parent and to consider whether to make such an order in the circumstances set out in s 12(1) and (1A), is often overlooked. The key point is that if the child arrangements order is later discharged the order for PR will remain.

In *Bournemouth, Christchurch & Poole Council v KC & Ors* [2020] EWFC 20 a father's PR in Poland was limited in a way that could not happen in the UK. It was therefore necessary to make a PR order under s 12(1) when making a CAO which provided that his daughter return to Poland to live with him. It was held that the words 'would not otherwise have parental responsibility for the child' in s 12(1)(c) should be interpreted as meaning full parental responsibility as envisaged by s 4.

**[2.267]**

## 13 Change of child's name or removal from jurisdiction

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) Where a child arrangements order to which subsection (4) applies is in force with respect to a child, no person may –
  - (a) cause the child to be known by a new surname; or
  - (b) remove him from the United Kingdom;

without either the written consent of every person who has parental responsibility for the child or the leave of the court.

- (2) Subsection (1)(b) does not prevent the removal of a child, for a period of less than one month, by a person named in the child arrangements order as a person with whom the child is to live.
- (3) In making a child arrangements order to which subsection (4) applies, the court may grant the leave required by subsection (1)(b), either generally or for specified purposes.
- (4) This subsection applies to a child arrangements order if the arrangements regulated by the order consist of, or include, arrangements which relate to either or both of the following –
  - (a) with whom the child concerned is to live, and
  - (b) when the child is to live with any person.

[2.267[1]]

**Amendments**—[CFA 2014, s 12](#), Sch 2.

**Defined terms**—'child': s 105(1); 'child arrangements order': s 8(1); 'parental responsibility': s 3.

**Change of name** (s 13(1)(a))—See commentary to s 8.

**Method of application for leave** (s 13(1)(a), (b))—The permission application is a freestanding application and not a species of s 8 application (*Re B (Change of Surname)* [1996] 1 FLR 791, CA). It is made in accordance with FPR 2010, rr 18.1–18.13, which deal only with applications for permission to commence proceedings. Although the application can be made in the family court, where it is for permission to remove a child permanently from the jurisdiction, it should not be heard by lay justices but should be transferred upwards for determination by a District Judge, Circuit Judge or High Court judge, depending on the complexity and difficulty of the decision (FC(CDB)R 2014, *President's Guidance on Allocation and Gatekeeping*). There is a lack of clarity about how relocation applications are to be classified – the debate is whether such applications should be made under s 13 or by way of an application for a specific issue order under s 8. Under s 13, where a shared residence order or child arrangements order was in force, the child could not be removed from the jurisdiction without consent of all those with parental responsibility or the leave of the court. Under s 9(7), the court could not make a s 8 order, other than one varying or discharging such an order, in respect of a child who had reached 16 unless there were exceptional circumstances. That bar would not apply if the application fell to be considered under s 13. In *Re C (Older Children: Relocation)* [2016] 2 FLR 1159, CA; *sub nom H v C & E (A Child by his solicitor, Anne-Marie Hutchinson)*, the Court of Appeal confirmed that the general intention of [ChA 1989](#) was to prevent the imposition of inappropriate requirements on older children and that it was inappropriate to have left a shared residence order in place in relation to a mature and intelligent older child.

## 13 Change of child's name or removal from jurisdiction

**[2.267[2]]**

**External relocation and removal from jurisdiction (s 13(1)(b))**—Relocation outside the jurisdiction almost always involves a decision to bring up a child in a different culture and social milieu; in such cases the court must recognise that it is relinquishing jurisdiction to the courts of the state to which the parent is moving and therefore orders for contact should not be made when granting leave to relocate, as they are contrary to principle – see *Re N (Leave to Remove from the Jurisdiction) (No 2)* [2014] EWHC B16 (Fam) and *Re R (Leave to Remove: Contact)* [2011] 1 FLR 1336, CA.

Whether the application for permanent overseas relocation is configured under s 8 or s 13, the most recent and authoritative appellate decision on the approach to such applications is as set out in *Re F (A Child) (International Relocation Case)* [2015] EWCA Civ 882 (for cases involving domestic abuse, see *Re O (Domestic Abuse: International Relocation)* [2025] EWCA Civ 888, [2025] 2 FLR 1168 at [92]–[94] and **Domestic abuse – relocation cases** under para 2.245[8]). The court should concentrate not on assumptions or preconceptions, but on the statutory welfare question which is before it. In *L v F (Relocation: Second Appeal)* [2018] 2 FLR 608, CA the Court of Appeal confirmed that: (a) selective or partial legal citation from *Payne v Payne* [2001] EWCA Civ 166 without any wider legal analysis is likely to be regarded as an error of law; (b) in particular, a judgment that not only focuses solely on *Payne*, but also compounds that error by only referring to the four-point 'discipline' set out by Thorpe LJ in *Payne*, is likely to be 'wholly wrong'; and (c) a step as significant as the relocation of a child to a foreign jurisdiction where the fundamental interference between one parent and a child is envisaged requires that the parents' plans be scrutinised and evaluated by reference to the proportionality of the same.

The following framework as set out in *Re F* therefore applies:

- (a) the only authentic principle is the paramount welfare of the child;
- (b) the implementation of [ChA 1989, s 1\(2A\)](#) makes clear the heightened scrutiny required of proposals which interfere with the relationship between child and parent;
- (c) the welfare checklist is relevant whether the case is brought under [s 8](#) or [s 13](#) ChA 1989;
- (d) the effect of previous guidance in cases such as *Payne* may be misleading unless viewed in its proper context which is no more than that it may assist the judge to identify potentially relevant issues;
- (e) in assessing paramount welfare in international relocation cases the court must carry out a holistic and non-linear comparative evaluation of the plans proposed by each parent; in complex international relocation cases this may need to be of some sophistication and complexity;
- (f) in addition to Art 8 rights (indeed probably as a component of the Art 8 ECHR rights and s 1(2A)) one must factor in the rights of the child to maintain personal relations and direct contact with both parents on a regular basis (unless that is contrary to his interests) in accordance with Article 9 of the United Nations Convention on the Rights of the Child (UNCRC);
- (g) furthermore, the court must also take into account the Art 8 rights of the parents; in the usual case the child's Art 8 right will take priority over the parents but that should not cause the court to overlook the Art 8 rights of others affected and the court should balance the competing Art 8 rights; and
- (h) the effect of an international relocation is such that the Art 8 rights of a child are likely to be infringed and the court must consider the issue of proportionality of the interference. In *Re K (A Child) (International Relocation: Appeal against Judge's Findings of Fact)* [2017] 1 FLR 1459, CA, the Court of Appeal confirmed that the analysis of a child's best interests would necessarily involve a careful examination of the parents' wishes and their interests, and their Art 8 rights, given the potential for the impact of the decision on the parents to affect the child as well. The balancing exercise to be carried out in relocation exercises is one in which each and every factor relating to a child's welfare should be weighed to determine which of a range of options best met the requirement to afford paramount consideration to the child's welfare. In *Re C (A Child)* [2019] EWHC 131 (Fam) Williams J considered that in most cases in practice the proportionality issue will be subsumed within the overall holistic evaluation in particular when considering effect of change and risk of harm. In reality, in the judicial consideration of the welfare checklist, it simply is likely to mean

## 13 Change of child's name or removal from jurisdiction

the judge will be that much more alert to the importance and thus weight to be afforded to the child's right to maintain contact with the left behind parent and their rights to a stable and secure family life with their primary carer, if there is one.

In relocation cases, the welfare checklist should be applied and the child's wishes and feelings are a factor in that process. However, even with older children, their wishes and feelings are only ever one of the factors to be considered in arriving at what is in their best interests – see *Re N-A (Children)* [2017] EWCA Civ 230. In the majority of cases, it is normal to obtain an independent Cafcass report on the child's wishes and feelings, and that will be the case if the child is having contact that would be disrupted by relocation. However, in some cases no report will be necessary and to order it would be a misuse of resources: *Re T (A Child)* (CA, 19 November 2015, *unreported*). It is not essential to have a Cafcass investigation into the circumstances; ordering a report may not always be helpful to the court in reaching its decision, and it is a matter for the judge's discretion (*Re R (Leave to Remove: Contact)* [2011] 1 FLR 1336, CA). The judge is entitled to depart from the recommendations of the Cafcass officer where the report is not balanced and the judge has to look at the case in the round (*Re E (Relocation: Removal from Jurisdiction)* [2013] 2 FLR 290, CA; *Re L (Relocation: Second Appeal)* [2018] 2 FLR 608, CA). The more finely balanced any decision may be regarding the future welfare of a child, the less likely it is that any consequent appeal will succeed against the judge's decision to choose one viable option against another: *Re C (Permission to Relocate)* [2014] EWCA Civ 705. See *Re E (Children)* [2017] EWCA Civ 262 for an example of a finely balanced case where the Court of Appeal held that a clear welfare assessment was absent and the judgment fell a long way short of adequately explaining the judge's analysis of the needs of three young children.

Where there is more than one child involved, the court must consider separately the interests of each child in the light of their ages, stages of development and the nature of their needs (*Re S (Relocation: Interests of Siblings)* [2011] 2 FLR 678, CA).

The court must also give regard to the extent or absence of any meaningful reciprocal enforcement regime in the foreign country, and the court must assess carefully the risk of breach of any contact arrangements and the magnitude of any breach – it is for the court to achieve what security it can for the child by building in all practical safeguards to its order (*Re T (Staying Contact in Non-Convention Country)* [1999] 1 FLR 262, FD; *Re A (Security for Return to the Jurisdiction)* (Note) [1999] 2 FLR 1, FD; *Re K (Removal From Jurisdiction: Practice)* [1999] 2 FLR 1084, CA).

In *Re B (Removal from Jurisdiction)*; *Re S (Removal from Jurisdiction)* [2003] 2 FLR 1043, CA, the Court of Appeal emphasised that where a mother cared for the children within a new family, the impact of refusal on the new family and the stepfather must also be carefully evaluated. However, where removal from the jurisdiction will cause a significant loss to the child in relation to emotional and educational issues permission may be refused (*Re Y (Leave to Remove from Jurisdiction)* [2004] 2 FLR 330, FD). For examples of the court refusing permission to relocate, see *Re AR (A Child: Relocation)* [2010] 2 FLR 1577, FD; *Re A (Removal from Jurisdiction)* [2014] 1 FLR 1, CA; *C v C* (above). See *WS v KL* [2020] EWHC 2548 (Fam) where a father's appeal against a relocation order granted to the mother was allowed where the judge had failed to undertake an analysis of the welfare factors relating to each of the options for the care of the two children and had not analysed the other realistic option available to the court, namely the children remaining in the UK with both parents.

Where a child's care-givers separate and one goes to live abroad with the child, it is sensible for the child to be separately represented in proceedings concerning him or her; see *Re B (A Child) (No 2) (Welfare: Child Arrangements Order)* [2017] 2 FLR 1326, FD.

Note that where there is a child arrangements order for residence in place, the removal of a child from England and Wales to Scotland does not require an application for permission to remove the child from the jurisdiction, since Scotland is part of the UK (*Re T (A Child)* [2001] EWCA Civ 1067). Since 24 July 2018, the Judicial Protocol for Children's Cases in Scotland, and England and Wales applies and formalises arrangements that have been in place for some time. The Protocol was updated in February 2023 to include Northern Ireland and was last updated in May 2025. The Protocol provides for the direct exchange of information between judges in intra-UK cross-border cases involving children. It allows for the prompt exchange of key information about any existing proceedings and

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the legal options available to the court in each jurisdiction. It is intended to ensure that cases with a cross-border dimension are dealt with promptly and efficiently. Under the Protocol, a judge dealing with a cross-border case will be able to make a request for information to the designated liaison judge in their own jurisdiction, who in turn can seek information from their opposite number. Judges should be able to establish what is happening in the alternative jurisdiction. Short supplementary handbooks have also been published ([www.judiciary.uk/guidance-and-resources/judicial-protocol-regulating-direct-judicial-communications-between-scotland-england-wales-and-northern-ireland-in-childrens-cases/](http://www.judiciary.uk/guidance-and-resources/judicial-protocol-regulating-direct-judicial-communications-between-scotland-england-wales-and-northern-ireland-in-childrens-cases/)).

For specific guidance in radicalisation cases, see the President's Guidance of 8 October 2015: *Radicalisation Cases in the Family Courts* (set out in Part V) and the commentary thereto.

Practitioners should note that since March 2020 the Institute of Family Law Arbitrators (IFLA) has expanded the scope of its children scheme to include both temporary and permanent relocation to certain foreign jurisdictions. See commentary to s 8 – **Arbitration**.

**[2.267[3]]**

**Internal relocation within the UK**—Relocation within the UK can present problems because while the primary carer might not have an obligation to apply under s 13(1)(b), he or she may still have to defeat the challenge of an application for a prohibited steps order under s 8 or for the imposition of a condition to the child arrangements order under s 11(7). However, because welfare is the governing principle in any internal relocation case, there is no reason to differentiate between those cases and external relocation cases. The approach set out in *K v K (Relocation: Shared Care Arrangement)* [2012] 2 FLR 880, CA and *Re F (A Child) (International Relocation Cases)* [2017] 1 FLR 979, CA should apply equally to internal relocation cases. Clearly, however, the outcome of that approach will depend entirely on the facts of the individual case. In *Re R (Internal Relocation: Appeal)* [2017] 2 FLR 921, CA, the Court of Appeal considered the proper approach to applications for the return of children who had unilaterally been removed from their home by one parent and taken to another place in England and Wales, and confirmed that there is no general principle in favour of summary return to the place where the child was formerly resident. Such proceedings are normally brought under [ChA 1989](#) and must be decided by applying the welfare principle and the welfare checklist.

In making such decisions, the welfare of the child is always paramount (*Re H (Children) (Residence Order: Condition)* [2001] 2 FLR 1277, CA. In *Re C (Internal Relocation)* [2017] 1 FLR 103, CA, the Court of Appeal confirmed the proper approach to the whole issue of relocation, which can be summarised as follows:

- There was no difference in basic approach as between external relocation and internal relocation; the decision in either type of case hinged ultimately on the welfare of the child.
- The wishes, feelings and interests of the parents and the likely impact of the decision on each of them were of great importance, but in the context of evaluating and determining the welfare of the child.
- In either type of relocation case, external or internal, a judge was likely to find helpful some or all of the considerations referred to in *Payne*, but not as a prescriptive blueprint, rather and merely as a checklist of the sort of factors that would or might need to be weighed in the balance when determining which decision would better serve the welfare of the child.

It is wrong in principle to apply different criteria if an order for shared living arrangements is in place as opposed to an order for sole care; the correct approach is to examine the underlying facts and decide in all of the circumstances whether it is in the child's interests to relocate with the parent who wishes to move (*Re L (Shared Residence Order)* [2009] 1 FLR 1157, CA).

**Temporary removal from jurisdiction**—Where it is intended that the removal of a child from the jurisdiction is only temporary, different considerations will apply to those relating to permanent removal (*Re A (Temporary Removal from Jurisdiction)* [2005] 1 FLR 639, CA). However, in *Re R (Prohibited Steps Order)* [2014] 1 FLR 643, CA, the Court of Appeal confirmed the approach to be taken by the court when determining an application for the temporary removal of a child from the jurisdiction; it is clear that the overriding consideration of the court in deciding whether to



## 13 Change of child's name or removal from jurisdiction

allow a parent to take a child to a non-Hague Convention country remains whether the making of that order would be in the best interests of the child. In cases where there is some risk of abduction and an obvious risk to the child if that risk were to materialise: (a) the court must be positively satisfied that the advantages to the child of visiting that country outweigh the risks to their welfare that the visit would entail; (b) the court must routinely be involved in investigating what safeguards could be put in place to minimise the risk of retention and to secure the child's return, if necessary; (c) the court must be satisfied that safeguards should be capable of having a real and tangible effect in the jurisdiction in which they are to operate and be capable of being easily accessed by the UK-based parent; and (d) the views of agencies such as the FCO must be considered. For a suggested menu of undertakings and declarations in holiday applications to a non-Convention country, see *Re DS (Removal from Jurisdiction)* [2010] 1 FLR 576, FD. See also *Re M (Children) (Non-Hague Convention State)* [2020] EWCA Civ 277 for a clear example of the additional complications and potential obstacles which arise when parents disagree about whether their children should be permitted to travel between states which do not have reciprocal legal arrangements in force.

For examples of cases where permission for temporary removal was granted, see *C v K (Children: Application for Temporary Removal to Algeria)* [2015] 2 FLR 791, FD, *Re C-W (A Child) (Contact Overseas)* [2017] 1 FLR 131, CA, *Re L and B (Children: Specific Issues: Temporary Leave to Remove from the Jurisdiction: Circumcision)* [2017] 1 FLR 1316, FD and *KR v SR* [2018] EWHC 1571 (Fam) and *SR v MA (Temporary Leave to Remove from the Jurisdiction)* [2019] EWHC 435 (Fam). In *AB v CD* [2021] EWFC 38 the court refused the father's application for permission to travel with the child all over the world. Permission was limited to France, Monaco and Switzerland where he had the use of family homes. He was also required to provide a bond/surety in the sum of £5m in England.

Such cases should be given the required level of rigorous scrutiny, including hearing evidence and giving the opposing parent the opportunity to make submissions; see *Re MM & RM (Children); sub nom AM v DF* [2018] 1 FLR 481, FD, where the court ruled it was wrong for the previous court to have permitted a mother to take her two young children on a 4-week trip to Iraq to visit relatives. See also *DO v BO (Temporary Relocation to China)* [2017] EWHC 858 (Fam) for an exemplary scrutiny by Baker J of all the circumstances of the mother's application (ultimately refused) for permission to take her children to China on holiday to be introduced to members of their maternal family and to have an opportunity to learn more about their Chinese heritage.

In most cases, there is a need for the effectiveness of any suggested safeguard to be established by competent expert evidence that deals specifically, and in detail, with the issue. See *Re M (Children) (Non-Hague Convention State)* [2020] EWCA Civ 277 where a judge had not erred in granting permission for two children to travel to Qatar and the UAE on condition that written agreements should be lodged and made into orders of the UAE and Qatar courts. Although there was no cross-border legal framework under which the travel of the children to the UAE and Qatar could be regulated, the judge was entitled to conclude, on the basis of expert evidence, that such orders would be enforceable and binding.

Practitioners should note that since March 2020 the Institute of Family Law Arbitrators (IFLA) has expanded the scope of its children scheme to include both temporary and permanent relocation to certain foreign jurisdictions. See commentary to s 8 – **Arbitration**.

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### SPECIAL GUARDIANSHIP

[2.268]

## 14A Special guardianship orders

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) A 'special guardianship order' is an order appointing one or more individuals to be a child's 'special guardian' (or special guardians).
- (2) A special guardian –
  - (a) must be aged eighteen or over; and
  - (b) must not be a parent of the child in question,

and subsections (3) to (6) are to be read in that light.

- (3) The court may make a special guardianship order with respect to any child on the application of an individual who –
  - (a) is entitled to make such an application with respect to the child; or
  - (b) has obtained the leave of the court to make the application,

or on the joint application of more than one such individual.

- (4) Section 9(3) applies in relation to an application for leave to apply for a special guardianship order as it applies in relation to an application for leave to apply for a section 8 order.
- (5) The individuals who are entitled to apply for a special guardianship order with respect to a child are –
  - (a) any guardian of the child;
  - (b) any individual who is named in a child arrangements order as a person with whom the child is to live;
  - (c) any individual listed in subsection (5)(b) or (c) of section 10 (as read with subsection (10) of that section);
  - (d) a local authority foster parent with whom the child has lived for a period of at least one year immediately preceding the application;
  - (e) a relative with whom the child has lived for a period of at least one year immediately preceding the application.
- (6) The court may also make a special guardianship order with respect to a child in any family proceedings in which a question arises with respect to the welfare of the child if –
  - (a) an application for the order has been made by an individual who falls within subsection (3)(a) or (b) (or more than one such individual jointly); or
  - (b) the court considers that a special guardianship order should be made even though no such application has been made.
- (7) No individual may make an application under subsection (3) or (6)(a) unless, before the beginning of the period of three months ending with the date of the application, he has given written notice of his intention to make the application –

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- (a) if the child in question is being looked after by a local authority, to that local authority, or
  - (b) otherwise, to the local authority in whose area the individual is ordinarily resident.
- (8) On receipt of such a notice, the local authority must investigate the matter and prepare a report for the court dealing with –
- (a) the suitability of the applicant to be a special guardian;
  - (b) such matters (if any) as may be prescribed by the Secretary of State; and
  - (c) any other matter which the local authority consider to be relevant.
- (9) The court may itself ask a local authority to conduct such an investigation and prepare such a report, and the local authority must do so.
- (10) The local authority may make such arrangements as they see fit for any person to act on their behalf in connection with conducting an investigation or preparing a report referred to in subsection (8) or (9).
- (11) The court may not make a special guardianship order unless it has received a report dealing with the matters referred to in subsection (8).
- (12) Subsections (8) and (9) of section 10 apply in relation to special guardianship orders as they apply in relation to section 8 orders.
- (13) This section is subject to [section 29\(5\) and \(6\)](#) of the Adoption and Children Act 2002.

**[2.268[1]]**

**Amendments**—Inserted by [ACA 2002, s 115](#). Amended by [CYP A 2008, s 38](#); [CFA 2014, s 12](#), Sch 2.

**Essentials 29: [Children Act 1989](#) – special guardianship****[2.269]**

*All references to [ChA 1989](#) unless stated otherwise*

**Essential legal framework**

**Special guardianship orders (SGOs):** are orders granted under s 14A(1) appointing one or more individuals to be a child's 'special guardian'. A special guardian must be over 18 and must not be a parent of the child in question (s 14A(2)(a) and (b)).

**Purpose and effect of an SGO:** the purpose of an SGO is to create a permanent relationship between child and carer. SGOs are private law orders that enable the special guardian to:

- exercise PR to the exclusion of all others with PR (apart from another special guardian). Although SGOs do not terminate the PR of parents, they limit parents' exercise of PR (s 14C);
- appoint a testamentary guardian (s 5(4));
- take the child outside the UK for a period of less than three months (s 14C(4)).

**Duration:** an SGO lasts until child reaches 18 but can be varied or discharged (s 14D). Orders can only be discharged upon application and those listed at s 14D(3), including a parent, require the leave of the court to apply.

**Application:** the orders can be made:

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- (a) on application by an entitled applicant;
- (b) on application where the prospective special guardian(s) have obtained leave under the test in s 10(9);
- (c) of the court's own motion in any family proceedings where the court considers that an SGO should be made.

Joint applications can be made (s 14A(3)).

**Applicants who are entitled to apply** (see s14A(5)):

- (a) any guardian of the child;
- (b) any individual named in a child arrangements order as the person with whom the child should live;
- (c) any individual listed in s 10(5)(b) or (c) (as read with s 10(10)) – ie any person with whom the child has lived for at least 3 years or who has the relevant consent(s);
- (d) any foster parent with whom the child has lived for at least one year immediately preceding the application;
- (e) any relative with whom the child lived for at least one year immediately preceding the application.

**Test for applicants (including children) who need leave to apply:** s 10(8) and (9) apply: s 14A(12). The child's welfare is not paramount at this stage.

**Notice:** no application can be made unless, at least three months prior to the application, written notice has been given to the relevant local authority (s 14A(7)). The 'relevant local authority' is the local authority (LA) which looks after the child or in whose area the applicant resides.

**Approach by the court:** the court must apply the welfare principle (s 1(1)(a)) and the welfare checklist in s 1(3) when considering whether to make, vary or discharge an SGO (s 1(4)(b)).

**Reports:** s 14A(8) and (9) requires that on receipt of the written notice, or on the court's direction (where the court is considering making an SGO of its own motion), the LA must investigate and prepare a report about (a) the suitability of the applicant to be a special guardian; (b) the long list of matters set out in of the Schedule to the Special Guardianship Regs 2005 (SGR 2005); and (c) any other matter which the LA considers to be relevant.

**No order without report:** the court may not make an SGO unless it has received a report (s 14A(11)).

**Common issues in practice**

**Can SGOs be made in conjunction with care orders (CO)?** The making of an SGO discharges any CO (s 91(5A)). The making of a CO does not discharge an SGO (*Re F and G (Discharge of SGO)* [2021] EWCA Civ 622).

**Can SGOs be made in conjunction with supervision orders (SO)?** Save for cogent reasons (which should be recorded), a SO should not be made alongside an SGO. A SO should not be used as a vehicle to obtain LA support and services which should instead be in the SG Support Plan.

**SGO and placement order (PO):** a PO does not remove a special guardian's PR ([ACA 2002, s 25](#)). Where a PO is in force, no SGO may be made unless an application for an adoption order (AO) has been made and the court has given leave ([s 29\(5\)](#) ACA 2002 and s 14A(13)).

**SGO and AO:** an AO extinguishes the PR of a special guardian ([ACA 2002, s 46\(2\)](#)).

**What support must LAs provide to special guardians?** LAs have duties to provide support (s 14F), including, after assessment, financial support (s 14F(2) and SGR 2005, reg 3 onwards). The support and services must be set out in a plan (which should be attached to the order) and kept under review (s 14F(6)).

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**Procedural guides and standard orders**

PROCEDURAL GUIDE D10: Special Guardianship Order (or Discharge or Variation of the Same).

Standard orders 8.5, para 9 and the SGO warning recital in 7.6

**Other key notes**

The Best Practice Guidance on Special Guardianship (2020) (para [5.98](#)) contains detailed guidance on the process of review of SGO support plans and the appropriate legal situations when SGOs should and should not be made.

**[2.269[1]]**

**Scope**—Special guardianship orders (SGOs) are private law orders that enable the special guardian to exercise parental responsibility to the exclusion of all others with parental responsibility, apart from another special guardian. If the child was in care when the order was made, the making of the order discharges the child from care. The order does not terminate the parental responsibility of the parents although it severely limits their exercise of that responsibility. The purpose of an SGO is to create a permanent family life for the child or young person with all the advantages and challenges that accompany this. It lasts until the young person reaches 18, but can be varied or discharged. An SGO can only be discharged upon application, with some applications (including those made by the parents, 'others' with parental responsibility and the child) requiring the court's leave to permit the application to proceed. Section 14A(3)(b) contains the power where an individual has obtained the leave of the court to apply. Where the child himself applies for permission, the court may only grant permission if it is satisfied that the child has sufficient understanding to make the proposed application for an SGO: ss 14A(12) and 10(8).

An SGO must be underpinned by robust evidence, along with a detailed special guardianship support plan (SGSP) – see **Special Guardianship Support Plan** under s 14F below.

**Best Practice Guidance on Special Guardianship**—Following the decision in *Re P-S (Children) (Care Proceedings: Special Guardianship Orders)* [2018] EWCA Civ 1407, [\[2019\] 1 FLR 251](#) new Best Practice Guidance on Special Guardianship was issued in June 2020: see para [5.98](#). The general principles can be summarised as follows;

- (i) alternative potential carers should be identified at an early stage and where possible, pre-proceedings;
- (ii) however, it is recognised that there are cases where possible carers are identified late in proceedings or for other reasons. In those cases, further time will be required to assess the relationship between the child(ren) and the carer(s) fully;
- (iii) where a viability assessment is positive, the parties and the court should consider, and if necessary order, the time the child will spend with the proposed carers. An evidence-based assessment which does not include any assessment of the proposed carers' relationship with the child is likely to be regarded as incomplete;
- (iv) special guardianship assessments and support plans should be more robust and more comprehensive with better preparation and training for special guardians;
- (v) there should be a reduction in the use of supervision orders with SGOs;
- (vi) there should be a renewed emphasis on parental contact;
- (vii) assessments should be commenced promptly, and in the event that a full assessment is undertaken it will usually require a three-month timescale.

In *Re S (Adoption Order or Special Guardianship Order)* [\[2007\] 1 FLR 819](#), CA, the Court of Appeal gave detailed guidance at [40]–[77] as to the statutory framework, the making of special guardianship orders (SGOs) within pre-

## 14A Special guardianship orders

existing family relationships and the need under an SGO for permission for a parent to apply for a s 8 order. In *Re C (A Child) (Special Guardianship Order)* [2019] EWCA Civ 2281 the Court of Appeal confirmed that SGOs were intended to provide greater permanence than a child arrangements order; however, courts should not focus on the meaning of the word 'permanence', but should consider whether a child's welfare interests justify the making of such an order, rather than a child arrangements order. See *Re M (Special Guardianship Order: Leave to Apply to Discharge)* [2021] EWCA Civ 442 which confirmed that the legislation contemplated the possibility of a contact order co-existing with an SGO, although the court had the power to restrain unmeritorious applications by making orders under s 91(14).

In *Re T (A Child) (Refusal of Adoption Order)* [2020] EWCA Civ 797, the Court of Appeal contrasted the superior benefits of an adoption order with an SGO. See also *Re M-J (Adoption Order or Special Guardianship Order)* [2007] 1 FLR 691, CA and *Re AJ (Adoption Order or Special Guardianship Order)* [2007] 1 FLR 507, CA, which should be read together with *Re S* (above). In *Re L (Special Guardianship: Surname)* [2007] 2 FLR 50, CA, the court refused to allow the child's surname to be changed as it was important that as she grew up she knew that she was being raised by her grandparents rather than her parents. In *Re F (Special Guardianship Order: Contact with Birth Family)* [2016] 1 FLR 593, FD, an SGO was made, rather than an adoption order, to enable a very young child with special needs to remain with long-term foster carers so that he could maintain a connection with his cultural and ethnic background, which was essential for his development and sense of identity. In *Surrey County Council v Al-Hilli and Others* [2014] 2 FLR 217, FD, an SGO was appropriate where the parents had been shot dead in traumatic circumstances and the children needed both to retain a link with their family and a greater degree of stability and permanence than that provided by a residence order. In *Re H (A Child) (Analysis of Realistic Options and SGOs)* [2016] 1 FLR 286, CA, where an appeal was allowed against an SGO that had been made in proceedings in which poor case management had led to an assumption that the special guardian was a realistic option for the care of the child and that the father was not. In *Re A (A Child)* [2019] 1 FLR 687, CA, the Court of Appeal allowed an appeal against an SGO in favour of a one-year-old child's foster carer, rather than in favour of his family in Ghana. The judge's reasoning did not have the necessary depth and detail to underpin a decision of that importance and had failed to balance competing factors, adequately weigh the risks inherent in each placement and conduct a systematic analysis of the welfare checklist. See *Re Z (Care Proceedings: Special Guardianship: Competing Placements)* [2021] EWFC 70 as an example of the balancing exercise between options for placement where the court determined that a three-year-old child whose mother had attempted to murder him should be placed with his paternal aunt and uncle pursuant to an SGO, rather than with his stepfather and half-sister. In *Re W (Gifted Child: SGO/Adoption)* [2024] EWCC 27, where the child had been 'gifted' by one sister and her husband to another sister and her husband, Williams J favoured the continuation of the SGO and refused to make an adoption order, but observed that the adoption issue should be re-visited before the expiry of the SGO (see [59]–[60]).

**Special guardianship not confined to kinship cases**—SGOs are often used to confirm placements of children within their wider families; see for example *Northamptonshire County Council v M and Ors* [2017] 2 FLR 1250, FD. However, in *Re I (Adoption: Appeal: Special Guardianship)* [2012] Fam Law 1461, CA, McFarlane LJ emphasised that where the issue is whether to dispense with parental consent for the purposes of an adoption or placement order, the test in [ACA 2002, s 52\(1\)\(b\)](#) is that the court must be satisfied that 'the welfare of the child requires the consent to be dispensed with' and it will be difficult – or indeed impossible – for the judge to be satisfied of this, unless relevant alternatives have been considered. In this case, where the foster carers would continue to be the carers of the child and where the paternal family would continue to have contact with the child, special guardianship should have been properly considered. This case is therefore also a helpful reminder that special guardianship is by no means intended to be confined to cases of kinship care.

**Notice of intention to make an application**—The procedure for applying for a special guardianship order (SGO) is set out in PROCEDURAL GUIDE D10. The key issues and steps prior to making or not making an SGO are set out in the Best Practice Guidance on Special Guardianship issued in June 2020. Section 14A(7) requires that no application can be made unless, three months prior to the application, notice has been given to the relevant local authority by the applicants that they intend to make an application. When such a notice is given, the local authority must prepare a report as required in s 14A(8) (but see below for those cases in which the requirement for three months' notice will be waived: [ACA 2002, ss 29\(5\), \(6\)](#)).



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**Leave to apply** (s 14A(4))—The factors governing an application for permission to apply for an SGO are the same as those for s 8 orders: see under [ChA 1989, s 9\(3\)](#). Where the person applying for permission is the child concerned, the court may only grant permission if it is satisfied that the child has sufficient understanding to make the proposed application for the SGO (see s 14A(12) and **Application for leave by child** under s 10(8)). Where the person applying for permission is not the child concerned, the court must have regard to the factors in s 10(9) in just the same way as it does when considering an application for permission to apply for a s 8 order (see s 14A(12) and **Application for leave by person other than child concerned** under s 10(9)).

**Orders can be made of court's own motion** (s 14A(6))—The court can make an SGO in an appropriate case, even where no application has been made. However, see *Re H (A Child) (Analysis of Realistic Options and SGOs)* [2016] 1 FLR 286, CA, where neither the special guardian nor the local authority on her behalf made an application for an SGO and the Court of Appeal noted that this meant the important procedural hurdle of the satisfaction of the test in [ChA 1989, s 10\(9\)](#) was not addressed. It was further noted that it is only where parties agree that an application for an SGO should be dispensed with that the court's power under s 14A(6)(b) to make an SGO of its own motion power can be exercised without good reason; in any other case, the use by the court of this power must be reasoned. In *Re P-S (Children) (Care Proceedings: Special Guardianship Orders)* [2019] 1 FLR 251, CA, the Court of Appeal confirmed that the court's residual power to consider making an SGO of its own motion in s 14(6)(b) should not be the normal or default process because it bypasses the protection which arises when prospective special guardians make application. Where the local authority does not consent to an SGO, the leave application is an important protection for the child and its parents. It was procedurally unfair that there had been no provision for the grandparents to obtain effective access to justice at the final hearing, to leave them on the sidelines without party status, without documents or advice, and without any mechanism being identified for the child's parents to cross-examine them on their proposals.

**Interaction with the [Adoption and Children Act 2002](#)** (s 14A(13))—[ACA 2002, s 29\(5\)](#) states that where a placement order is in force, no SGO may be made in respect of the child unless: (a) an application has been made for an adoption order; and (b) the person applying for the SGO has obtained the court's permission, or if he is a guardian of the child, has obtained the court's permission under s 47(5). Where permission has been given in these circumstances, the applicant must still give written notice of his application to the relevant local authority but the requirement for three months' notice is waived ([ACA 2002, s 29\(6\)](#)).

**Interaction with care orders**—SGOs and care orders can co-exist: the careful drafting of [ChA 1989, s 91](#) clearly allows for an SGO to continue after the making of a care order, although the circumstances in which a court was likely to conclude that a care order should be made alongside an SGO were likely to be rare – see *Re F (Children) (Discharge of Special Guardianship Order)* [2021] EWCA Civ 622, [2021] 2 FLR 1403 at [41f].

**Changes to an agreed plan and timetable**—It is good practice for local authorities to review the progress of their plan including the assessment at regular intervals. Where it becomes apparent to the local authority that there is sufficient information to reach an evidence-based conclusion that the prospective special guardian is unsuitable, the local authority must inform the court with a view to reviewing the process and timetable for the conclusion of proceedings (see Best Practice Guidance on Special Guardianship, June 2020, para [5.98](#)). The local authority's reasoning must be set out in a report and made available to the prospective special guardian. The local authority must notify them of the procedure to be followed in challenging the assessment, including the procedure for application to the court either seeking leave of the court for ongoing assessment pursuant to s 10(9) or to be joined as a party. Any challenge must be pursued promptly within a reasonable timescale.

In most cases, compliance with good practice will ensure that any prospective special guardian has been identified at an early stage and the assessment completed within the statutory timescale of 26 weeks. It is recognised, however, that there are cases where possible carers are identified late in the proceedings, or for other reasons, further time is required to assess the relationship between the child(ren) and the carer(s) fully (see *Re S (A Child)* [2014] EWCC B44 (Fam) and the FJC: Interim Guidance on Special Guardianship (approved by the President) which is appended to the Best Practice Guidance, see para [5.112](#)). In such cases, the court has the power to approve an extension beyond 26 weeks so as to allow the issues to be fully addressed. However the focus will

## 14A Special guardianship orders

always be on welfare and the fundamental requirement for a robust, evidence-based assessment; that will be the guiding factor as opposed to the statutory timescale of 26 weeks. In such cases, the following principles apply:

- (a) A proposal for assessment of a late entrant to the proceedings must be realistic and not merely a trawl through all possible options, however unlikely. If the application has a sound basis, an extension beyond 26 weeks should be permitted if it is necessary to enable the court to resolve the proceedings justly and as such will be readily justified – see [s 32\(5\)](#) and [s 32\(7\)](#) ChA 1989.
- (b) Where the proposed carers appear to be viable, the assessment of carers living in another country will also justify an extension of 26 weeks. In these circumstances, time may be needed for Children and Families Across Borders (CFAB) to carry out an assessment and there may be unavoidable delays which will, quite properly, take the case beyond 26 weeks.
- (c) While circumstances vary widely, where more time is needed to assess the quality of the relationship between the child and proposed carers, it is likely that this will lead to an extension of the timetable, particularly if the court has indicated that this is the preferred placement. Any delay should be proportionate.
- (d) Where a viability assessment is positive, the parties and the court should, when making directions for a full SGO assessment, consider, and if necessary make orders relating to, the time the children will spend with the proposed carers. An evidence-based assessment which does not include any assessment of the proposed carers' relationship with the child is likely to be regarded as incomplete.
- (e) If the court approves an extension, consideration will need to be given to the legal framework. It may not be possible for the child to be placed under an interim care order (under the current regime imposed by reg 24 of the Care Planning, Placement and Case Review (England) Regulations 2010)). In these circumstances, an alternative approach would be placement via a child arrangements order pursuant to s 8 and an interim supervision order to provide support for the placement, particularly during any transition period.

**Need for a local authority report before order can be made** (ss 14A(7), (8), (11))—The court may not make an SGO unless it has received the prescribed report (s 14A (11); *Re S (Adoption Order or Special Guardianship Order) (No 2)*) [\[2007\] 1 FLR 855](#), CA)). In *Birmingham City Council v R* [\[2007\] 1 FLR 564](#), CA, the Court of Appeal held that a person who requires the permission of the court to make an application for an SGO cannot either make an application for such an order or give notice of an intention to do so unless and until he has obtained the court's permission to make an application. Section 14A(8), which requires the authority to investigate and prepare a report, is not triggered when a person who requires the court's permission to make an application but has not obtained it, purports to give notice of an intention to make an application for an SGO. The matters that the local authority must include in their report to the court are set out in the Special Guardianship Regulations, reg 21, in the Schedule thereto (as amended by SG(A)R 2016), and the matters required by s 10(9)(s 14A(12)). The amendments to the requirements extend the scope of the local authority's assessment of the suitability of prospective special guardians by including:

- (a) a consideration of any harm that the child has suffered,
- (b) any risk of future harm to the child posed by the child's parents, relatives or any other person the local authority considers relevant,
- (c) an assessment of the nature of the prospective special guardian's current and past relationship with the child,
- (d) an assessment of the prospective special guardian's parenting capacity, including their understanding of and ability to meet the child's current and likely future needs, particularly any needs the child may have arising from harm that the child has suffered, their understanding of and ability to protect the child from any current or future risk of harm posed by the child's parents, relatives or any other person the local authority considers relevant, particularly in relation to contact, and their ability and suitability to bring up the child until the child reaches the age of 18.

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However, these additional requirements do not apply in circumstances where the court has asked a local authority to conduct an investigation and prepare a report in accordance with [ChA 1989, s 14A\(9\)](#). In *Re E-R (Child Arrangements Order)* [2016] 1 FLR 521, CA, the Court of Appeal confirmed the need for a detailed investigation and analysis of the child's circumstances, whether produced by a child's guardian, Cafcass or the local authority.

The *Code of Practice on the Exercise of Social Services Functions* in relation to SGOs in Wales came into force on 2 July 2018 and imposes requirements and includes guidelines setting out aims, objectives and other matters in relation to the exercise of social services functions.

**SGOs in conjunction with supervision orders**—The purpose of an SGO is to provide a firm foundation on which to build a lifelong permanent relationship between the child and the carer. Save for cogent reasons, a supervision order should not need to be made alongside an SGO. Where cogent reasons are found to exist, the order should contain a recital setting out the same. A supervision order should not need to be used as a vehicle by which support and services are provided by the local authority (see Best Practice Guidance on Special Guardianship, June 2020 para [5.98](#)).

**[2.269[2]]**

**SGOs in international cases**—In cases where prospective carers who are resident in or nationals in overseas countries are being considered, consideration must be given to how assessments are carried out in a legally compliant and culturally relevant manner. Further thought should be given to: (i) the status of special guardianship in that country and (ii) other legal matters associated with the care of children in that country (including safeguarding, education and health, financial and therapeutic support, and contact with family members including those in the UK). In advance of the child being placed, a plan will need to be agreed about how the placement will be supported and what the contingency arrangements are.

In *Re K and Ors (Placement of Children with Kinship Carers Abroad)* [2019] EWFC 59 it was reiterated that in cases where a child is to be placed with family abroad it is essential to ensure that the placement is legally recognised in that second country. In particular, with regard to special guardianship, this may or may not be a concept that is recognised in the other jurisdiction. The issues in such cases need to be subject to receipt of expert advice. As a starting point the court may need advice as to: (a) the immigration status of the children and any relevant adults within this jurisdiction; (b) what visas or other travel documents may be required for the children to enter the other jurisdiction; (c) the immigration status of the children and any relevant adults within the other jurisdiction; (d) what steps will need to be taken to ensure that the children and any relevant adults can reside permanently within the other jurisdiction; (e) the effect of any order made in England and Wales in that other jurisdiction, the appropriate form of wording for such an order, and whether such an order will be recognised; (f) what family law orders may be required within that other jurisdiction to ensure that the children remain safe and with the carer with whom they have been placed or to secure other benefits such as access to education, financial support and housing; (g) what documents will need to be supplied to the carers and how these may be 'legalised'; and (h) whether placement under an interim care order requires the permission of the other jurisdiction. These may be complex issues and written evidence may be necessary from one or more experts. Depending on the country involved it may be necessary to instruct an expert practising within that country. See *South Tyneside Council v E (by the Official Solicitor)* [2024] EWFC 353 for an unusual example of an SGO made in favour of family members who lived abroad in the UAE.

**[2.269[3]]**

**Hague Convention 1996**—The Hague Convention 1996 came into force in the UK on 1 November 2012. It lays down rules in respect of measures directed to the protection of the person or property of the child in cases to which the Convention applies (Art 1). 'Measures of protection' include guardianship, curatorship or analogous institutions (Art 3). They are intended to include systems of protection, representation or assistance that are established in favour of a child when his parents are deceased or are no longer authorised to represent him (*Handbook*, para 3.23; *Lagarde Report*, para 21). See further under the Convention in Part VI.

14A Special guardianship orders

[2.270]

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## 14B Special guardianship orders: making

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

(1) Before making a special guardianship order, the court must consider whether, if the order were made –

- (a) a child arrangements order containing contact provision should also be made with respect to the child,
- (b) any section 8 order in force with respect to the child should be varied or discharged,
- (c) where provision contained in a child arrangements order made with respect to the child is not discharged, any enforcement order relating to that provision should be revoked, and
- (d) where an activity direction has been made –

- (i) in proceedings for the making, variation or discharge of a child arrangements order with respect to the child, or
- (ii) in other proceedings that relate to such an order,

that direction should be discharged.

(1A) In subsection (1) 'contact provision' means provision which regulates arrangements relating to –

- (a) with whom a child is to spend time or otherwise have contact, or
- (b) when a child is to spend time or otherwise have contact with any person;

but in paragraphs (a) and (b) a reference to spending time or otherwise having contact with a person is to doing that otherwise than as a result of living with the person.

(2) On making a special guardianship order, the court may also –

- (a) give leave for the child to be known by a new surname;
- (b) grant the leave required by section 14C(3)(b), either generally or for specified purposes.

**[2.270[1]]**

**Amendments**—Inserted by [ACA 2002, s 115](#). Amended by [CAA 2006, s 15](#), [Sch 2](#), paras 7, 8, Sch 3; [CFA 2014, s 12](#), Sch 2.

**[2.271]**

## 14C Special guardianship orders: effect

The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) The effect of a special guardianship order is that while the order remains in force –
  - (a) a special guardian appointed by the order has parental responsibility for the child in respect of whom it is made; and
  - (b) subject to any other order in force with respect to the child under this Act, a special guardian is entitled to exercise parental responsibility to the exclusion of any other person with parental responsibility for the child (apart from another special guardian).
- (2) Subsection (1) does not affect –
  - (a) the operation of any enactment or rule of law which requires the consent of more than one person with parental responsibility in a matter affecting the child; or
  - (b) any rights which a parent of the child has in relation to the child's adoption or placement for adoption.
- (3) While a special guardianship order is in force with respect to a child, no person may –
  - (a) cause the child to be known by a new surname; or
  - (b) remove him from the United Kingdom,

without either the written consent of every person who has parental responsibility for the child or the leave of the court.

- (4) Subsection (3)(b) does not prevent the removal of a child, for a period of less than three months, by a special guardian of his.
- (5) If the child with respect to whom a special guardianship order is in force dies, his special guardian must take reasonable steps to give notice of that fact to –
  - (a) each parent of the child with parental responsibility; and
  - (b) each guardian of the child,

but if the child has more than one special guardian, and one of them has taken such steps in relation to a particular parent or guardian, any other special guardian need not do so as respects that parent or guardian.

- (6) This section is subject to [section 29\(7\)](#) of the Adoption and Children Act 2002.

**[2.271[1]]**

**Amendments**—Inserted by [ACA 2002, s 115](#).

**Scope**—Subject to any other existing [ChA 1989](#) order, a special guardian is entitled to exercise parental responsibility to the exclusion of any other person with parental responsibility (save for another special guardian): s 14C(1). It allows the special guardian to remove the child from the jurisdiction for up to 3 months without the consent of others with parental responsibility (but he would need the consent of another special guardian): s 14C(4).



## 14C Special guardianship orders: effect

'subject to [section 29\(7\)](#) of the Adoption and Children Act 2002' (s 14C(6))—[ACA 2002, s 29\(7\)](#) states that, where a placement order is in force, s 14C(1)(b) has effect subject to any determination made by the adoption agency under [ACA 2002, s 25\(4\)](#), to restrict the exercise of parental responsibility. [ChA 1989, s 14C\(3\) and \(4\)](#) do not apply.

[2.272]

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## 14D Special guardianship orders: variation and discharge

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) The court may vary or discharge a special guardianship order on the application of –
  - (a) the special guardian (or any of them, if there are more than one);
  - (b) any parent or guardian of the child concerned;
  - (c) any individual who is named in a child arrangements order as a person with whom the child is to live;
  - (d) any individual not falling within any of paragraphs (a) to (c) who has, or immediately before the making of the special guardianship order had, parental responsibility for the child;
  - (e) the child himself; or
  - (f) a local authority designated in a care order with respect to the child.
- (2) In any family proceedings in which a question arises with respect to the welfare of a child with respect to whom a special guardianship order is in force, the court may also vary or discharge the special guardianship order if it considers that the order should be varied or discharged, even though no application has been made under subsection (1).
- (3) The following must obtain the leave of the court before making an application under subsection (1) –
  - (a) the child;
  - (b) any parent or guardian of his;
  - (c) any step-parent of his who has acquired, and has not lost, parental responsibility for him by virtue of section 4A;
  - (d) any individual falling within subsection (1)(d) who immediately before the making of the special guardianship order had, but no longer has, parental responsibility for him.
- (4) Where the person applying for leave to make an application under subsection (1) is the child, the court may only grant leave if it is satisfied that he has sufficient understanding to make the proposed application under subsection (1).
- (5) The court may not grant leave to a person falling within subsection (3)(b), (c) or (d) unless it is satisfied that there has been a significant change in circumstances since the making of the special guardianship order.

[2.272[1]]

**Amendments**—Inserted by [ACA 2002, s 115](#). Amended by [CFA 2014, s 12](#), Sch 2.

**Scope**—A special guardianship order can be varied or discharged (unlike an adoption order).

**Application for leave by child** (s 14D(4))—See **Application for leave by child** under s 10(9).

**Leave to apply to discharge special guardianship order** (s 14D(5))—The proper approach is as set out in *Re M (Special Guardianship Order: Leave to Apply to Discharge)* [2021] EWCA Civ 442, [\[2021\] 2 FLR 992](#) (broadly applying by analogy *M v Warwickshire County Council* [\[2008\] 1 FLR 1093](#), CA). When a court is considering an application for leave to apply to discharge a special guardianship order, it first has to consider whether the applicant

## 14D Special guardianship orders: variation and discharge

has shown that there has been a significant (meaning considerable, noteworthy or important) change in circumstances since the order was made. If so, the court should then determine whether leave should be granted based on an evaluation of the applicant's prospects of success in the context of the effect on the child's welfare. The prospects of success must be real, and the child's welfare is an important but not paramount consideration. The degree of any change in circumstances is likely to be intertwined with the prospects of success. The court is not required to make findings of fact, but the application must provide credible evidence to show that there has been the necessary change and that leave should be granted. See also *Re F (Children) (Discharge of Special Guardianship Order)* [2021] EWCA Civ 622 for an example of a case where although the judge had not been wrong to refuse to discharge the SGO, the decision had been arrived at after an unsatisfactory process without full consideration of the options; the decision had been based on an incomplete analysis.

The provisions of [ChA 1989, s 10\(9\)](#), which concern child arrangements orders, are *not* applicable.

[2.273]

## 14E Special guardianship orders: supplementary

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) In proceedings in which any question of making, varying or discharging a special guardianship order arises, the court shall (in the light of any provision in rules of court that is of the kind mentioned in section 11(2)(a) or (b)) –
  - (a) draw up a timetable with a view to determining the question without delay; and
  - (b) give such directions as it considers appropriate for the purpose of ensuring, so far as is reasonably practicable, that the timetable is adhered to.
- (2) Subsection (1) applies also in relation to proceedings in which any other question with respect to a special guardianship order arises.
- (3) The power to make rules in subsection (2) of section 11 applies for the purposes of this section as it applies for the purposes of that.
- (4) A special guardianship order, or an order varying one, may contain provisions which are to have effect for a specified period.
- (5) Section 11(7) (apart from paragraph (c)) applies in relation to special guardianship orders and orders varying them as it applies in relation to section 8 orders.

[2.273[1]]

**Amendments**—Inserted by [ACA 2002, s 115](#). Amended by [CFA 2014, s 13](#).

**'Section 11(7)'** (s 14E(5))—Section 11(7) permits the court to attach to the special guardianship order directions as to how it is to be carried into effect and to impose conditions which must be complied with.

[2.274]

## 14F Special guardianship support services

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) Each local authority must make arrangements for the provision within their area of special guardianship support services, which means –
  - (a) counselling, advice and information; and
  - (b) such other services as are prescribed,

in relation to special guardianship.

- (2) The power to make regulations under subsection (1)(b) is to be exercised so as to secure that local authorities provide financial support.
- (3) At the request of any of the following persons –
  - (a) a child with respect to whom a special guardianship order is in force;
  - (b) a special guardian;
  - (c) a parent;
  - (d) any other person who falls within a prescribed description,

a local authority may carry out an assessment of that person's needs for special guardianship support services (but, if the Secretary of State so provides in regulations, they must do so if he is a person of a prescribed description, or if his case falls within a prescribed description, or if both he and his case fall within prescribed descriptions).

- (4) A local authority may, at the request of any other person, carry out an assessment of that person's needs for special guardianship support services.
- (5) Where, as a result of an assessment, a local authority decide that a person has needs for special guardianship support services, they must then decide whether to provide any such services to that person.
- (6) If –
  - (a) a local authority decide to provide any special guardianship support services to a person, and
  - (b) the circumstances fall within a prescribed description,

the local authority must prepare a plan in accordance with which special guardianship support services are to be provided to him, and keep the plan under review.

- (7) The Secretary of State may by regulations make provision about assessments, preparing and reviewing plans, the provision of special guardianship support services in accordance with plans and reviewing the provision of special guardianship support services.
- (8) The regulations may in particular make provision –
  - (a) about the type of assessment which is to be carried out, or the way in which an assessment is to be carried out;
  - (b) about the way in which a plan is to be prepared;

## 14F Special guardianship support services

- (c) about the way in which, and the time at which, a plan or the provision of special guardianship support services is to be reviewed;
  - (d) about the considerations to which a local authority are to have regard in carrying out an assessment or review or preparing a plan;
  - (e) as to the circumstances in which a local authority may provide special guardianship support services subject to conditions (including conditions as to payment for the support or the repayment of financial support);
  - (f) as to the consequences of conditions imposed by virtue of paragraph (e) not being met (including the recovery of any financial support provided);
  - (g) as to the circumstances in which this section may apply to a local authority in respect of persons who are outside that local authority's area;
  - (h) as to the circumstances in which a local authority may recover from another local authority the expenses of providing special guardianship support services to any person.
- (9) A local authority may provide special guardianship support services (or any part of them) by securing their provision by –
- (a) another local authority; or
  - (b) a person within a description prescribed in regulations of persons who may provide special guardianship support services,

and may also arrange with any such authority or person for that other authority or that person to carry out the local authority's functions in relation to assessments under this section.

- (10) A local authority may carry out an assessment of the needs of any person for the purposes of this section at the same time as an assessment of his needs is made under any other provision of this Act or under any other enactment.
- (11) Section 27 (co-operation between authorities) applies in relation to the exercise of functions of a local authority in England under this section as it applies in relation to the exercise of functions of a local authority under Part 3 and see sections 164 and 164A of the [Social Services and Well-being \(Wales\) Act 2014](#) for provision about co-operation between local authorities in Wales and other bodies.

**[2.274[1]]**

**Amendments**—Inserted by [ACA 2002, s 115](#). Amended by [SI 2016/413](#).

**Special Guardianship Support Plan**—The Special Guardianship Regulations 2005 form part of the legislative framework for special guardianship orders. They relate mainly to the special guardianship support services (SGSS), which local authorities are required to provide by virtue of section 14F. They prescribe the services which are SGSS and state which bodies other than local authorities can provide services on the local authority's behalf and which local authority should be responsible for providing SGSS in cross-border arrangements (regs 3–5). The Regulations set out the circumstances in which financial support is payable and the considerations to which an authority must have regard when deciding on the amount of that financial support (regs 6–10). They set out the procedure for an assessment of special guardianship support needs, identifying those entitled to an assessment and how those assessments should be carried out (regs 11–16). They specify the steps an authority must take following an assessment to notify the relevant persons of the outcome and they require the authority to plan and review their service provision where appropriate (regs 17–18). The Regulations prescribe the matters that local authorities are required to include in the report that the court must receive before it can make an SGO (reg 21 and Schedule). They also specify which local authority is to be the relevant local authority where the child becomes entitled to advice and assistance under the provisions relating to care leavers (reg 22). All support and services to be provided to the special guardian and to the child by the local authority or other organisations should be set out in the Special



## 14F Special guardianship support services

Guardianship Support Plan (SGSP) which should be attached as an appendix to the order. The cases where it would be appropriate or necessary to make a supervision order alongside an SGO will be very small in number (see Best Practice Guidance on Special Guardianship, June 2020 at para [5.98](#)).

**Financial support for special guardians**—Under the Special Guardianship Regulations 2005, the local authority must make appropriate financial support available to special guardians (regs 6–10) and must make an assessment of their relevant needs (regs 12–13). In doing so it must comply with the Special Guardianship Guidance issued under the [Local Authority Social Services Act 1970, s 7](#), by the Department for Education and Skills. While the Guidance does not have the full force of statute, it should be complied with by local authorities unless exceptional circumstances justify departure from it (*B v Lewisham Borough Council* [\[2008\] 2 FLR 523](#), QBD – it was unlawful for the authority to make a rigid link with adoption allowances rather than focusing on fostering allowances). In *B v Kirklees Metropolitan Council* [\[2010\] 2 FLR 405](#), QBD, the authority's decision that the SGO allowance should be two-thirds of the core fostering allowance was unlawful. It had deviated substantially from the Ministerial Guidance without justification. The authority is expected to consider the fostering allowance as a starting point and then to make appropriate adjustments to it (*R (TT) v London Borough of Merton* [\[2012\] EWHC 2055](#) (Admin)).

**Guidance where more than one local authority is involved**—In *Suffolk CC v Nottinghamshire CC* [\[2013\] 2 FLR 106](#), CA, the court held that where more than one local authority is involved in an out-of-area placement in special guardianship proceedings, the key question in determining which authority is responsible is whether a child is 'looked after' by one of them within the meaning of s 22(1); if so, then that authority is responsible. If the child is not a 'looked after' child, the responsible authority is the one in whose area the child is living. A child ceases to be 'looked after' as soon as parental responsibility becomes vested in another by, for example, the making of a child arrangements order for residence or an SGO. In such a situation, local authorities are bound by the Special Guardianship Regulations 2005, reg 5 to cooperate with one another in the discharge of functions. Every authority will be both a sender and a receiver over time and there ought to be self-regulation in respect of who would fund the statutory duties. It is therefore of critical importance when a child is placed out of area to have regard as to whether a child should or will remain looked after (ie under an interim care order or accommodated) or not (ie under a child arrangements order for residence). At the same time, the local authorities involved should cooperate from the earliest stage in deciding who will in fact execute the statutory duties that arise and who will fund that work. Local authorities have powers to make sensible arrangements between themselves wherever primary legal responsibility may in fact lie. The role of the court should also be carefully considered. Section 14F imposes duties on a local authority but it does not empower the family court to direct how or (in some aspects) even whether such duties are to be performed. Moreover, the statute gives the court no power to make directions as to payment of money or provision of services. Of course, judges may properly express views to local authorities and are entitled no doubt to expect that they will receive serious consideration (just as judges can and do express views about adoption and care plans) and of course it is only the judge who in the end can make the SGO.

**14G**

*(Repealed)*

*FINANCIAL RELIEF*

**[2.275]**

## 15 Orders for financial relief with respect to children

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

- (1) Schedule 1 (which consists primarily of the re-enactment, with consequential amendments and minor modifications, of provisions of [section 6](#) of the Family Law Reform Act 1969, the Guardianship of Minors Acts 1971 and 1973, the Children Act 1975 and of [sections 15](#) and [16](#) of the Family Law Reform Act 1987) makes provision in relation to financial relief for children.
- (2) (*Repealed*)

#### **[2.275[1]]**

**Amendments**—[CLSA 1990, s 116](#), Sch 16, para 10(1); [MEA 1991, s 11\(1\)](#), [Sch 2](#), para 10; [CCA 2013, s 17](#), Sch 11.

**Drafting orders**—For a template order, see Order 2.2, Standard Family Orders, Vol 1 (revised 17 May 2023 and updated 24 October 2023).

**Scope**—This section introduces Sch 1 which contains the court's powers to make financial orders for the benefit of children. Subject to [CSA 1991](#), which restricts the court's power to order child maintenance, Sch 1 covers three situations, namely:

- (a) orders that a parent pay maintenance or a lump sum or transfer property to children when the first application for such an order is made while the child is under the age of 18 (although an order for periodical payments can subsequently be extended if the child is continuing in education or there are special circumstances);
- (b) orders for periodical payments or a lump sum where the first time an application is made is when the child is aged over 18; and
- (c) alteration, either during the joint lives of the parents or after the death of one of them, of maintenance agreements containing financial provision for a child.

**Orders for financial relief against parents**—An order under para 1 may be made either on application, or without application at the time a special guardianship or child arrangements 'lives with' order is made, varied or discharged. If the child's parents are married, an alternative application for financial relief for the child is [MCA 1973, ss 23](#) and [24](#), if there are divorce proceedings, or if there are no such proceedings, under s 27. By applying for relief for the child under those sections, the practitioner is able to take advantage of the power under s 37 to restrain anticipated disposals of assets and to set aside past disposals where the intention is to defeat the claim.

**Orders for financial relief for persons aged over 18**—Schedule 1, para 2 enables a child who has reached 18 and who is continuing in education or to whom special circumstances apply to obtain from his or her parents an order for periodical payments or a lump sum where the parents are not living with each other in the same household and there was no periodical payments order in force in respect of him or her before he reached the age of 16. This is the only provision in the Act which permits an original application for relief by a child aged over 18. Paragraph 16(1) of Sch 1 provides that, for this purpose, a person who has reached the age of 18 falls within the meaning of 'child'. If there was a periodical payments order in force before the child reached the age of 16, the child's remedy is to apply in the proceedings in which that order was made to extend that order. If, however, there was no such order and the applicant's parents are living with each other in the same household, then the applicant has no remedy against his parents: *Siddiqui v Siddiqui* [2021] EWCA Civ 1572, [\[2022\] 1 FLR 840](#).

## 15 Orders for financial relief with respect to children

**Alteration of maintenance agreements containing financial provision for a child**—Schedule 1, paras 10 and 11 re-enact the powers contained in [FLRA 1987, ss 15](#) and [16](#) to alter agreements made between parents for the maintenance of a child. The jurisdiction is similar to that contained in [MCA 1973, ss 35](#) (lifetime variations) and 36 (variation after death), except that ss 35 and 36 apply only where the parents are married. Where the parents are married, the more sophisticated procedural provisions of ss 35 and 36 (including the power to restrain dealings under s 37) make it sensible to bring the application under those sections; where the parents are not married, there is no alternative but to bring the application under Sch 1.

**Procedure**—An application under s 15 for financial relief with respect to children follows the standard procedure as set out in FPR 2010, rr 9.12–9.17, with the addition of rr 9.10 and 9.11 unless the application is limited to periodical payments only under paragraphs 1(2)(a), 1(2)(b), 2(2)(a) or 9 of Sch 1, in which case the fast-track procedure at rr 9.18–9.20 applies (r 9.9B and PD9A, para 1.2) and see PROCEDURAL GUIDE A2. Where a father's resources are subject to a criminal restraint order under the Proceeds of Crime Act 2002, a mother seeking relief including the disclosure of the father's means should apply to the Crown Court that made the order, on notice: *T v B and Revenue and Customs Prosecutions Office* [\[2009\] 1 FLR 1231](#), FD.

**Costs**—Applications under [ChA 1989, s 15](#) and [Sch 1](#) are financial remedy proceedings under FPR 2010, r 2.3. However, they are not included within the applications provided for in r 28.3(4)(b), so the costs rule in r 28.2 rather than r 28.3 applies. The court therefore adopts a so-called 'clean sheet' approach with a 'soft' starting point that costs 'follow the event' and may exercise its discretion as to costs in the light of CPR 1998, r 44.2. See FPR PD28A.

## FAMILY ASSISTANCE ORDERS

[2.276]

## 16 Family assistance orders

### The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part II Orders with Respect to Children in Family Proceedings

(1) Where, in any family proceedings, the court has power to make an order under this Part with respect to any child, it may (whether or not it makes such an order) make an order requiring –

- (a) an officer of the Service or a Welsh family proceedings officer to be made available; or
- (b) a local authority to make an officer of the authority available,

to advise, assist and (where appropriate) befriend any person named in the order.

(2) The persons who may be named in an order under this section ('a family assistance order') are –

- (a) any parent, guardian or special guardian of the child;
- (b) any person with whom the child is living or who is named in a child arrangements order as a person with whom the child is to live, spend time or otherwise have contact;
- (c) the child himself.

(3) No court may make a family assistance order unless –

- (a) *(Repealed)*
- (b) it has obtained the consent of every person to be named in the order other than the child.

(4) A family assistance order may direct –

- (a) the person named in the order; or
- (b) such of the persons named in the order as may be specified in the order,

to take such steps as may be so specified with a view to enabling the officer concerned to be kept informed of the address of any person named in the order and to be allowed to visit any such person.

(4A) If the court makes a family assistance order with respect to a child and the order is to be in force at the same time as a contact provision contained in a child arrangements order made with respect to the child, the family assistance order may direct the officer concerned to give advice and assistance as regards establishing, improving and maintaining contact to such of the persons named in the order as may be specified in the order.

(4B) In subsection (4A) 'contact provision' means provision which regulates arrangements relating to –

- (a) with whom a child is to spend time or otherwise have contact, or
- (b) when a child is to spend time or otherwise have contact with any person.

(5) Unless it specifies a shorter period, a family assistance order shall have effect for a period of twelve months beginning with the day on which it is made.

## 16 Family assistance orders

- (6) If the court makes a family assistance order with respect to a child and the order is to be in force at the same time as a section 8 order made with respect to the child, the family assistance order may direct the officer concerned to report to the court on such matters relating to the section 8 order as the court may require (including the question whether the section 8 order ought to be varied or discharged).
- (7) A family assistance order shall not be made so as to require a local authority to make an officer of theirs available unless –
  - (a) the authority agree; or
  - (b) the child concerned lives or will live within their area.
- (8), (9) (*Repealed*)

**[2.276[1]]**

**Amendments**—[CJCSA 2000 ss 74, 75](#), Sch 7, paras 87, 89, Sch 8; [ACA 2002, Sch 3](#), para 58; [CA 2004, s 40](#), [Sch 3](#), paras 5, 7; [CAA 2006, s 6\(1\)–\(5\)](#); [CFA 2014, s 12](#), Sch 2.

**Defined terms**—'child': s 105(1); 'family proceedings': s 8(3); 'local authority': s 105(1); 'officer of the Service': [CJCSA 2000, s 11\(3\)](#).

**Scope**—A family assistance order (FAO) is a short-term order lasting for no more than 12 months that obliges an officer of the Service or local authority officer to advise, assist and (where appropriate) befriend a named person or persons. Any of the following may be named in the order: a parent, guardian or special guardian of the child, anyone with whom the child is living or who has an order for contact with respect to the child and the child himself (s 16(2)). An order is to be made only where every person who is to be named in the order (other than the child) has given consent (s 16(3)). Normally the court will make a FAO of its own initiative, but although the rules and the Act do not expressly prescribe any procedure for applying for a s 16 order neither do they expressly prohibit such an application and, therefore, presumably one can be made.

Where a FAO is to be in force at the same time as a child arrangements order for contact, the officer may give advice and assistance to establish, improve and maintain contact to the persons named in that order (s 16(4A)). See, for example, *Re L and M (Children: Private Law)* [2014] EWHC 939 (Fam). Where a FAO is in force at the same time as a s 8 order in relation to the child, the officer may be directed to report to the court on such matters relating to the s 8 order as the court may require, including variation and discharge (s 16(6)).

**Practice Direction**—FPR PD12M *Family Assistance Orders: Consultation* (see para [3.676](#)) requires that, before making a FAO the court must have obtained the opinion (verbally or in writing) of the appropriate officer about whether it would be in the best interests of the child for a FAO to be made and, if so, how the order could operate and for what period. Furthermore, before making a FAO, the court must give any person whom it proposes be named in the order an opportunity to comment upon any opinion given by the officer.

**Risk assessments**—[ChA 1989, s 16A](#) requires a Cafcass officer carrying out any function in private law [ChA 1989](#) proceedings to carry out a risk assessment if he has cause to suspect that the child concerned is at risk of harm and to provide that assessment to the court. See further under s 7 and s 16A below and **Domestic abuse – contact applications and Domestic abuse – welfare decisions** under [ChA 1989, s 8](#) (see para [2.245\[8\]](#)).

**'order under this Part'** (s 16(1))—The orders available under Pt II are: a child arrangements order, a prohibited steps order and a specific issue order (all under s 8). It would also seem that an order for financial relief under Sch 1 may be classified as an order under Pt II as Sch 1 derives from s 15. The power to make a family assistance order (FAO) is not limited to applications for s 8 orders; it may be exercised in any family proceedings where there is power to make an order under Pt II and 'family proceedings' is widely defined by s 8(3). It follows that a FAO could, for example, be made on an application for a care or supervision order.

## 16 Family assistance orders

**Enforcement of family assistance order**—Where a local authority does not have resources to implement an FAO it would be contrary to the best interests of the child concerned and the child care system as a whole to make an order directed to the director of social services endorsed with a penal notice, so that enforcement proceedings can ensue (*Re C (Family Assistance Order)* [\[1996\] 1 FLR 424](#), FD). See *H v Dent and Others* [\[2016\] 2 FLR 566](#), FD, where a costs order was made against the father who unsuccessfully sought to bring committal proceedings for an alleged failure by Cafcass to implement a family assistance order. See also *Re E (Family Assistance Order)* [\[1999\] 2 FLR 512](#), FD, in which an FAO was made against a local authority in spite of the authority's reluctance to submit to it; on the exceptional facts of the case supervised contact between the child and his mother could not have taken place without such an order.

[2.277]

## 16A Risk assessments

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part II Orders with Respect to Children in Family Proceedings](#)

- (1) This section applies to the following functions of officers of the Service or Welsh family proceedings officers –
  - (a) any function in connection with family proceedings in which the court has power to make an order under this Part with respect to a child or in which a question with respect to such an order arises;
  - (b) any function in connection with an order made by the court in such proceedings.
- (2) If, in carrying out any function to which this section applies, an officer of the Service or a Welsh family proceedings officer is given cause to suspect that the child concerned is at risk of harm, he must –
  - (a) make a risk assessment in relation to the child, and
  - (b) provide the risk assessment to the court.
- (3) A risk assessment, in relation to a child who is at risk of suffering harm of a particular sort, is an assessment of the risk of that harm being suffered by the child.

[2.277[1]]

**Amendments**—Inserted by [CAA 2006, s 7](#).

**Scope**—[ChA 1989, s 16A](#) requires a Cafcass officer carrying out any function in private law [ChA 1989](#) proceedings to carry out a risk assessment if he has cause to suspect that the child concerned is at risk of harm and to provide that assessment to the court. However, see *MS v MN (Contact)* [2017] EWHC 324 (Fam), where the Court of Appeal directed the local authority to carry out a s 7 risk assessment of the father on the basis that every reasonable avenue had to be investigated to see whether contact could be established in a case where it was concluded that direct face-to-face contact with a violent father could not be ordered without a further risk assessment.

**Practice direction**—FPR PD12L, 'Risk Assessments under Section 16A' (see para [3.675](#)) applies to any family proceedings in the family court in which a risk assessment is made under s 16A. Where an officer of the service makes a risk assessment he must provide it to the court irrespective of the outcome of the assessment and even if he reaches the conclusion that there is no risk of harm to the child. In reporting the outcome, the officer should make clear the factors that triggered the decision to carry out the assessment.

**Duty arising even where there are no pending proceedings**—It is possible that the duty to make a risk assessment could arise even where there are no pending proceedings. For example, if the court makes a final s 8 order and an associated family assistance order (FAO) the proceedings would be concluded but the officer would still be exercising his functions for the life of the FAO. If the officer perceives a risk to the child he must make a risk assessment and provide it to the court (s 16A(2)). See FPR 2010, r 16.38 and PD16A, paras 11.1–11.7 and the amended Form 42.

**Information-sharing in the family justice system**—See FPR 2010, r 12.73 (at para [3.554](#)) and PD12G (at para [3.647](#)). In *S v SP and Cafcass* [2017] 2 FLR 1079, FD, a Cafcass children's guardian had been acting in accordance with FPR 2010, r 12.73 in disclosing information about a family to a police officer who was investigating an allegation by the father that the mother had sexually abused him. There was some uncertainty as to the



## 16A Risk assessments

operation of r 12.73, and the court invited the Chief Executive of Cafcass to consider whether further guidance for guardians and Cafcass officers is needed, but confirmed that if in doubt, professionals should always apply to the court for permission to disclose information. See also the *Disclosure of Information between Family and Criminal Agencies and Jurisdictions: 2024 Protocol* (at para [5.252](#)).

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